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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

MARCH 11, 2025

>> MAYOR ISHII: OKAY, EVERYBODY. HI, WE ARE GOING TO CALL THIS MEETING TO ORDER. I FEEL LIKE ORDER IN THE COURT A LITTLE BIT. ALL RIGHT, IF YOU CAN HEAR ME, CLAP ONCE, IF YOU CAN HEAR ME CLAP TWICE, IF YOU CAN HEAR ME CLAP THREE TIMES. ALL RIGHT, WE ARE GOING TO GET STARTED. I WOULD LIKE TO CALL TO ORDER THE BERKELEY CITY COUNCIL MEETING. TODAY IS TUESDAY, MARCH 11TH, 2025. AND WE ARE GOING TO START WITH A ROLL.

>> CITY CLERK: OKAY, CALLING THE ROLL. COUNCILMEMBER KESARWANI?

>> HERE.

>> TAPLIN?

>> PRESENT.

>> BARTLETT?

>> HERE.

>> TREGUB?

>> PRESENT.

>> O'KEEFE?

>> HERE.

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>> BLACKABY?

>> HERE.

>> LUNAPARRA?

>> HERE.

>> HUMBERT?

>> PRESENT.

>> AND MAYOR ISHII?

>> MAYOR ISHII: HERE.

>> CITY CLERK: AND COUNCILMEMBER HUMBERT IS PARTICIPATING IN THE MEETING REMOTELY. THIS EVENING. SO WE JUST NEED TO RUN THROUGH OUR SCRIPT REAL QUICK. COUNCILMEMBER HUMBERT IS PARTICIPATING REMOTELY PURSUANT TO THE BROWN ACT AS AMENDED BY AB IT 2449 UNDER THE JUST CAUSE, JUSTIFICATION, QUORUM OF THE COUNCIL IS PARTICIPATING IN PERSON AT THE NOTICED MEETING LOCATION. AND COUNCILMEMBER HUMBERT HAS NOTIFIED THE COUNCIL OF HIS NEED TO PARTICIPATE REMOTELY. COUNCILMEMBER HUMBERT, PLEASE PROVIDE A GENERAL DESCRIPTION OF THE CIRCUMSTANCES RELATING TO YOUR NEED TO APPEAR REMOTELY BUT DON'T REVEAL ANY DIAGNOSIS OR MEDICAL INFORMATION.

>> M. HUMBERT: SURE, THANK YOU, MR. CLERK. I HAVE TESTED POSITIVE FOR A COMMUNICABLE RESPIRATORY DISEASE AND DON'T WANT TO BE PRESENT WITH OTHER FOLKS TO TRANSMIT IT.

>> CITY CLERK: OKAY, PLEASE DISCLOSE IF THERE IS ANYONE IN THE

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MEETING LOCATION WITH YOU WHO IS 18 YEARS OF AGE OR OLDER?

>> M. HUMBERT: THERE IS NO ONE HERE IN MY HOME OFFICE WITH ME.

>> CITY CLERK: OKAY, AND THEN COUNCILMEMBER HUMBERT WILL PARTICIPATE IN THE MEETING THROUGH BOTH AUDIO AND VISUAL TECHNOLOGY. THANK YOU, MAYOR.

>> MAYOR ISHII: THANK YOU SO MUCH. OKAY. SO IT IS THE FIRST MEETING OF MARCH, WHICH MEANS WE WILL BE READING OUR LAND ACKNOWLEDGMENT STATEMENT. WE HAVE HAD IT SO WE ARE TAKING TURNS. AND SO TONIGHT IS COUNCILMEMBER TREGUB'S NIGHT TO READ THE LAND ACKNOWLEDGMENT STATEMENT. THE CITY OF BERKELEY RECOGNIZES THAT THE COMMUNITY WE LIVE IN WAS BUILT ON THE TERRITORY OF XUČYUN (HUCHIUN (HOOCH-YOON)), THE ANCESTRAL AND UNCEDED LAND OF THE CHOCHENYO (CHO-CHEN-YO)-SPEAKING OHLONE (OH-LOW-NEE) PEOPLE, THE ANCESTORS AND DESCENDANTS OF THE SOVEREIGN VERONA BAND OF ALAMEDA COUNTY. THIS LAND WAS AND CONTINUES TO BE OF GREAT IMPORTANCE TO ALL OF THE OHLONE TRIBES AND DESCENDANTS OF THE VERONA BAND. AS WE BEGIN OUR MEETING TONIGHT, WE ACKNOWLEDGE AND HONOR THE ORIGINAL INHABITANTS OF BERKELEY, THE DOCUMENTED 5,000-YEAR HISTORY OF A VIBRANT COMMUNITY AT THE WEST BERKELEY SHELLMOUND, AND THE OHLONE PEOPLE WHO CONTINUE TO RESIDE IN THE EAST BAY. WE RECOGNIZE THAT BERKELEY'S RESIDENTS HAVE AND CONTINUE TO BENEFIT FROM THE USE AND OCCUPATION OF THIS UNCEDED STOLEN LAND SINCE THE CITY OF BERKELEY'S INCORPORATION IN 1878.

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AS STEWARDS OF THE LAWS REGULATING THE CITY OF BERKELEY, IT IS NOT ONLY VITAL THAT WE RECOGNIZE THE HISTORY OF THIS LAND, BUT ALSO RECOGNIZE THAT THE OHLONE PEOPLE ARE PRESENT MEMBERS OF BERKELEY AND OTHER EAST BAY COMMUNITIES TODAY. THE CITY OF BERKELEY WILL CONTINUE TO BUILD RELATIONSHIPS WITH THE LISJAN TRIBE AND TO CREATE MEANINGFUL ACTIONS THAT UPHOLD THE INTENTION OF THIS LAND ACKNOWLEDGEMENT.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. WE HAVE THE CLOSED SESSION REPORT-OUT. THE CITY COUNCIL MET IN CLOSED SESSION, PURSUANT TO 54956.9, D2 AND PROVIDED DIRECTION TO OUTSIDE COUNSEL AND SETTLEMENT TO WORKER'S COMPENSATION MATTER, BER2200052 AND WCBAB CASE, ADJ17945960. THE COUNCIL ALSO GAVE DIRECTION TO OUTSIDE WORKERS COMPENSATION COUNSEL AND APPROVED A SETTLEMENT WITH RELEASE OF FURTHER MEDICAL CARE OR ALTERNATIVE BY STIPULATIONS FOR THE REQUEST FOR AWARD WITH OPEN FUTURE MEDICAL CARE AS TO WORKER'S COMPENSATION MATTER BER2400023 AND WCAB CASE #ADJ18246762. SIMILARLY THE COUNCIL GAVE DIRECTION AND APPROVED A SETTLEMENT WITH RELEASE OF FUTURE MEDICAL CARE OR IN THE ALTERNATIVE BY STIPULATIONS FOR THE REQUEST FOR AWARD WITH OPEN FUTURE MEDICAL CARE AS TO WORKERS COMPENSATION MATTER BER2300048 AND WCA ADJ14704624. THE COUNCIL ALSO PROVIDED DIRECTION AND PROVIDED SETTLEMENT WITH STIPULATION FOR AWARD WORKERS COMPENSATION MATTER BER2100079. IN ADDITION THE COUNCIL

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PROVIDED DIRECTION TO THE CITY ATTORNEY PURSUANT TO CODE SECTION 54956.9 D1 TO SETTLE THE FOLLOWING LAWSUITS IN AMOUNT NOT TO EXCEED $287,500, TEZARI VERSUS CITY OF BERKELEY, ALAMEDA [READING CASE NUMBER] I ALSO WANT TO TAKE THE OPPORTUNITY TO REPORT OUT FOR A COUPLE ITEMS JANUARY 23RD AND DECEMBER 3RD WHERE A FINAL RESOLUTION HAS BEEN REACHED THE CITY COUNCIL MET IN CLOSED SESSION JANUARY 23, 2024 PURSUANT TO 54956.9A AND 54954.6 SUBSECTIONS D1 AND DIRECTED THE CITY ATTORNEY TO SETTLE WITH SERVICE EMPLOYEES INTERNATIONAL UNION LOCAL 1021, CSU, PTRLA FOR BACK PAY OF UNPAID VALUE OF 3% CALPERS COST SHARING REDUCTION, RETROACTIVE TO JULY 29, 2021, PLUS SIMPLE INTEREST. LAST PARAGRAPH. THE CITY COUNCIL MET IN CLOSED SESSION ON DECEMBER 3EDER, 2024, PURSUANT TO CODE SECTION 54956.9A AND 54956.9D2 AND DIRECTED THE CITY ATTORNEY TO SETTLE WITH PUBLIC EMPLOYEE UNION LOCAL ONE FOR BACK PAY OF 3% CALPERS COST SHARING REDUCTION FROM AUGUST 8, 2021, TO APRIL 16, 2022, PLUS 10% SIMPLE INTEREST. THANK YOU ALL. THAT IS THE CLOSED SESSION REPORT OUT. SO NOW WE MOVE ON TO THE CEREMONIAL MATTERS. IT'S A MOUTHFUL. SO, THERE IS A PROCLAMATION FOR THE AMERICAN RED CROSS BAY AREA CHAPTER MONTH. WHICH IS MARCH 2025. AND IT'S GOING TO BE RECEIVED BY JOHN EARTHY, ARE YOU HERE TODAY, JOHN? THANK YOU, I THINK MY STAFF IS GRABBING THAT. ALSO WE WILL BE ADJOURNING IN MEMORY OF POLLY ARMSTRONG, A DISTRICT 8 FORMER CITY COUNCIL. WE

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WON'T BE ADJOURNING IN MEMORY OF MARTY SHIFFENBAUER BECAUSE WE WILL MOVE THAT TO THE NEXT MEETING SO HIS WIDOW COULD BE HERE IN PERSON. NOW I WILL READ THE PROCLAMATION. THANK YOU. WE ARE RECOGNIZING THE AMERICAN RED CROSS. WHEREAS MARCH IS AMERICAN RED CROSS MONTH WHEN WE RECOGNIZE THE COMPASSION OF PEOPLE IN BERKELEY AND RENEW OUR COMMITMENT TO LEND A HELPING HAND TO OUR NEIGHBORS IN NEED AND WHEREAS WITH 1,638 VOLUNTEERS IN ALAMEDA COUNTY THE AMERICAN RED CROSS ASSISTED OR RESPONDED TO 163 DISASTERS, THROUGH OUR SOUND ALARM PROGRAM THE AMERICAN RED CROSS INSTALLED 988 SMOKE ALARMS MAKING 291 HOMES SAFER AND TRAINED 2,544 YOUTH AND ADULTS THROUGH PREPAREDNESS PROGRAMS. AND WHEREAS ALAMEDA COUNTY RESIDENTS DONATED 30,572 UNITS OF LIFE-SAVING BLOOD, HOSTED 154 BLOOD DRIVES AND TRAINED 13,000 CITIZENS IN AED AND AQUATICS AND PROVIDED SERVICES TO MILITARY MEMBERS AND FAMILY MEMBERS. WHERE THE WORK IS MADE POSSIBLE BY THOSE WHO SELF-LESSLY ANSWER THE CALL TO HELP, WE HERE BY RECOGNIZE THIS MONTH OF MARCH IN HONOR OF THEIR REMARKABLE SERVICE AND ASK EVERYONE TO JOIN IN THEIR COMMITMENT TO CARE FOR ONE ANOTHER. NOW THEREFORE BE IT RESOLVED I, ADENA ISHII, MAYOR OF THE CITY OF BERKELEY DO HERE BY DECLARE MARCH 2025 TO BE AMERICAN RED CROSS MONTH IN THE CITY OF BERKELEY. [APPLAUSE] I'M GOING TO GIVE THIS TO YOU, WE WILL TAKE A COUPLE PICTURES BUT I WANT TO GIVE YOU A MOMENT TO RESPOND AS WELL.

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>> THIS IS LIVE? THANK YOU SO MUCH, MAYOR, THANK YOU SO MUCH, COUNCIL, THANK YOU SO MUCH, THE CITIZENS OF BERKELEY. WE HAVE INSTALLED THREE MILLION FREE SMOKE ALARMS ACROSS THE COUNTRY. THREE MILLION. THESE ACTUALLY SPEAK TO YOU. LATEST TECHNOLOGY AND THEY HAVE SAVED OVER 2,200 LIVES, SPECIFICALLY SINCE 2014. IF YOU KNEW SOMEBODY WHO CANNOT AFFORD SMOKE ALARMS OR IS AT RISK YOU CAN GO ON THE INTERNET AND SIMPLY LOOK UP AMERICAN RED CROSS SMOKE ALARMS AND A CREW LIKE ME WILL COME OUT TO YOUR HOME, FULLY ASSESS AND FULLY INSTALL YOUR HOME, EVERY BEDROOM, HALLWAYS LEADING TO BEDROOMS. THIS WEEKEND, THIS SATURDAY OUR WONDERFUL STUDENTS FROM U.C. BERKELEY, RED CROSS CLUB WILL BE GOING AROUND THE SAN PABLO PARK AREA AND INSTALLING SMOKE ALARMS IN OVER 30 HOMES. AND WE DO THAT EVERY WEEK ACROSS THE COUNTRY.

[OFF MIC]

>> MAYOR ISHII: I THINK THERE'S ANOTHER ADJOURNMENT IN MEMORY. I JUST WANT TO GET THE NAME CORRECT HERE. OH, MEL, COULD YOU PRONOUNCE IT? MEL VAPORE. WE WILL ALSO BE ADJOURNING IN MEMORY OF MEL VAPORE AS WELL. THANK YOU, COUNCILMEMBER. OKAY, WE ARE MOVING ONTO CITY MANAGER COMMENTS.

>> CITY MANAGER BUDDENHAGEN: NO COMMENTS TONIGHT, MADAM MAYOR.

>> MAYOR ISHII: THANK YOU SO MUCH. AND I BELIEVE WE, OKAY, PUBLIC COMMENTS ON NON-AGENDA MATTERS.

>> CITY CLERK: THERE'S A TOTAL OF TEN SPEAKERS ON NON-AGENDA

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MATTERS, FIVE FROM IN-PERSON SPEAKERS AND FIVE ON ZOOM WHO ARE ATTENDING REMOTELY, SO I WILL DRAW THE FIVE IN-PERSON SPEAKERS AND IF YOU ARE ON ZOOM AND WISH TO COMMENT ON AN ITEM THAT IS NOT ON THE AGENDA, PLEASE RAISE YOUR HAND AT THIS TIME.

>> MAYOR ISHII: I'M SORRY. I THINK THAT WE ARE GOING TO TAKE THESE PUBLIC COMMENTS BUT THE SPECIAL MEETING I WAS REFERRING TO EARLIER, WILL NOT BE ON THIS AGENDA. IT'S ON THE CONSENT CALENDAR.

>> CITY CLERK: WE HAVE TO VOTE TO ADD IT.

>> MAYOR ISHII: IT'S NOT ON THE --

>> CITY CLERK: IT WILL BE ON THE AGENDA, SO NOW WOULD NOT BE THE TIME.

>> MAYOR ISHII: IT WILL BE ON THE AGENDA, SO NOW IS NOT THE TIME. BECAUSE THIS IS PUBLIC COMMENT ON NON-AGENDA MATTERS. THANK YOU, CLERK. I WAS UNSURE WHAT THE QUESTION WAS.

>> CITY CLERK: OKAY, THE FIVE IN-PERSON COMMENTERS ARE MAJDE GAUGE, CYNTHIA PAPERMASTER, ITAMAR, ELL, SUMMER BRENNER, AND ELENA AUERBACH.

>> MAYOR ISHII: OKAY, IF OUR FIVE IN-PERSON PUBLIC COMMENTERS COULD COME UP TO THE FRONT, PLEASE?

>> CITY CLERK: JUST COME UP HERE TO THE SIDE, ANY ORDER IS FINE.

>> MAYOR ISHII: ANY ORDER IS FINE. COME UP AND FEEL FREE TO ADJUST THE MIC SO WE CAN HEAR YOU.

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>> CITY CLERK: ONE MINUTE FOR EACH OF THE TEN SPEAKERS.

>> GOOD EVENING, BERKELEY CITY COUNCIL. I'M HERE WITH A LOT OF MY COLLEAGUES, ACTIVISTS FOR PEACE AND JUSTICE IN THE CITY OF BERKELEY. AND YOU SEE THESE RED BANNERS IN FRONT OF YOU? THEY HAVE THE NAMES OF CHILDREN WHO HAVE BEEN MURDERED BY ISRAEL IN GAZA. THIS IS JUST A SMALL SAMPLE OF THE CHILDREN RANGING IN AGE FROM 0, INFANTS TO ABOUT 7 YEARS OLD. WE JUST TOOK A SMALL SAMPLE, WROTE THEIR NAMES AND SEWED THEM ONTO THESE RED BANNERS. THE REASON WE ARE SHOWING THESE TO YOU TONIGHT IS BECAUSE WE ARE MAKING A PLEA TO YOU TO NOT STAY SILENT DURING WHAT IS CLEARLY A GENOCIDE GOING ON THAT WE ARE PAYING FOR WITH OUR TAX DOLLARS. THE REASON I MENTION THE TAX DOLLARS IS -- WE SORRY, WE DON'T WANT OUR MONEY SPENT THIS WAY. WE NEED THAT MONEY HERE AT HOME. FOR HOUSING, EDUCATION, HEALTHCARE AND ALL THE OTHER THINGS. THANK YOU VERY MUCH FOR LETTING ME MAKE A COMMENT.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. APPRECIATE IT.

>> GOOD EVENING. MY NAME IS SUMMER BRENNER AND I'M GOING TO CEDE MY TIME TO CYNTHIA PAPERMASTER. THANK YOU.

>> DO I GET ANOTHER MINUTE? WONDERFUL. I'M EQUIPPING WOMEN FOR PEACE, WE ARE ONE OF THE PREMIERE ACTIVIST GROUPS IN THE NATION. WE ARE A FEMINIST'S PEACE GROUP. AND WE ARE ALWAYS WORKING FOR PEACE. WE DON'T TAKE SIDES IN THESE CONFLICTS. WE'RE NOT ON THE SIDE OF HAMAS. AND PEOPLE ACCUSE SOME OF US ACTIVISTS WHO WANT

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PEACE AS BEING ANTI-SEMITIC OR ON THE SIDE OF HAMAS, NOTHING COULD BE FARTHER FROM THE TRUTH. WE SIMPLY WANT PEACE. WE WANT THE KILLING TO STOP. WE WANT THE STARVATION TO STOP. AND IT'S GETTING WORSE. IT'S NOT STOPPING. SO WE REALLY NEED THE CITY COUNCIL NOT TO BE SILENT ON THIS. I'VE LIVED IN BERKELEY ALMOST 50 YEARS AND I NEED THE COUNCIL TO SAY SOMETHING. IT DOESN'T HAVE TO BE THE PEACE AND JUSTICE RESOLUTION THAT WAS PASSED IN SEPTEMBER. IT COULD BE ONE MORE OF YOUR CHOOSING AND LIKING BUT YOU CANNOT BE SILENT IN THE FACE OF GENOCIDE, THAT'S SIMPLY NOT GOING TO BE OKAY WITH US. THANK YOU FOR TAKING MY COMMENT.

>> MAYOR ISHII: THANK YOU.

>> HELLO, GOOD EVENING, MY NAME IS MAJDE GAUGE, I'M A PALESTINIAN AMERICAN MUSLIM AND BUSINESS OWNER HERE IN BERKELEY. ME AND MY BROTHERS WORKED HARD TO BUILD OUR COFFEE ROSTER AND SPECIALTY COFFEE SHOP. IT WAS DEFACED FOUR TIMES BETWEEN JULY AND AUGUST LAST YEAR. MY FRIEND NAGEEN'S BUSINESS WAS DEFACED WITH "FUCK ISLAM". BEFORE I BREAK MY FAST, I WANT TO READ FROM KORAN. [SINGING IN NATIVE LANGUAGE] SHABBAT AND SHALOME.

>> MAYOR ISHII: THANK YOU.

>> ELENA AUERBACH, I WANT YOU TO BE AWARE BERKELEY HIGH IS WALKING OUT BECAUSE THE SO-CALLED SAFETY OFFICERS ARE BRUTALIZING AND HARASSING THE STUDENTS. YOU NEED TO KNOW ABOUT THIS, I WOULD LIKE TO CEDE THE REST OF MY TIME TO SHEILA.

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>> I'M A RESIDENT OF DISTRICT 2, A RESIDENT OF BERKELEY FOR 38 YEARS I HAVE THREE KID WHO'S HAVE GONE THROUGH THE BERKELEY SCHOOL DISTRICT SINCE KINDERGARTEN, I'M HERE AS PART OF THE PEACE AND JUSTICE COMMISSION. AS YOU KNOW THE COMMISSION PASSED A RESOLUTION LAST SEPTEMBER WHICH WAS NEVER HEARD AND UNNECESSARILY IGNORED AND DRAMATICALLY DELAYED BECAUSE OF STAFF AND COUNCIL. OUR COMMISSION HAS BEEN TOLD BY STAFF THIS RESOLUTION WILL GO TO THE RULES AND AGENDA COMMITTEE ON APRIL 1 AND COUNCIL ON APRIL 15TH. I'M HERE ON BEHALF OF DROVES TO THANK YOU IN ADVANCE FOR HEARING AND PLACING YOUR VOTE ON THIS ITEM ON COUNCIL APRIL 15TH. I'M THANKFUL TO RECS, THE CITY CLERK AND DUANE FOR CHAIRING THE PEACE AND JUSTICE MEETING AFTER FEAR WE HAD FOR OUR SAFETY.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS.

>> ITMAR BECAUSE OF THE LATE HOUR AM I ABLE TO SPEAK IN HIS PLACE, HE CEDED HIS TIME TO ME. WHATEVER THE RULES ARE.

>> MAYOR ISHII: I'M SORRY. WE CAN PULL ONE MORE NAME.

>> CITY CLERK: CYNTHIA ALREADY SPOKE. PHOEBE SOREGEN?

>> ELANA STARTED TO TALK ABOUT WHAT'S HAPPENING. IT WOULD BE GREAT IF SOME COUNCILMEMBERS WERE TO CHECK IN WITH BERKELEY HIGH. THEY ARE COMPLAINING, THERE'S BEEN LIKE THREE INCIDENTS WHERE RESOURCE OFFICERS IN CONJUNCTION WITH BERKELEY POLICE OFFICERS HAVE ROUGHED UP STUDENTS. THERE'S AN INCIDENT, A

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TEACHER SPOKE HERE THIS PAST WEEK ABOUT HOW ONE OF THE STUDENTS FROM B TECH WAS TRYING TO ACCESS MENTAL HEALTH SERVICES ON THE BERKELEY HIGH CAMPUS, HE WAS ATTACKED, IT WAS TRAUMATIC, HANDCUFFING ALL THIS STUFF. AS A MATTER-OF-FACT BPD ALSO ATTACKED AN UNHOUSED WOMAN AT OLD CITY HALL WHO HAD ACCESSED THE BATHROOM AT THE CITY BUILDING ON CENTER STREET. WHEN CHURCH CAME BACK TO HER TENT, SHE WAS ARRESTED. SIX OFFICERS TACKLED HERE. I SAW THE CITATION, I COULD SHOW IT TO YOU, IT HAPPENED.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> THANK YOU.

>> MAYOR ISHII: FOLKS? ?

>> CITY CLERK: OKAY, SO NOW GOING TO THE SPEAKERS ON ZOOM. THE FIRST SPEAKER IS ARAM JAMES. ARAM, YOU SHOULD BE ABLE TO UNMUTE.

>> I JUST WANT TO LET YOU KNOW THAT THE PALO ALTO CITY COUNCIL WHERE I LIVE, ABSOLUTELY ISRAELI OCCUPIED CITY COUNCIL. THEY HAVE REFUSED TO DISCUSS A CEASE-FIRE RESOLUTION. I'M ASKING YOU TO SHOW GUTS IN BERKELEY WHERE I WENT TO SCHOOL AND AGENDIZE A RESOLUTION AGAINST THE GENOCIDE THAT'S GOING ON IN PALESTINE. DO NOT EVISCERATE OUR FIRST AMENDMENT BY REFUSING TO DO THAT. IF YOU DO THAT YOU ARE PLAYING INTO THE HANDS OF THE ZIONIST AND THE TRUMP ADMINISTRATION. PLEASE, AT LEAST ALLOW THE CONVERSATION. NO GENOCIDE IN OUR NAME. I REALLY APPRECIATE YOU DOING THAT, STANDING UP FOR THE CIVIL LIBERTIES OF ALL OF US. NO

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GENOCIDE IN OUR NAME IN PALESTINE. NO GENOCIDE IN OUR NAME IN PALESTINE. I THANK YOU VERY, VERY MUCH. THANK YOU.

>> CITY CLERK: THANK YOU.

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENT AND JUST FOR FOLKS ONLINE THAT DIDN'T HEAR EARLIER, I SAID WE WILL BE BRINGING THIS FORWARD IN A SPECIAL MEETING. JUST KNOW THIS IS COMING TO COUNCIL. OTHER ONLINE COMMENTS?

>> CITY CLERK: YES, THE NEXT SPEAKER IS EVA? YOU SHOULD BE ALLOWED TO TALK.

>> HI THERE, CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> THANKS SO MUCH. I'M SORRY, I'M ON MY BIKE COMMUTE THROUGH THE RAIN. I JUST WANT TO LET YOU KNOW THAT I DID PUBLISH AN ARTICLE A COUPLE DAYS AGO ABOUT WHAT'S HAPPENED WITH THE ASSEMBLY DISTRICT 14 DELEGATE VOTING. AND SOME ISSUES THAT A ROSE THERE. I'M A LITTLE CONCERNED THIS IS BEING SWEPT UNDER THE RUG. I THINK THERE'S A BASIS FOR A CIVIL RIGHTS COMPLAINT. BASED NOT ONLY ON THE LOCATION, WHICH WAS CERTAINLY NOT NEUTRAL, BUT THE CONVENER. THAT ARTICLE IS AT MARIN COUNTY CONFIDENTIAL SUB STACK.COM. I DO HOPE THAT THE COUNCIL WILL TAKE A LOOK AT THE POSSIBILITY OF A RESOLUTION URGING ANYONE DOING ELECTIONS IN THE CITY TO CHOOSE PURELY SECULAR SITES. OTHERWISE YOU CREATE THE POSSIBILITY FOR LAWSUITS.

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>> CITY CLERK: THANK YOU FOR YOUR COMMENTS. ACTUALLY, THAT'S IT FOR ONLINE COMMENTS.

>> MAYOR ISHII: THAT'S IT? OKAY. I KNOW THERE'S A LOT GOING ON IN THE AUDIENCE HERE. IF FOLKS COULD MAKE SURE TO TURN OFF YOUR PHONES. TRY, IF YOU ARE GOING TO HAVE A CONVERSATION, PLEASE TAKE IT OUTSIDE. I WANT TO BE RESPECTFUL. I KNOW THERE ARE FOLKS HERE WHO ARE TRYING TO HEAR. PUBLIC COMMENT BY EMPLOYEE UNIONS I THINK IS GOING TO BE VIRTUAL, THAT'S THE NEXT THING ON OUR AGENDA. IS THERE SOMEONE? I'M SORRY, PLEASE DON'T CALL OUT. PLEASE DON'T CALL OUT. WE'VE TAKEN PUBLIC COMMENT. OKAY. I TOOK SEVEN COMMENTS, I WILL TAKE THREE MORE BUT I DON'T WANT ANYONE ELSE TO CALL OUT IN THIS MEETING. MARK, ARE YOU CHECK? ING

>> CITY CLERK: I'M LOOKING UP RULES OF PROCEDURE. IT'S DISCRETIONARY. YOU DON'T HAVE TO TAKE THREE MORE SPEAKERS, IF YOU DON'T WANT TO.

>> MAYOR ISHII: I WILL TAKE THREE MORE, BUT I WANT TO SAY TO THE AUDIENCE DO NOT CALL OUT. IF YOU WANT TO SAY SOMETHING YOU CAN COME TO THE CITY CLERK OVER HERE, BUT WE NEED TO BE RESPECTFUL.

>> CITY CLERK: THERE IS FOR IN-PERSON SPEAKERS WE HAVE DANIEL BORGSTROM. LIZ BERKELEY. OH, LIZ, BERKELEY ARTIST. AND PETE FRED.

>> MAYOR ISHII: OKAY, CAN THOSE THREE PEOPLE COME UP, PLEASE? COME ON FOLKS, OUR THREE SPEAKERS, ANY ORDER.

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>> CITY CLERK: DANIEL, PETE, LIZ. ANY ORDER.

>> MAYOR ISHII: OKAY. YOU HAVE ONE MINUTE.

>> THANKS, CITY COUNCIL. SO MY GROUP IS HERE TONIGHT JUST TO ENCOURAGE THE CITY COUNCIL TO ADOPT THE ANTI MUSLIM-HATE, THE REFUSAL TO ADDRESS THE GENOCIDE AGAINST PALESTINIANS HAS EMBOLDENED THE HATE WE HAVE SEEN. IF AS RESOLUTION STATES YOU ARE SERIOUS ABOUT ANTI-MUSLIM HATE IN BERKELEY AND BEYOND, YOU MUST AGENDIZED AND ADOPT EMBARGO PASSED BY THE PEACE AND JUSTICE COMMISSION LAST SEPTEMBER BEFORE MOVING ONTO A PERFORMATIVE GESTURE, OTHERWISE IT'S A SELF-SERVING GESTURE, TO DISTRACT US FROM THE SINGLE MOST IMPORTANT HUMAN RIGHTS ISSUE OF OUR TIME. ETHNIC CLEANSING. OVER 40,000 PEOPLE HAVE BEEN EXPELLED FROM THEIR HOMES IN THE WEST BANK. THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENT.

>> OKAY, MY NAME IS DANIEL BORGSTROM. I'M FROM VETS FOR PEACE. I LIVE HERE, I'M A BERKELEY RESIDENT, LIVING NEAR HERE. AND I WANT TO SAY THAT I'M HERE TO SPEAK FOR 34 PEOPLE WHO WILL NOT, WHO CANNOT BE HERE TONIGHT, COULD NOT BE HERE EVER. HOPEFULLY, THEY ARE HERE IN SPIRIT. THEY WERE CREW MEMBERS OF THE U.S.S. LIBERTY WHO WERE MURDERED BY THE ISRAELI AIR FORCE AND NAVY. THESE ATTACKS HAPPENED IN JUNE 1967. THE ATTACKS LASTED ABOUT TWO HOURS. THERE'S BEEN A HUGE COVER-UP ABOUT THIS. OUR GOVERNMENT. THEY DID EVERYTHING TO COVER THIS UP, PRETEND THERE WAS A

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MISTAKE, ACCIDENT, IT WASN'T A MISTAKE, IT WAS A DELIBERATE ATTACK THAT LASTED TWO HOURS BY THE AIR FORCE AND THE NAVY.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. OUR LAST PUBLIC COMMENT?

>> I'M LIZ AND I'M CEDING MY TIME TO MARJORIE.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, HONORABLE MAYOR, AND CITY COUNCIL MEMBERS. FIRST I DO WANT TO THANK ALL THE PEOPLE WHO CARED ENOUGH ABOUT THIS IMPORTANT ISSUE TO COME OUT TONIGHT TO -- CONCERNED ABOUT THIS ISSUE OF OUR WONDERFUL BERKELEY. OUR PROGRESSIVE BERKELEY WHO HAS BEEN KNOWN TO TAKE A STAND ALL THESE YEARS FOR PEACE AND JUSTICE, IT EVEN HAS A PEACE AND JUSTICE COMMISSION AND IT'S TAKEN SO LONG FOR YOU TO GET AROUND TO PASSING A CEASE-FIRE RESOLUTION, EVEN A CEASE-FIRE RESOLUTION. SO WE MUST -- THEY HAVE CUT OFF THE ELECTRICITY NOW AGAIN. AND ALL THE FOOD. ALL THOSE CHILDREN THAT WERE REPRESENTED BY THOSE FLAGS, THEY ARE DYING, OKAY?

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENT.

>> APPRECIATE IT VERY MUCH. THANK YOU.

>> MAYOR ISHII: OKAY. SO, CITY CLERK, I BELIEVE THAT THE PUBLIC COMMENT FROM EMPLOYEES UNIONS IS COMING IN VIRTUALLY. I JUST WANT TO SEE IF THEY HAVE BEEN IDENTIFIED.

>> CITY CLERK: YES, I SEE THE PERSON ON THE ZOOM THERE.

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>> MAYOR ISHII: THANK YOU.

>> JOCELYN FROM SEIU. JOCELYN, YOU SHOULD BE ABLE TO UNMUTE.

>> HI, CAN YOU HEAR ME?

>> YES.

>> GREAT, GOOD EVENING, MAYOR, AND COUNCILMEMBERS. I'M JOCELYN, A CITY WORKER, MATERNAL CHILD HEALTH WORKER. AND I'M A MEMBER OF SEIU 1021, THE PTU CHAPTER. I'M SPEAKING ON A POSITION THAT'S BEEN THE POSITION OF MY UNION WHICH REPRESENTS 60,000 MEMBERS ABOUT PALESTINE. WE HAVE TAKEN A STRONG PRINCIPLED STANCE. AND YOU KNOW, WE HAVE BEEN HERE USING OUR UNION COMMENT TIME EVERY MONTH, CALLING ON THE PREVIOUS ITERATION OF COUNCIL, THIS COUNCIL. I JUST CAN'T BELIEVE MONTH AFTER MONTH AFTER MONTH AFTER MONTH, WE ARE STILL HERE TALKING ABOUT THIS. AND THEN TO HEAR RECENTLY ABOUT THE ISLAMOPHOBIC HATE CRIMES THAT AFFECTED, IT REALLY WASN'T THE FIRST TIME. WE KNOW THAT PHYSICAL THERAPY OFFICE, JAFA COFFEE ROSTERS HAVE BEEN TARGETED MULTIPLE TIMES. REPEATED TIMES. IT'S HEARTBREAKING. BUT WHAT REALLY BREAKS MY HEART IS THAT YOU CAN'T IGNORE THE CONTEXT THAT THIS IS HAPPENING IN A VACUUM. WHERE BERKELEY, CALIFORNIA OF ALL PLACES HAS FAILED TO TALK ABOUT A GENOCIDE. IT'S UNACCEPTABLE. SO I'M REALLY, REALLY HOPING AND PRAYING THAT THIS WILL BE A WAKE-UP CALL FOR YOU ALL TO TRY TO GET ONTO THE RIGHT SIDE OF HISTORY, BELATEDLY, AS IT IS. I DO WANT TO SAY, SPEAKING, I GUESS I'M

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JUST SPEAKING FOR MYSELF RIGHT NOW. ABOUT THE JEWISH AMERICAN. IF YOU ALL MAKE A PROCLAMATION ABOUT CEASE-FIRE OR IF YOU MAKE A PROCLAMATION ABOUT CONDEMNING THESE ISLAMOPHOBIC HATE CRIMES, I AS A JEWISH AMERICAN DO NOT NEED TO BE PATTED ON THE HEAD, DO NOT NEED TO BE PLACATED AND TOLD THAT YOU STILL LIKE ME BY MAKING THOSE PROCLAMATIONS. I REALLY URGE YOU TO JUST TAKE A PRINCIPLED STANCE LIKE MY UNION HAS DONE AND TELL IT LIKE IT IS. THAT'S BEEN THE POSITION OF SEIU 1021 AND WILL CONTINUE TO BE. I'M LOOKING FORWARD, MAYOR ISHII, THANK YOU FOR YOUR INVITE TO MEET WITH YOU, ALONG WITH OUR POLITICAL DIRECTOR OF OUR LOCAL REPRESENTING 60,000 PEOPLE TO MEET WITH YOU. REALLY LOOKING FORWARD TO IT. AND ALL OF THE REST OF THE COUNCILMEMBERS. WHEN, I'M NOT GOING TO SAY IF, WHEN YOU DECIDE TO HAVE THE MORAL COURAGE TO TAKE A PRINCIPLED STANCE ON THIS, WE WILL SUPPORT YOU. GIVE ME A CALL AND I'M HAPPY TO MEET WITH ANY OF YOU AND I WILL BRING OUR POLITICAL DIRECTOR ALONG. WE ARE HERE FOR THE LONG HAUL. I ALSO WANT TO SPEAK BRIEFLY ON ITEM 18 AND THE OTHER ITEMS ADDRESSING AFFORDABLE HOUSING. YOU KNOW, OUR UNION HAS ALWAYS SUPPORTED EVERYTHING IN THIS ROOM THAT BERKELEY HAS BEEN WORKING ON. AND AS WE ALL KNOW, RENTS IN BERKELEY ARE UNAFFORDABLE FOR MOST CITY WORKERS. FOR TEACHERS, FOR WORKING CLASS PEOPLE. THESE RENTS ARE ALREADY UNAFFORDABLE. SO I REALLY, REALLY STRONGLY URGE YOU TO DO ANYTHING THAT YOU CAN TO PROTECT

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WORKERS LIKE ME AND ALL THE OTHER CITY WORKERS BY SUPPORTING ITEM 18. THAT'S IT FOR ME TONIGHT. THANK YOU ALL SO MUCH. I GUESS I SHOULD HAVE MENTIONED THE -- COORDINATOR FOR OUR CHAPTER. YEAH, THANK YOU FOR YOUR TIME. I LOOK FORWARD TO ALL OF YOU DOING THE RIGHT THING.

>> MAYOR ISHII: THANK YOU.

>> ALL RIGHT, TAKE CARE.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS. ARE THERE OTHER EMPLOYEE UNIONS HERE IN PERSON, OR ONLINE? NO? I KNOW OUR CITY AUDITOR DOESN'T HAVE COMMENTS THIS EVENING. I WILL MOVE US ONTO THE CONSENT CALENDAR. THERE ARE A COUPLE THINGS I WANT TO SAY BEFORE WE GET INTO THAT. FIRST IN CONSULTATION WITH COUNCILMEMBER TREGUB AND HIS OFFICE WE ARE WITHDRAWING ITEM #15 FROM TODAY'S AGENDA. DUE TO A CONFLICT OF INTEREST. THE OTHER THING IS THAT --

>> I. TREGUB: POTENTIAL CONFLICT.

>> MAYOR ISHII: SORRY, POTENTIAL CONFLICT OF INTEREST. THANK YOU, COUNCILMEMBER. AND THERE'S ALSO SUPPLEMENTAL AGENDA MATERIAL THAT IS BEING BROUGHT AS WELL. MR. CITY MANAGER, IF YOU COULD SPEAK TO THIS, PLEASE?

>> CITY MANAGER BUDDENHAGEN: THANK YOU, MADAM MAYOR, EACH OF YOU SHOULD HAVE A COPY OF THE SUPPLEMENTALS WHICH I'M ASKING SUPPORT WHICH INCLUDES TWO-THIRDS MAJORITY TO HAVE IT INCLUDED IN THE

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PACKET. IT'S BASICALLY CLARIFICATION ON ITEM #6, INDICATING THE THREE ITEMS WE ARE DOING PUBLIC SOLICITATION FOR, ARE ALL ENCOMPASSED WITHIN ONE ATTACHMENT. IT KIND OF LOOKS LIKE THERE'S THREE, BUT THERE'S REALLY ONLY ONE THAT DESCRIBES EACH BRIEFLY. I WANTED TO MAKE THAT CLARIFICATION VIA THE SUP.

>> MAYOR ISHII: THANK YOU VERY MUCH. I BELIEVE WE NEED TO VOTE ON THIS TO PUT IT ONTO THE AGENDA, TO ADD IT, SUPPLEMENTAL MATERIALS. IS THERE A MOTION?

>> I MOVE APPROVAL.

>> SECOND.

>> MAYOR ISHII: MOTION FROM COUNCILMEMBER BLACKABY AND SECOND FROM COUNCILMEMBER TREGUB. SINCE WE HAVE SOMEONE ONLINE WE NEED TO TAKE THE ROLL, PLEASE.

>> CITY CLERK: OKAY, TO ACCEPT THE SUPPLEMENTAL MATERIAL, COUNCILMEMBER KESARWANI? SO ACCEPT THE SUPPLEMENTAL.

>> R. KESARWANI: SORRY, DIDN'T HEAR YOU CALL MY NAME. YES.

>> TAPLIN?

>> YES.

>> BARTLETT?

>> YES.

>> [ROLL CALL]

>> MAYOR ISHII: YES. THANK YOU VERY MUCH. WE WILL NOW TAKE PUBLIC COMMENT ON CONSENT CALENDAR AND INFORMATION ITEMS ONLY.

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>> CITY CLERK: THERE'S ALSO ADDING COUNCILMEMBER TREGUB'S ITEM TO THE AGENDA.

>> MAYOR ISHII: I'M SORRY, CAN YOU SAY THAT AGAIN?

>> CITY CLERK: SO COUNCILMEMBER TREGUB'S URGENCY ITEM?

>> MAYOR ISHII: OH, THANK YOU. YES. THERE'S ALSO AN EMERGENCY ITEM WHICH I DON'T ACTUALLY HAVE IN FRONT OF ME.

>> I. TREGUB: URGENCY.

>> MAYOR ISHII: WE ALSO NEED TO VOTE TO PUT THIS ON AS WELL.

>> I. TREGUB: I MOVE THE INCLUSION OF THE URGENCY ITEM TO THE AGENDA. AS -- DO WE NEED? THIS IS DONE, RIGHT?

>> CITY CLERK: YES. NOW WE ARE REFERRING TO THE URGENCY RESOLUTION, INTRODUCED BY COUNCILMEMBER TREGUB, CONDEMNING THE RECENT INCIDENT --

>> I. TREGUB: I MOVE THAT WE ADD URGENT ITEM CONDEMNING THE RECENT INCIDENT ALONG WITH CONDEMNING A RECENT INCIDENT ALONG WITH ALL ACTS OF ISLAMOPHOBIA IN BERKELEY AND REAFFIRMING SUPPORT FOR THE MUSLIM COMMUNITY TO THE AGENDA.

>> MAYOR ISHII: MR. CITY CLERK, CAN WE JUST CLARIFY, BECAUSE WE DON'T HAVE THE PHYSICAL IN FRONT OF US? I JUST WANT TO MAKE SURE THAT WE ARE DOING THIS CORRECTLY?

>> CITY CLERK: THIS ITEM WAS SUBMITTED EARLY ENOUGH IT WAS PUBLISHED IN SUPPLEMENTAL COMMUNICATIONS PACKET #1. IT'S ALSO POSTED ON THE WEBSITE WITH THE AGENDA BOARD TONIGHT.

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>> MAYOR ISHII: THANK YOU VERY MUCH. SO THERE'S A SECOND?

>> CITY CLERK: YES, COUNCILMEMBER KESARWANI SECONDED.

>> MAYOR ISHII: ANY COMMENTS BEFORE? OKAY. ALL RIGHT. SO WE SHOULD TAKE ROLL ON THAT.

>> CITY CLERK: TO ADD THE ITEM TO THE AGENDA. COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

>> BARTLETT?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BRACK BEE? BLACKABY?

>> YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES.

>> MAYOR ISHII?

>> MAYOR ISHII: YES.

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>> CITY CLERK: ITEM HAS BEEN ADDED TO THE AGENDA.

>> MAYOR ISHII: NOW WE WILL TAKE PUBLIC COMMENT ON CONSENT CALENDAR AND INFORMATION ITEMS ONLY.

>> I'M HERE AS A MEMBER OF 350 BAY AREA, THE BERKELEY HUB. I WOULD LIKE TO COMMENT ON CONSENT ITEM 16, FILL EMPTY STOREFRONTS. EVEN THOUGH YOU JUST SPENT SIGNIFICANT TIME REDUCING THE REFERRAL LIST I AGREE TO SEND IT FOR REFERRAL FOR FURTHER DISCUSSION. WITH THE UNDERSTANDING THAT YOU WON'T WAIT TOO LONG. THAT RESIDENTS DESERVE MORE LOCAL STOREFRONTS AND THE CITY COULD USE ADDITIONAL SALES TAX. THE ALTERNATIVE IS TO LOCAL SERVICES IS TO DRIVE MORE, HAVE MORE DELIVERY TRUCKS TEARING UP OUR INFRASTRUCTURE. AND IT REDUCES THE OPPORTUNITIES RESIDENTS HAVE TO BIKE OR WALK TO LOCAL SERVICES. AND AS WE CONTINUE TO EXPERIENCE BREAKING TEMPERATURE RECORDS WE MUST DO ALL WE CAN TO MITIGATE LOCAL EMISSIONS, ESPECIALLY THOSE ASSOCIATED WITH TRANSPORTATION. THANK YOU FOR YOUR CONSIDERATION.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> GOOD EVENING, MY NAME IS JONATHAN MINCER, I SERVE AT JCRC BAY AREA, THE LARGEST VOICE OF BAY AREA JEWS. OUR MEMBER ORGANIZATIONS INCLUDE -- SHALOM AND BETH JACOB? I ASK TO CONTINUE SHOWING PRINCIPLED COMPASSION AND LEADERSHIP. [READING RAPIDLY] LAST WEEK AN AWFUL ISLAMOPHOBIC INCIDENT HAPPENED. ACCORDING TO RECENT ATTORNEY GENERAL HAVE TARGETED BLACK,

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JEWISH, LGBTQ+ COMMUNITIES, AMONG OTHERS. IN THE FACE OF RISING HATE, WE BELIEVE FOSTER [READING RAPIDLY] BERKELEY HAS A STRONG TRACK RECORD OF THIS, INCLUDING UNITED AGAINST HATE WAIT, HOLOCAUST EDUCATION WEEK --

>> MAYOR ISHII: THANK YOU SO MUCH. OKAY, FOLKS BE POLITE TO OUR SPEAKERS. THANK YOU.

>> GOOD EVENING, MY NAME IS KIT SAGINOR, I'M THE CHAIR OF THE OPEN GOVERNMENT COMMISSION, I'M HERE TO SPEAK ON ITEM 4, UPDATED COMMISSIONERS AND BOARD MEMBERS MANUAL. NOT PERHAPS AN EXCITING DOCUMENT BUT ONE THAT DOES MAKE A DIFFERENCE HOW COMMISSIONS AND BOARDS OPERATE. AND I MOSTLY WANT TO THANK THE CITY CLERK'S OFFICE FOR ENTERTAINING A VARIETY OF RECOMMENDATIONS THAT CAME FROM THE COMMISSION, INCLUDING THAT CHANGE TO THE TITLE, SO IT'S CLEAR IT'S BOARD MEMBERS AND NOT JUST COMMISSIONERS. AND OF COURSE THERE WERE SOME OTHER THINGS WE WOULD LIKE TO BE DONE THAT MAY BE MORE SUBSTANTIAL DOWN THE LINE. BUT THIS IS A VERY IMPORTANT DOCUMENT. AND THE COMMISSIONS ARE IMPORTANT AND DO SOME REALLY WONDERFUL WORK. AND WE HOPE TO SEE A STRONGER SUPPORT IN MANY WAYS FOR THE WORK OF THE COMMISSIONS AND BOARDS TO BENEFIT THE CITY OF BERKELEY. THANK YOU.

>> MAYOR ISHII: THANK YOU. THANKS, KIT. GO AHEAD.

>> HI, HELLO, COMMISSIONERS. COUNCIL PEOPLE. MY NAME IS MERYL. I’M A FORMER TEACHER, I LIVE IN D1 AND I'M ALSO A BERKELEY

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UNIFIED SCHOOL DISTRICT VOLUNTEER. SO I'M HERE TO SPEAK ABOUT THE BERKELEY UNIFIED SCHOOL DISTRICT HOUSING CITY PREFERENCES OVERLAY. AND I REQUEST THAT THIS ITEM BE MOVED TO ACTION BECAUSE IT'S REALLY IMPORTANT THAT EVERYONE IS VERY CLEAR AND THERE'S TRANSPARENCY IN THE LEASING PRACTICES FOR THIS ITEM. I HAVE CORRESPONDED WITH CITY OFFICIALS WOULD HAVE GIVEN US VERY GOOD INFORMATION. HOWEVER, THERE'S SOME DIFFERENT PERSPECTIVES ABOUT WHAT IT MEANS, WHAT THIS OVERLAY WILL MEAN FOR THE ACTUAL LEASING PRACTICES AT THE ADULT SCHOOL SITE. WE BELIEVE THAT IT'S REALLY IMPORTANT TO HAVE BERKELEY UNIFIED SCHOOL DISTRICT --

>> MAYOR ISHII: THANK YOU. I'M SORRY, YOUR TIME IS UP. THANK YOU SO MUCH, BUT YOUR TIME IS UP. I'M REALLY STRICT ABOUT TIME, I WANT TO BE SUPER CONSISTENT SO WE COULD BE RESPECTFUL OF EVERYONE. THANK YOU, APPRECIATE YOUR COMMENTS. THANK YOU. OKAY, YOU HAVE BEEN GIVEN A MINUTE.

>> ANYWAY I WAS CLARIFYING IT WOULD BE GOOD FOR THE CITY COUNCIL, EVERYONE AMONG US TO BE VERY CLEAR HOW WHAT'S CALLED BERKELEY UNIFIED SCHOOL DISTRICT AFFORDABLE HOUSING WILL BE LEASED. AND IT DOES SEEM TO BE THAT, YOU KNOW, THERE WILL BE THE ABILITY FOR B.U.S.D. EMPLOYEES TO BE THERE BUT NOT TOTALLY. IT WOULD BE GOOD TO DISCUSS IT AND FINALLY I WANTED TO ALSO AGREE WITH MARGO SCHUELER. I'M VERY EXCITED TO SEE ITEM 16 AND HOPE THAT IT COMES BACK SOON BECAUSE OUR NEIGHBORHOODS NEED VITALITY

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AND ECONOMIC DEVELOPMENT. THANKS A LOT.

>> MAYOR ISHII: THANK YOU.

>> MADAM MAYOR, CITY COUNCIL, I WILL CEDE ONE MINUTE TO NAGEEM.

>> HELLO, MY NAME IS [INDISCERNIBLE] I CEDE ONE MINUTE TO NAGEEM [INDISCERNIBLE]

>> MAYOR ISHII: OKAY, A THIRD MINUTE SO THAT MAKES FOUR.

>> THANK YOU. DEAR COUNCIL AND MAYOR ISHII, I STAND BEFORE YOU ON THE EVE OF THE TAKE DOWN OF FREE SPEECH AND OTHER LIBERAL DEMOCRATIC INSTITUTIONS IN THIS COUNTRY WHICH HAS ALREADY BEGUN ON OUR COLLEGE CAMPUSES. OVER THE WEEKEND THE PALESTINIAN ACTIVIST STUDENT AT COLUMBIA AND A GREEN CARD HOLDER WAS DETAINED PENDING DEPORTATION BY THE DEPARTMENT OF HOMELAND SECURITY FOR HIS POLITICAL SPEECH. DHS IS ALSO WORKING WITH CANARY -- TO IDENTIFY TARGETS. THEY ARE ALSO USING A.I. AND FACIAL RECOGNITION SOFTWARE TO IDENTIFY HA ACTIVISTS FOR HARASSMENT AND DEPORTATION. THIS IS A TRAIN THAT IS COMING FOR ALL OF US. AND THIS IS JUST THE BEGINNING. I COMMEND YOU, COUNCILMEMBER TREGUB, FOR WANTING TO STAND AGAINST HATE AND ISLAMOPHOBIA, BUT YOUR RESOLUTION, AS WRITTEN DOES LITTLE TO ADDRESS THE ROOT CAUSES OF THIS ISSUE. LET ME DRAW YOU A CLEARER PICTURE. THE ACTS OF TARGETED VANDALISM AT MY CLINIC WHICH STARTED LAST SPRING AND SUMMER RESULTED IN ME COMING BEFORE THIS BODY IN JULY AND SOUNDING THE ALARM AND BEGGING FOR DUE

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ATTENTION BY THE COUNCIL. BY THE THEN COUNCIL. DUE TO THESE ACTS OF HATE. MY COMMENTS WERE LARGELY IGNORED BY BOTH MAYOR ARREGUIN AND MAJORITY OF COUNCIL AT THAT TIME, SAVE A FEW LIKE COUNCILMEMBER LUNAPARRA. IT'S ONLY NOW AFTER TELEVISION CAMERAS CAME TO TOWN TO BROADCAST TO THE WORLD THIS UGLY AND EMBARRASSING SIDE OF BERKELEY THAT YOU ARE STIRRED TO TAKE ACTION. SUCH A TIMELINE CASTS A SHADOW ON THE SPIRIT OF YOUR INTENTIONS. THERE'S BEEN A CONCERTED EFFORT THROUGHOUT BERKELEY TO SILENCE THE VOICES OF THOSE WHO OBJECT TO GENOCIDE AND ETHNIC CLEANSING ONGOING BOTH IN GAZA AND THE WEST BANK TODAY. IT'S NOT ONLY MUSLIM-OWNED BUSINESSES. I RECENTLY LEARNED THAT A POSTER FOR PEACE IN GAZA WAS TORN UP OUTSIDE A METHODIST CHURCH. I HAVE ALSO SPOKEN WITH OTHER BUSINESS OWNERS WHO TOLD ME THEY WANTED TO PUT UP SUCH POSTERS IN THEIR BUSINESSES BUT ARE AFRAID OF BEING VICTIMIZED LIKE OUR CLINIC HAS. LET'S CALL THESE HATE CRIMES WHAT THEY ARE, POLITICAL VIOLENCE, INTENDED TO INTIMIDATE AMERICANS FROM EXERCISING THEIR FREEDOM OF SPEECH. YOUR FAILURE TO PASS A CEASE FIRE RESOLUTION AT THE TIME WHEN IT WAS CRUCIAL TO STAND ON THE RIGHT SIDE OF HISTORY HAS EMBOLDENED WHO WISH TO SILENCE OUR RIGHT TO EXPRESS OUR OPINIONS. IT'S EMPOWERED A FRINGE WARD OF ZEALOTS BACKED BY POWERFUL LOBBY GROUPS WHO WANT TO ISOLATE AND WEAPONIZE THEIR OPPRESSION AND JUSTIFY THE BANALITY OF EVIL. JUSTIFYING HATE AND ERASURE OF AN ENTIRE GROUP

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OF PEOPLE. IF YOU TRULY WANT TO WRITE A RESOLUTION AGAINST HATE AND ISLAMOPHOBIA AND PROTECT YOUR CONSTITUENTS AGAINST POLITICAL VIOLENCE YOU MUST BE STRAIGHT FORWARD AND CLEAR AND NAME THE INHUMANITY WHICH IS BEING DONE WITH IMPUNITY TODAY IN PALESTINE. MAJORITY MUSLIM STATE LITERALLY GOING THROUGH AN ETHNIC CLEANSING. WE HAVE SEEN HOW DURING THE VIMAR PERIOD IN GERMANY, ACTS OF VIOLENCE AGAINST JEWS WERE NORMALIZED. JEWISH PEOPLE WITH DEHUMANIZED AND THE WORLD SLIPPED INTO ACCEPTING THEIR ETHNIC CLEANSING AND GENOCIDE AS THE THIRD REICH DID SO. IT DID NOT STOP THERE. ETHNIC MINORITIES SUCH AS THE ROMA PEOPLE, POLITICAL DISSONANCE. HATE STARTS WITH ONE GROUP BUT ONCE NORMALIZED QUICKLY EXTENDS TO OTHERS. ALL THOSE WHO STOOD BY AND DID NOTHING WERE COMPLICIT IN THOSE ACTS. ONLY IF IT MAKES GOOD ON ITS CLAIM TO AFFIRM BERKELEY'S UNWAVERING SUPPORT --

>> MAYOR ISHII: THANK YOU.

>> SO, I'M GOING TO FINISH HER STATEMENT BECAUSE IT SAYS UNWAVERING SUPPORT FOR THE MUSLIM COMMUNITY IN BERKELEY AND BEYOND. SO PLEASE, ADD THE FOLLOWING PROVISIONS TO RESOLUTION SO IT REFLECTS BERKELEY'S OPPOSITION TO THE MUSLIM HATE AND ISLAMOPHOBIA THAT IS FESTERING IN OUR COUNTRY AND THREATENING TO UNDERMINE THE REPUBLIC AND OUR VERY DEMOCRACY. PLEASE ADD THIS AMENDMENT, WHEREAS U.S. POLICY TOWARD THE PALESTINIAN PEOPLE HAS ENABLED DEHUMANIZATION, VIOLENCE, ETHNIC CLEANSING STARVATION

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AND GENOCIDE AND SUPPORTERS OF THESE HATEFUL PRACTICES HAVE BEEN EMBOLDENED TO HARASS AND INTIMIDATE THOSE WHO SPEAK OUT AGAINST THESE POLICIES IN OUR COMMUNITY IN BERKELEY, THEREFORE BE IT RESOLVED OUR CITY SUPPORTS THE RIGHT TO BE FREE FROM ETHNIC CLEANSING, APARTHEID, AND WE SUPPORT CEASE FIREARMS EMBARGO AND END OF OCCUPATION OF PALESTINE. THANK YOU.

>> MAYOR ISHII: THANK YOU BOTH FOR YOUR COMMENTS.

>> MY NAME IS TIM O'BRIEN. I'M A RESIDENT OF BERKELEY. BUT I'M HERE ON BEHALF OF IMAN, THE LIGHT HOUSE MOSQUE WHO WAS NOT ABLE TO MAKE IT. HE WANTED TO COME BUT HE HAD A PREVIOUS ENGAGEMENT. HE IS VERY CONCERNED ABOUT THE TIMING OF THIS RESOLUTION WITHOUT HAVING PASSED A CEASE FIRE RESOLUTION. I WILL READ HIS STATEMENT. AS SOMEONE WHO GREW UP IN THE CITY OF BERKELEY I ALWAYS FELT A SENSE OF PRIDE I CAME FROM A CITY USUALLY ON THE FOREFRONT OF SO MUCH OF THE FIGHT AGAINST OPPRESSION AND FOR EQUAL RIGHTS AND THE FREE SPEECH MOVEMENT. HOWEVER, NOW I LOOK AT A CITY THAT HAS NOT JOINED THE CALL OF SO MANY OTHER CITIES TO RECOGNIZE THE HUMANITY OF THE MUSLIMS WHO ARE BEING SCAPEGOATED AND VILIFIED WHETHER IN GAZA OR IRAN, BY POLITICIANS AS THEY SEEK OUT VOTES BY INSTIGATING CULTURAL DIVISION IN AMERICA. WITH TOTAL DISREGARD TO HUMANITY FOR MARGINALIZED CITIZENS WHO ENDURED A YEAR PLUS OF SORROW. I WISH THE CITY OF BERKELEY COULD HAVE THE COURAGE TO STAND UP FOR ALL OUR

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CITIZENS.

>> MAYOR ISHII: I'M SORRY, YOUR TIME IS UP, TIM. THANK YOU FOR THE COMMENT. OKAY.

>> I REALLY WISH THE CITY OF BERKELEY COULD HAVE THE COURAGE TO STAND UP FOR ALL OUR CITIZENS JEWISH, HINDU, CHRISTIAN, BUDDHIST, AGNOSTIC OR ATHEIST AND DECLARE WE SEE THE SUFFERING AND UNDERSTAND THE PAIN OF ITS MUSLIM RESIDENTS. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> I CEDE MY MINUTE TO SHIMIN JAMJI?

>> GOOD EVENING, COUNCILMEMBERS. I'M A LONG TIME RESIDENT OF BERKELEY WHO HAS WORKED IN THE CRIMINAL LEGAL SYSTEM FOR OVER 30 YEARS. I'M ALSO MUSLIM AND AN IMMIGRANT OF SOUTH ASIAN DESCENT FROM TANZANIA. ALL THREE OF MY CHILDREN WENT THROUGH THE BERKELEY UNIFIED SCHOOL DISTRICT. MY HUSBAND AND I MOVED TO BERKELEY ABOUT 25 YEARS AGO TO RAISE OUR FAMILY HERE BECAUSE OF THE SENSE OF INCLUSIVITY AND COMMITMENT TO SOCIAL AND RACIAL JUSTICE ASSOCIATED WITH BERKELEY. BUT NOW THERE'S A PALPABLE AURA OF REPRESSION IN THE CITY. AS A SMALL MINORITY AND ITS LOBBY GROUPS EXERT AN OUTSIZED INFLUENCE OVERALL CITY POLICY. WE ARE SEEING THIS INFLUENCE REVERBERATE ACROSS THE COUNTRY. A FRIGHTENING REALITY BEING UNLEASHED ON PEOPLE OF CONSCIENCE, ESPECIALLY STUDENTS FOR SPEAKING UP FOR THEIR VALUES. I'M DISAPPOINTED IN THIS COUNCIL. I'M DISAPPOINTED THAT THIS COUNCIL

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HAS NOT FOUND ITS WAY TO DENOUNCE GENOCIDE. THAT IS NOT THE BERKELEY I CAME TO RAISE MY CHILDREN AND I WILL NOT SUPPORT A COUNCIL THAT DOES NOT STAND AGAINST ALL HATE, BOTH IN BERKELEY AND BEYOND. THE TIME FOR YOU TO ACT IS NOW AND NOT HIDE BEHIND CALLS FOR FURTHER DISCUSSIONS AND MEETINGS, WHICH PRESERVES THE STATUS QUO. I BELIEVE THAT THESE RECENT HATE CRIMES AGAINST MUSLIM-OWNED BUSINESSES HAVE COME OUT OF YOUR REFUSAL TO TAKE A STANCE FOR PEACE AND JUSTICE FOR THE MUSLIM COMMUNITY AROUND THE WORLD AND YOUR IN ACTION HAS EMBOLDENED THESE FORCES OF HATE. IF YOU ARE SINCERE, DO NOT INSULT US BY ADOPTING THIS PERFORMATIVE AND EXPEDIENT MEASURE BEFORE FIRST AGENDIZING AND PASSING THE MORE IMPORTANT CEASE-FIRE AND ARMS EMBARGO RESOLUTION PUT FORTH BY THE PEACE AND JUSTICE COMMISSION LAST SEPTEMBER. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HELLO, THANKS IGOR FOR THE URGENT ITEM AND PLEASE GO FURTHER WITH IT. HATE CRIMES DIDN'T HAPPEN IN A VACUUM BUT ARE DIRECTLY RELATED TO ACTIVISM FOR PALESTINE. AND ALSO TO YOUR FAILURE TO HAVE PASSED A CEASE-FIRE RESOLUTION, WHICH FAILURE EMBOLDENED THOSE WHO WISH TO SILENCE OUR FREE SPEECH. EMPOWERING PRO-WAR EXTREME ZEALOTS. THE WAY THAT WE END HATE IS BY LOCKING ARMS ACROSS DIFFERENCES TOGETHER. TO INSIST THAT FREEDOM AND SAFETY IS FOR ALL OF US, INCLUDING PALESTINIANS AND THEIR SUPPORTERS. NO EXCEPTIONS. DEMOLISHING HOMES FUNDED BY OUR TAXES, THAT'S A

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HATE CRIME. DESTROYING GAZA HOSPITALS, BLOWING UP WATER TREATMENT FACILITIES, HATE CRIMES.

>> MAYOR ISHII: YOUR TIME IS UP. THANK YOU.

>> IT MUST STOP.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> GOOD EVENING, EVERYBODY. I'LL REFER TO ISLAM 24 YEARS AGO, IN OTHER WORDS I'VE BEEN A MUSLIM FOR 24 YEARS. I BELIEVE IN ALLAH, I BELIEVE IN MOHAMED, PEACE BE UPON HIM. I BELIEVE IN THE AFTER LIFE. AND I BELIEVE EVERYTHING THAT WE DO OR DON'T DO IN OUR CURRENT LIFE IS GOING TO BE FATEFUL ONE WAY OR THE OTHER IN THE AFTER LIFE. I WOULD URGE YOU WHEN YOU HAVE A CHANCE TO VOTE FOR A CEASE FIRE FOR RESOLUTION TO VOTE AS IF YOUR LIFE DEPENDS ON IT, BECAUSE AT SOME POINT, EITHER HERE OR IN THE HEREAFTER, IT WILL. THANK YOU.

>> GOOD EVENING, BOARD MEMBERS. I'M HERE TO SPEAK ON ITEM 16. THE FILL EMPTY STOREFRONTS ACT. WHAT I'M SEEING IN MY NEIGHBORHOOD C1, BUSINESSES DISAPPEAR AND LEAVE AN EMPTY HOLE. I'M GLAD TO SEE THE LAND USE AND ECONOMIC DEVELOPMENT POLICY WHICH FOR SOME REASON NOT CLEAR TO ME AND NOT IN YOUR MINUTES WHICH HAS DECIDED THE FILL EMPTY STOREFRONTS AT LEAST IT'S SOME INDICATION THE CITY HAS SOME CONCERN ABOUT THE GROWING DEARTH OF BUSINESSES AND THE SUFFERING OF SMALL BUSINESSES IN THE CITY. SO I DON'T UNDERSTAND WHY THIS IS BEING PULLED. WHY IT'S NOT BEING

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ENACTED ON AND AS OTHERS HAVE SAID, I WOULD LIKE TO KNOW THIS COUNCIL CARES ABOUT THE SMALL BUSINESSES THAT ARE STRUGGLING. THE LATEST IN MY NEIGHBORHOOD IS BERKELEY LIGHTING ON SAN PABLO WHICH MAY BE DISAPPEARING SOON. SO THIS IS TROUBLING TO SEE COUNCILMEMBERS DECIDING TO PULL SOMETHING FOR SOME REASON AND THEN NOT TAKING ACTION. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> HELLO, MY NAME IS GABRIELA. I'M HERE TO SAY WORDS. WORDS ARE PRETTY, WORDS ARE EASY. WHY ARE MY MUSLIM COMMUNITY MEMBERS THAT HAVE JUST BEEN TARGETED BY HATE TAKING THIS OPPORTUNITY TO TALK ABOUT OTHER MUSLIM HATE, OTHER HATE JUST PERIOD. BECAUSE THEY, PEOPLE IN PALESTINE, PEOPLE ANYWHERE ARE AN EXTENSION OF US. WE CARE ABOUT THESE PEOPLE. AND IT IS BEAUTIFUL TO SAY THAT WE STAND AGAINST HATE. WE DO THIS. BUT WITHOUT ACTION, WITHOUT STOPPING DISMANTLING THE ISSUES THAT ALLOW FOR A GENOCIDE TO CONTINUE, FOR SPEAKING AGAINST DIVESTMENT OR NOT CALLING TO STOP THE GENOCIDE AS PART --

>> MAYOR ISHII: YOUR TIME IS UP. THANK YOU.

>> THANK YOU.

>> HELLO, MAYOR, AND COUNCIL. I WOULD LIKE TO DRAW YOUR ATTENTION TO THE PUBLIC SAFETY ASPECTS OF A RESOLUTION IN THE COUNCIL NOT HAVING PASSED ONE. IT DOESN'T ONLY AFFECT OUR COMMUNITY MEMBERS AND BUSINESSES THAT HAVE BEEN VANDALIZED WITH

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HATE CRIMES. ON SUNDAY FEBRUARY 23RD I WAS OUTSIDE -- ON U.C. BERKELEY CAMPUS RIGHT BY CITY PROPERTY, BANCROFT AVENUE, AND I WATCHED ISRAELI MEN WITH ISRAELI FLAGS HARASSING AND INTIMIDATING AMERICANS WHO WERE EXERCISING THEIR FREE SPEECH RIGHTS. I WAS APPALLED ANY FOREIGNERS WITH FOREIGN FLAGS WOULD BE ALLOWED TO DO THAT. AND THEN I THOUGHT ABOUT THE ACCOUNTS OF THE ATTACKS ON PEACEFUL GROUPS AT U.C.L.A. BY ISRAELIS INCLUDING WITH STEEL PIPES. AND THEN I THOUGHT ABOUT THE ATTACKS ON STUDENTS AT COLUMBIA UNIVERSITY BY ISRAELIS WITH A CHEMICAL WEAPON ISRAELIS USE AGAINST PALESTINIANS CALLED SKUNK SPRAY. I REALIZED IT'S ONLY A MATTER OF TIME, PERHAPS, THESE FOLKS ARE HERE, THEY HAVE ALREADY BEEN HARASSING CITIZENS IN BERKELEY, WILL IT LEAD TO MORE VIOLENCE? SO THAT'S WHY I WOULD LIKE TO DRAW YOUR ATTENTION TO THE SAFETY ASPECTS. I REALLY FEEL PEOPLE ARE EMBOLDENED. AND I THINK THE CITY NEEDS TO STEP UP AND PROTECT US, FOR GOODNESS SAKES. THERE ARE PEOPLE WHO ARE REALLY VIOLENT AND THEY REALLY MEAN BUSINESS. DAMAGING BUSINESSES IS ONE THING. GETTING UP IN PEOPLE'S FACES WHO ARE EXPRESSING THEMSELVES IS ANOTHER. AND THE NEXT STEP WE FEAR IS VIOLENCE. THERE WERE PEOPLE THERE WHO WERE LEGAL OBSERVERS THEY TOLD ME THESE PEOPLE, THEY HAD SEEN THEM BEFORE AND THEY WERE ISRAELI OPERATIVES. WE KNOW THEY ARE HERE. PLEASE TAKE STEPS TO PROTECT US FROM THAT VIOLENCE AND OUR STUDENTS ON THE U.C. BERKELEY

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CAMPUS. THANK YOU.

>> MAYOR ISHII: THANK YOU. I THINK WE HAVE A FEW MORE IN PERSON AND I THINK WE MIGHT HAVE SOME ONLINE. GO AHEAD.

>> GOOD EVENING, I'M HERE TO SPEAK ON ITEM 14, COURTNEY PAL, WITH R.C.D. WE ARE A BERKELEY BASED AFFORDABLE NONPROFIT HOUSING DEVELOPER. AND WE ARE HERE TO SPEAK IN SUPPORT OF THIS ITEM TODAY. AS WE ALL KNOW, PRESERVING AND PROTECTING AFFORDABLE HOMES IS I A KEY STRATEGY TOWARDS ENDING HOMELESSNESS AND IMPROVING HOUSING STABILITY FOR LOW-INCOME HOUSEHOLDS IN BERKELEY. IT'S REALLY IMPORTANT THAT THE CITY IS ABLE TO MAINTAIN ITS EXISTING SUPPLY OF AFFORDABLE HOUSING WHICH IS AGAIN, LIKE IN VERY SHORT SUPPLY COMPARED TO THE NEED IN THE COMMUNITY TO MAINTAIN THAT AS SAFE AND MODERN HOMES OVER A LONG LIFE SPAN. AND THE TRANSFER TAX IN THE STUDY PROPOSED IN ITEM #14 WOULD FACILITATE NONPROFIT OPERATORS IN DOING JUST THAT, IN KEEPING AFFORDABLE HOMES AFFORDABLE FOR THE LONG TERM. I ASK FOR YOUR SUPPORT FOR THIS ITEM TONIGHT. THANKS.

>> MAYOR ISHII: THANK YOU.

>> COUNCILMEMBERS, WE USED TO CHANT THE WORDS WITHOUT ACTIONS TURN TO LIES. AND ALTHOUGH COUNCILMEMBER TREGUB, I APPRECIATE YOUR GESTURE. BUT I THINK, UNFORTUNATELY IT WILL BECOME A HOLLOW GESTURE, IF WE DON'T LINK THAT GESTURE TO THE CAUSE OF THE PROBLEM. UNFORTUNATELY, THE SILENCE OF THIS COUNCIL AND THE U.S.

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POLICY TOWARD THE PALESTINIAN PEOPLE IS WHAT HAS ENABLED THE GENOCIDE. IS WHAT ENABLES THE DESTRUCTION OF THAT CULTURE AND THOSE PEOPLE. AND IT IS OUR SILENCE THAT ENABLES U.S. POLICY. WE HAVE TO SEPARATE OURSELVES FROM THAT. WE HAVE TO DISTINGUISH OUR CITY FROM TRUMP. AT THE THOUGHT OF 5,000 PALESTINIANS A DAY BEING FORCIBLY RELOCATED WITH THE CONSENT AND THE URGING OF OUR GOVERNMENT, WE HAVE TO SEPARATE FROM THAT.

>> MAYOR ISHII: THANK YOU.

>> SO PLEASE ADD THE RESOLUTION, THE AMENDMENT.

>> MAYOR ISHII: THANK YOU, YOUR COMMENT TIME IS OVER.

>> GOOD MORNING OR GOOD EVENING COUNCIL, MY NAME IS AUDREY BURN, I'M A LAW STUDENT AT U.C. BERKELEY. I WANT TO SUPPORT THE RESOLUTION CONDEMNING ANTI-MUSLIM HATE IN OUR COMMUNITY. I ALSO WANT TO URGE THIS COUNCIL TO SUPPORT A RESOLUTION AGAINST GENOCIDE, SUPPORTING A CEASE FIRE. I THINK IT'S CLEAR FROM EVERYBODY WHO HAS SPOKEN TONIGHT THAT AS THE LEADERS OF OUR COMMUNITY, AS PEOPLE WHO REPRESENT US AND REPRESENT OUR VALUES, IT'S CLEAR WHAT THE PEOPLE OF BERKELEY WANT AND WHAT OUR VALUES ARE. AND I'M NOT SURE WHAT ELSE WE NEED IN ORDER TO PASS THE RESOLUTION AGAINST GENOCIDE AND AGAINST ALL THE HATE THAT'S BEEN GOING ON AGAINST MUSLIM PEOPLE IN OUR COMMUNITY. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> COUNCIL TREGUB'S RESOLUTION IS WELL-MEANING, LET'S ALL BE

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HONEST, AS OTHERS HAVE SAID, IT'S NO COINCIDENCE THAT JAFFA COFFEE AND BERKELEY COMMUNITY PHYSICAL THERAPY, PLACES THAT HAVE BEEN OUTSPOKEN FOR THE PLIGHT OF THE PALESTINIAN PEOPLE ARE THE BUSINESSES THAT HAVE BEEN MOST VANDALIZED AND MOST TARGETED FOR HATE CRIMES. THE GENOCIDE IS THE ROOT OF THE PROBLEM. SO I WOULD URGE YOU TO ADD THE AMENDMENT THAT ELANA AUERBACH AND ARREGUIN PROPOSED TO THIS ANTI-HATE RESOLUTION. THEY ARE NOT OUTSIDE ANTAGONISTS, THE JCRC IS.

>> JCRC SHOULD NOT BE IN THIS MEETING EVER. AND YOU SHOULD NOT BE LISTENING TO ZIONISTS. AND YOU SHOULD ADD THOSE WHEREAS CLAUSE AND THEREFORE BE IT RESOLVED TO THE AMENDMENT. AND WHEN WE HAVE A COUNCILMEMBER THAT GOES TO THE IG-NAUGURATION EVEN THOUGH HE STATED HE DIDN'T GET TO GO IN BECAUSE IT WAS CANCELLED, I DON'T KNOW IF I BELIEVE THAT TO BE TRUE. THE FACT YOU WENT TO D.C. FOR IT TO BEGIN WITH, IS A PROBLEM. AND HE IS A RACIST, FASCIST FREAKIN' PIG THAT DOESN'T GIVE A CRAP ABOUT ANY OF US. WANTS TO YOU KNOW, GET RID OF BLACK PEOPLE, ANYTHING BLACK. ANYTHING, YOU KNOW, PALESTINIAN. DOESN'T SUPPORT HUMANITY. IT'S JUST APPALLING. AND YOU ALL HAVE TO PASS THIS RESOLUTION IMMEDIATELY. PEOPLE ARE DYING.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS. YOUR TIME IS UP. YOUR TIME IS UP. PLEASE STOP SCREAMING. PLEASE STOP SCREAMING. COUNCILMEMBER DAVILA? COUNCILMEMBER DAVILA? YOUR TIME IS UP.

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YOUR TIME IS UP. PLEASE LET THE NEXT SPEAKER SPEAK.

>> THAT WAS AMAZING CHERYL. MADJE BACK. I WANT TO GIVE CONTEXT TO EVERYTHING SAID, I WAS RAISED IN NAPA VALLEY BUT I'VE BEEN TO THE WEST BANK PART OF PALESTINE, ALSO KNOWN AS JUDEA, I LIVED THERE BETWEEN 1997-2000 OCCUPIED HE BRON H2 IN THE WEST BANK. I WANT TO GIVE TIME TO MY COUSIN, THEY THREW ROCKS AT ISRAELI FORCES AND HAS BEEN IN JAIL 63 DAYS, I JUST FOUND OUT HE WILL DO A YEAR IN JAIL FOR THROWING A ROCK AT SOME ISRAELI JEEP IN HIS VILLAGE, OUR VILLAGE. WE DON'T HAVE DUE PROCESS. WE AREN'T ALLOWED THE RIGHT TO BEAR ARMS LIKE THE POLICE OFFICERS CARRYING FIREARMS, EVEN THOUGH WE HAVE THAT HERE AS SECOND AMENDMENT, THERE'S NO CITY COUNCIL, NO KANGAROO COURT. WE DON'T HAVE RIGHTS.

>> MAYOR ISHII: THANK YOU. OKAY I SEE YOU.

>> JUST GIVE ME 30 SECONDS. BASICALLY WHAT I'M DESCRIBING IN THE WEST BANK YOU HAVE MUSLIMS AND CHRISTIANS, THIS INCLUDES BETHLEHEM JESUS WAS BORN. I JUST WANT TO SAY THIS TWO-TIERED LEGAL SYSTEM IS ILLEGAL, IT'S INHUMANE. IT'S SO CRAZY. IT SPEAKS JIM CROW, IT SPEAKS SOUTH AFRICA. YOU CAN'T PASS A LITTLE CEASE FIRE RESOLUTION, I SEE LGBTQ+ FLAGS, BLACK LIVES MATTER, LAND ACKNOWLEDGES WITH THE U.S. AND CALIFORNIA FLAG. PEOPLE ARE LAUGHING AT YOU GUYS FROM BUSINESS OWNER TO FELLOW BERKELEY RESIDENT TO CAL ALUMNI, I HAVE NO AGENDA, THERE'S NO OPTIC. I

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ASK YOU, ESPECIALLY PEOPLE WHO HAVE FORWARDED THIS RESOLUTION OR SOMEONE'S OFFICE WHO DID A PIECE ON OUR JAFFA COFFEE ROSTERS, I WON'T SAY YOUR NAME. GO SEE IT, IN I'M LYING COME LOOK AT MY EYES AND SAY YOU ARE LYING MAJDE. I'M NOT LYING, WE'RE NOT LYING.

>> I HAVE 25 SECONDS THAT WEREN'T LEFT BY THE PERSON I CEDED MY MINUTE TO. I'M HOPING THIS IS JUST THE FIRST PHASE, THERE NEEDS TO BE ADDITIONAL REVISIONS TO HAVE CONSISTENCY BETWEEN COMMISSIONS. SECOND ON THE BUSD PREFERENCES NLT CITY BUSD WORKFORCE HOUSING, THE REPORT DOESN'T EXPLAIN HOW THE SUPPLIES WITH BUSD PREFERENCE FRAMEWORK AND I'M HOPING THAT HOMELESS FAMILIES WITHIN BUSD WITHIN THE SCHOOLS ARE BEING ADDRESSED AND THAT ALSO UNDOCUMENTED IMMIGRANTS --

>> MAYOR ISHII: I THINK YOUR TIME IS UP FROM YOUR 25.

>> FALL INTO HOMELESSNESS WOULD BE ADDRESSED.

>> MAYOR ISHII: THANKS, I KNOW YOU SAID YOU HAD 25 SECONDS LEFT. THANK YOU. SORRY, ARE THERE ONLINE?

>> CITY CLERK: YES. EIGHT SPEAKERS.

>> MAYOR ISHII: I'M SORRY, JUST FOR FOLKS ONLINE, THIS IS FOR PUBLIC COMMENT ON THE CONSENT CALENDAR AND INFORMATION ITEMS ONLY.

>> CITY CLERK: FIRST IS A SPEAKER WITH A PHONE NUMBER ENDING IN 538.

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>> MAYOR ISHII: I'M SORRY, MARK, COULD YOU LET ME KNOW HOW MANY FOLKS ARE THERE?

>> CITY CLERK: NINE CURRENTLY. I

>> MAYOR ISHII: I WANT TO DO A QUICK CHECK WITH COUNCIL. HOW ARE FOLKS DOING? DO WE NEED TO TAKE A BREAK, OR? I DON'T THINK THE CAPTIONER NEEDS A BREAK. WE NEED TO MOVE ON, I WANTED TO GIVE FOLKS AN OPPORTUNITY BECAUSE WE HAVE BEEN SITTING A LONG TIME.

>> I WILL TALK ABOUT PHYSICAL THERAPY ATTACK. WHAT WE HAVE, IDIOCRASY OF MAYOR ARREGUIN AND BERKELEY CITY COUNCIL USE THIS MONSTER CALLED TRUMP. THE FIRING HUNDREDS OF THOUSANDS OF PUBLIC EMPLOYEES, THESE PEOPLE HAVE MORTGAGES, HAVE HOMES, KIDS, HAVE EDUCATION. THIS IS UNREAL. MAYOR ARREGUIN, I CURSE YOU, COUNCILMEMBER I CURSE YOU FOR WHAT YOU DID TO THE COUNTRY, HE IS DESTROYING THE COUNTRY, HE IS A MOLE FOR RUSSIA, A PUPPET FOR PUTIN. YOU ARE AWESOME PEOPLE, ALSO CAUSED ME MILLIONS IN DAMAGE. YOU HAVE BEEN BRAIN DEAD FOR THE LAST COUPLE YEARS. VERY SORRY. SHAME ON THE CITY. [INDISCERNIBLE] ARREGUIN, SHAME NOT ONLY BERKELEY, SHAME --

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS. I'M SORRY, YOUR TIME IS UP.

>> CITY CLERK: OKAY, NEXT IS SOPHIA DEWITT.

>> GOOD EVENING, COUNCILMEMBERS, REVEREND SOPHIA DEWITT SPEAKING ON BEHALF OF EAST BAY, AND ITEM 14 ON THE CONSENT AGENDA WHICH

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WOULD BEGIN A STUDY OF A POSSIBLE TRANSFER TAX EXEMPTION FOR 100% AFFORDABLE PROPERTIES THAT WOULD MAKE IT EASIER FOR THOSE AFFORDABLE DEVELOPERS TO KEEP EXISTING AFFORDABLE PROPERTIES IN THE CITY OF BERKELEY. AFFORDABLE BY REDUCING COSTS WHEN THEY ARE MAKING RENOVATIONS, UPGRADES OR NEEDED REPAIRS. THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS OUR DIRECTOR OF POLICE ACCOUNTABILITY HANSELL AGUILAR.

>> GOOD EVENING, MADAM MAYOR AND COUNCILMEMBERS, MY NAME IS HANSEL AGUILAR, I'M WITH THE POLICE ACCOUNTABILITY BOARD, I'M CALLING IN CONSENT ITEM #3, THE BOARD APPOINTMENT. FIRST I WOULD LIKE TO EXPRESS MY GRATITUDE FOR MR. RANDY WELLS FOR AGREEING TO TAKE ON THE IMPORTANT CHALLENGE. THIS COMMITMENT IS VITAL TO SUPPORT THE ESSENTIAL WORK FOR THE COMMUNITY AT LARGE. I WOULD LIKE TO THANK THE COUNCIL FOR APPOINTING A NEW MEMBER TO THE POLICE ACCOUNTABILITY BOARD. I WOULD LIKE TO RESPECTFULLY RAISE SOME CONCERNS REGARDING THE BOARD'S CURRENT COMPOSITION. WHILE THE STAFF REPORT INDICATES THERE WILL ONLY BE ONE VACANCY REMAINING, THE CURRENT COUNT IS FIVE MEMBERS, THIS APPOINTMENT WILL BRING TO SIX MEMBERS, STILL SHORT OF ITS FULL CAPACITY, NINE. THIS PRESENTS A SIGNIFICANT CHALLENGE FOR THE BOARD AND OUR OFFICE TO EFFECTIVELY CARRY OUT THE WORK. ADDITIONALLY, I

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UNDERSTAND SOME NEW COUNCILMEMBERS HAVE --

>> MAYOR ISHII: SORRY, YOUR TIME IS UP.

>> THE BOARD MEMBERS CHOSEN BY THE PREDECESSORS.

>> MAYOR ISHII: YIELDED FROM SOMEONE IN THE AUDIENCE TO GIVE YOU ANOTHER MINUTE. SOLI. SORRY, CONTINUE ON. HANSEL, YOU HAVE ANOTHER MINUTE.

>> I UNDERSTAND COUNCILMEMBERS REAPPOINTED BOARD MEMBERS CHOSEN BY PREDECESSORS, SHOULD THOSE BOARD MEMBERS DECIDE TO APPOINT NEW INDIVIDUALS THIS COULD FURTHER TURNOVER THE STABILIZATION, THE STABILITY IS IMPORTANT FOR EFFICIENCY AND CONTINUITY. I URGE THE COUNCIL TO CONSIDER PRIORITIZING FILLING THESE VACANCIES AS SOON AS POSSIBLE. FOR COUNCILMEMBERS CONSIDERING NOT APPOINTING I RECOMMEND APPOINTING EXISTING BOARD MEMBERS WHOSE EXPERIENCE AND KNOWLEDGE IS IMPORTANT FOR THE BOARD FUNCTION. THANK YOU FOR YOUR COMMITMENT TO SUPPORTING THE WORK OF THE BOARD AND OFFICE.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS RABBI CAT ZAVIS.

>> CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> GREAT, THANK YOU SO MUCH, MY NAME IS RABBI CAT ZAVIS. I IMPLORE YOU TO ADOPT THE AMENDMENT OFFERED BY NAGEEN AND ELANA. LOVE OF THIS KIND THIS SY FIERCE FEARLESS LOVE, A LOVE THAT REQUIRES US TO NAME WHAT IS, NAMELY THAT THE UNDERLYING CAUSE OF

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HATRED IS THE GENOCIDE IN GAZA. HATE WILL ONLY GROW AGAINST BOTH MUSLIMS AND JEWS. THIS IS PERHAPS NOT EASY FOR YOU AS POLITICIANS BUT AS COMMUNITY LEADERS YOU MUST TAKE A STAND. THE COMMUNITY HAS BEEN BEGGING YOU FOR MORAL LEADERSHIP. IT'S THE ONLY PATH AGAINST HATE AND TOWARDS LOVE. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS MATI TEIBLUM.

>> MY NAME IS MATI TEIBLUM. I'M ISRAELI, I'M AN AMERICAN, I'M A FATHER OF THREE AND HUSBAND OF ONE HERE IN BERKELEY. I SALUTE YOU FOR TAKING A STANCE AGAINST HATE. I WANT TO ENCOURAGE YOU TO TAKE A STAND AGAINST ALL FORMS OF HATE. INCLUDING THE HATE AND THE VITRIOLE THAT YOU SEE IN THIS ROOM AGAINST ME AND MY HERITAGE AND MY COUNTRY OF ISRAEL. ANTI-ISRAEL AND ANTI-ZIONIST HATE HAS BEEN PROLIFERATING IN THE BOARD ROOM IN FRONT OF YOU. HATE CRIMES IN FRONT OF YOU IN THAT VERY ROOM. AND THAT IS SOMETHING THAT YOU NEED TO ADDRESS. HATE CANNOT BE STOPPED WITH OTHER HATE. IT HAS TO STOP WITH LOVE. AND I URGE YOU TO TAKE THIS STEP NOT TOWARDS THE RESOLUTION FOR A CEASE FIRE BUT FOR A RESOLUTION FOR PEACE. WE SHOULD BE ASPIRING TOWARD PEACE.

>> MAYOR ISHII: THANK YOU SO MUCH FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS ARAM JAMES.

>> OKAY, SO, MY TRUE NAME IS ARAM FINKLESTEIN. I CAN TELL YOU THAT'S THE ONLY WAY ANTI-SEMITISM WILL LAND IS FOR US TO SAY NO

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TO ZIONISM, FOR US TO SAY NO TO THE APARTHEID STATE OF ISRAEL, FOR US TO SAY NO TO OUR OWN COUNTRY'S FUNDING OF THIS VIAL GENOCIDE. THE PEOPLE IN THE WEST BANK ARE HAVING THEIR HOMES DESTROYED. OF COURSE JEWS CANNOT FEEL SAFE IN THIS COUNTRY WHEN WE DON'T TAKE A STAND AND WE HAVE TO ALL STAND TOGETHER INCLUDING THAT GENTLEMEN WHO SAYS HE IS ISRAELI, IF HE CARES ABOUT PEACE THEN YOU MUST SAY NO TO THE COUNTRY OF ISRAEL THAT, IN MY ESTIMATION MUST BE ELIMINATED, A ONE STATE SOLUTION IS THE ONLY WAY TO GO. ELIMINATE THE STATE OF ISRAEL NOW. LET'S THEN BEGIN TO LIVE SIDE-BY-SIDE, ONE VOTE IN A TRUE DEMOCRACY. WHY ARE ISRAELI ZIONISTS SO AFRAID OF DEMOCRACY.

>> CITY CLERK: THANK YOU, YOUR TIME IS UP. NEXT SPEAKER IS KELLY HAMMARGREN. KELLY? THANK YOU.

>> THANK YOU. I WANT TO THANK COUNCILMEMBERS TAPLIN AND LUNAPARRA FOR CO-AUTHORING WITH COUNCILMEMBER TREGUB THE URGENCY ITEM. AND I ALSO THANK ALL OF THE PUBLIC FOR THEIR COMMENTS IN SUPPORT. I WANT TO THANK YOU FOR THE UPDATED COMMISSIONERS' MANUAL AND I REALLY WANT TO ASK, WHO DO I CONTACT WHEN THE MINUTES ARE NOT POSTED? BECAUSE THE COMMISSIONS ARE NOT POSTING THE MINUTES UNTIL THE NEXT MONTH. SO I HOPE THAT WILL BE RESOLVED WITH THE NEW MANUAL. AS FOR NUMBER 16 FOR EMPTY STOREFRONTS, WE ARE IN A HEAP OF TROUBLE. AND I'M AFRAID THAT THE EMPTY STOREFRONTS IS ONLY GOING TO GET WORSE WITH WHAT'S

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HAPPENING NATIONALLY AND ALL THE PEOPLE WHO ARE LOSING THEIR JOBS. SO THOSE ARE MY COMMENTS. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU, YOU WOULD CONTACT THE SECRETARY OF THE COMMISSION TO GET THOSE MINUTES. SORRY, JUST TO CHECK, ARE WE AT FIVE COMMENTS LEFT? I'VE LOST TRACK. TWO.

>> CITY CLERK: TWO MORE. NEXT IS DIETMAR LORENZ.

>> HI. HONORABLE MEMBERS OF THE COUNCIL AND MAYOR, I WOULD LIKE TO SPEAK ON ITEM 10 ON THE COUNCIL CALENDAR OF THE BUSD WORKFORCE HOUSING. I'M A D1 RESIDENT AND BUSINESS NEIGHBOR I SERVED ON THE DESIGN ADVISORY COMMITTEE FOR THIS PROJECT AND A PARENT OF A BUSD STUDENT. THE PROPOSED INTEGRATION OF THE CITY AND BUSD PREFERENCE LIST LEAVES MANY QUESTIONS OPEN. WILL THIS BE A TROJAN HORSE THAT WILL HOLLOW OUT THE PROMISE OF BUSD WORKFORCE HOUSING? IS THERE A CLEAR AND UNAMBIGUOUS FIRST RIGHT OF REFUSAL FOR BUSD EMPLOYEES? BOTH FOR THE INITIAL OCCUPANCY AND FUTURE OPENINGS? BUSD HAS GIVEN UP SCARCE -- FOR THIS PROJECT. YET NO ADEQUATE OPPORTUNITY FOR PUBLIC DISCOURSE. I ASK YOU TO PULL THIS OFF THE CONSENT CALENDAR AND ALLOW FOR MORE PUBLIC INFORMATION AND DISCUSSION ABOUT THAT. IF I HAVE A FEW SECONDS LEFT, ITEM 16.

>> CITY CLERK: SORRY, YOUR TIME IS UP.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. THANK YOU FOR YOUR COMMENT.

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>> CITY CLERK: NEXT IS MARIA SOL.

>> YES. THANK YOU. AND ESPECIALLY YOU, MADAM MAYOR. BECAUSE YOU REALLY HAVE CHANGED THE TONE AND THE DECORUM OF OUR MEETINGS. WE CANNOT ACHIEVE ANY OF THESE LOFTY PEACEFUL POSSIBILITIES IF WE DON'T BEHAVE PEACEFULLY AND RESPECTFULLY. AND LISTEN TO ONE ANOTHER. AND YOU SET THE SPACE FOR US TO DO THAT AND I CAN'T THANK YOU ENOUGH. I KEEP STRESSING WE ARE ALL HUMAN. WE ALL ARE CONCERNED. AND SOME OF US ARE REALLY TERRIFIED AND THEREFORE MANY OF US ARE ANGRY. BUT THEN IF WE START TO FIGHT AGAIN, WE WILL NEVER ACHIEVE WHAT WE ARE LOOKING FOR. SO PLEASE, PLEASE RECEIVE MY APPRECIATION FOR ALL THE PEOPLE THAT ARE HERE THAT ARE TRYING TO COME TOGETHER WHICH IS WHAT WE MUST DO IN ORDER TO ACHIEVE THIS HARMONY. THANK YOU.

>> MAYOR ISHII: THANK YOU SO MUCH. APPRECIATE IT.

>> CITY CLERK: SORRY, NO MORE SPEAKERS ON ZOOM.

>> MAYOR ISHII: THANK YOU. I WILL NOW TAKE COMMENTS. I KNOW COUNCILMEMBER HUMBERT HAD HIS HAND UP FOR QUITE A WHILE. I'M GOING TO START THERE.

>> M. HUMBERT: OKAY, THANK YOU, MADAM MAYOR. AND WE MISSED THE OPPORTUNITY FOR ME TO READ A STATEMENT ABOUT POLLY ARMSTRONG, IN CONNECTION WITH OUR ADJOURNMENT, IN HER MEMORY. AND SO I WOULD LIKE TO START OUT MY COMMENTS ON THE CONSENT CALENDAR WITH THAT STATEMENT. I'M REALLY HONORED TO SERVE AS ONE OF POLLY'S

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SUCCESSORS AS COUNCILMEMBER FOR D-8. IT MAY SEEM STRANGE BUT I THINK A GOOD PLACE TO START WITH OUR REMEMBRANCE FOR POLLY ARMSTRONG IS HER DEFENSE OF TINKY WINKY. YES, THE TINKY WINKY, THE TELETUBBY, THE ONE WHO WALKED AROUND WITH A PURPLE SUIT ON AND A PURSE. I ACTUALLY DIDN'T THINK OF THAT UNTIL THIS WEEK. BUT ONE OF THE NATIONAL ISSUE THAT'S COUNCILMEMBER ARMSTRONG TOUCHED ON DURING HER TENURE IN COUNCIL WAS PUSHING BACK AGAINST JERRY FALWELL'S ABSURD AND BIGOTED VENDETTA AGAINST A CHILDREN'S TV CHARACTER. SHE BROUGHT THIS SPIRIT AND POSITIVITY TO CITY COUNCIL AND EVERYTHING SHE DID IN LIFE AND A WONDERFUL EXAMPLE AS WE FACE THESE NEW AND RISING THREATS OF INTOLERANCE AND IRRATIONALITY. AS DISTRICT 8'S COUNCILMEMBER FROM '94-2002, POLLY WAS PROGRESSIVE BUT PRAGMATIC. I WOULD LIKE TO FEEL LIKE THAT IS PART OF D-8'S CULTURE AND I WOULD LIKE TO CONTINUE THAT APPROACH. BUT POLLY WAS HARDLY JUST ABOUT POLITICAL GESTURES. AS COUNCILMEMBER SHE WAS INSTRUMENTAL IN HELPING D-8 CONTINUE ITS RECOVERY FROM THE 1991 FIRESTORM. AND SHE HELPED REVITALIZE DOWNTOWN. SHE WAS A CHAMPION FOR THE DOWNTOWN BERKELEY ARTS DISTRICT. AND AS HEAD LATER OF THE BERKELEY CHAMBER OF COMMERCE, SHE TURNED THE ORGANIZATION AROUND AND HELPED TO GREATLY STRENGTHEN OUR BUSINESS COMMUNITY. SHE EXCELLED GETTING DOWN TO BRASS TAX AND WORKING ACROSS IDEOLOGICAL DIVIDES. I HOPE THIS IS THE ENERGY THAT STAYS WITH US AS WE REFLECT ON HER LIFE AND

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ACHIEVEMENTS. I FIRST MET POLLY IN 1999 AFTER OUR WHEELCHAIR-BOUND NEIGHBOR SHARON SPENCER DIED BY TRAFFIC VIOLENCE. SHE JOINED WITH US AT A PROTEST THAT LITERALLY SHUT DOWN THE INTERSECTION FOR A HALF HOUR. HER COURAGE INSPIRED ME TO WORK TO IMPROVE PEDESTRIAN SAFETY, A MISSION WHICH I'M STILL ENGAGED IN AND THANK POLLY FOR THAT. I WANT TO EXTEND MY CONDOLENCES TO POLLY'S FAMILY. THANK YOU TO JOHN ARMSTRONG, HER HUSBAND, DAUGHTERS AMY AND AMANDA, SISTERS CAROL, HER NEPHEWS ROBERT AND MICHAEL AND GRANDDAUGHTERS LUCY, MARGARET, SUSANA AND ANNI FOR BEING SO GENEROUS IN SHARING POLLY WITH US. POLLY GAVE SO MUCH TO OUR COMMUNITY. WE ARE INDEBTED TO HER AND TO YOU, HER FAMILY, FOR THE TIME, ENERGY AND LIGHT SHE GAVE TO ALL OF US. I WANT TO END WITH A QUOTE FROM POLLY. WHEN SHE WAS INTERVIEWED ABOUT THE TINKY WINKY EPISODE. WHEN YOU SEE BIGOTRY AND SELF-RIGHTEOUSNESS OUT THERE, YOU REALLY NEED TO STAND UP TO IT. EVEN WHEN IT'S ABSURD. I HOPE WE CAN ALL LIVE BY THOSE WISE WORDS AND PASSIONATE. POLLY, YOUR LEGACY LIVES ON THROUGH YOUR FAMILY AND ALL THE WONDERFUL THINGS YOU DID FOR YOUR COMMUNITY IN BERKELEY. YOU ARE IRREPLACEABLE AND GREATLY MISSED. THANK YOU. THAT'S MY STATEMENT ABOUT POLLY. I COULD GO ON AND MAKE COMMENTS ON THE REST OF THE CONSENT CALENDAR. OR I COULD LET SOMEONE ELSE HAVE A TURN AND DO THAT LATER.

>> MAYOR ISHII: I THINK YOU SHOULD FINISH YOUR COMMENTS. AND

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THANK YOU HE HAVE MUCH FOR THE VERY TOUCHING STATEMENT ABOUT POLLY.

>> M. HUMBERT: THANK YOU, MADAM MAYOR. ON THE CONSENT CALENDAR, I WANT TO SAY JUST HOW STRONGLY I SUPPORT THE MEASURE BROUGHT BY COUNCILMEMBER TREGUB, ALONG WITH COUNCILMEMBERS LUNAPARRA AND TAPLIN, CONDEMNING THE HORRIBLE RACIST, ANTI-MUSLIM INCIDENT, VISITED UPON OUR COMMUNITY MEMBER NAGEEM NOSAID (?) I WILL VOTE TO CONTINUE THAT ON THE CONSENT CALENDAR AND VOTING FOR IT. AS FOR ITEM #3, MY APPOINTMENT TO THE POLICE ACCOUNTABILITY BOARD, I HAVE APPOINTED I THINK A VERY STRONG CANDIDATE TO SUCCEED OUR FORMER D.A. APPOINTEE, COUNCILMEMBER BLACKABY. SO I REALLY WANT TO WELCOME MY NEW APPOINTEE RANDY WELLS TO THE P.A.B. YOU HAVE MY GRATITUDE FOR TAKING ON THIS IMPORTANT WORK. LET'S SEE. AND THEN I WOULD LIKE TO BE MARKED AS ABSTAINING ON ITEM 15.

>> CITY CLERK: ITEM 15 HAS BEEN WITHDRAWN.

>> M. HUMBERT: OH IT'S BEEN WITHDRAWN. THANK YOU. FINALLY I WANT TO CONFIRM WITH RESPECT TO ITEM 16, IT'S ON THE CONSENT CALENDAR, CORRECT, MR. CLERK, TO TAKE NO ACTION?

>> CITY CLERK: YES. BEFORE WE VOTED I WAS GOING TO CLARIFY BUT I WILL DO IT NOW, ITEMS 14 AND 16 WE ARE ADOPTING THE POLICY COMMITTEE RECOMMENDATION.

>> M. HUMBERT: THANK YOU.

>> CITY CLERK: THAT WOULD BE THE STANDARD PROCEDURE. IF THERE'S

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ANY DIFFERENCE TO THAT STANDARD PROCEDURE, IF A COUNCILMEMBER WANTS TO NOTE THAT. BUT THAT'S WHAT WE WOULD BE DOING, WE WOULD BE ADOPTING THE POLICY COMMITTEE RECOMMENDATION ON 14 AND 16.

>> M. HUMBERT: THANK YOU VERY MUCH. THAT'S ALL I HAVE.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER O'KEEFE IS NEXT.

>> S. O'KEEFE:[OFF MIC]

>> MAYOR ISHII: OH, OKAY. OH MY GOSH, THIS THING IS -- ALL RIGHT. WELL I'VE GOT COUNCILMEMBER TREGUB, TAPLIN, SO I DON'T KNOW WHO WAS FIRST. COUNCILMEMBER TREGUB THEN, THANK YOU. SO WE ARE GOING TO GO TO COUNCILMEMBER TREGUB, TAPLIN AND THEN I THINK IT'S LUNAPARRA, BLACKABY. OKAY.

>> I. TREGUB: THANK YOU. THANK YOU SO MUCH, MADAM MAYOR. I WOULD LIKE TO THANK THE COUNCIL AND MY FELLOW COUNCILMEMBERS, BARTLETT AND O'KEEFE, FOR CO-SPONSORING MY REFERRAL TO THE CITY MANAGER TO MAKE A RECOMMENDATION FOR FURTHER COUNCIL ACTION, WHICH WOULD BE A TRANSFER TAX EXEMPTION FOR 100% AFFORDABLE HOUSING PROJECTS. I WOULD LIKE TO THANK MY COLLEAGUES FOR CONSIDERING SUPPORTING THIS ON THE CONSENT CALENDAR. AND I WOULD LIKE TO THANK MEMBERS OF THE NONPROFIT AFFORDABLE HOUSING COMMUNITY AND LAND TRUSTS WHO HAVE WRITTEN IN, IN SUPPORT OF THIS ITEM OR SHOWN UP TODAY. IN PARTICULAR COURTNEY POWELL WHO WORKED WITH US LONG HOURS TO MAKE SURE THAT A HIGHLY TECHNICAL ITEM WAS EXPLAINED SUFFICIENTLY, TO HOPEFULLY EARN THE COUNCIL'S

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UNANIMOUS SUPPORT. THIS IS ONE OF THOSE EXAMPLES OF WELL-INTENTIONED POLICY, WHICH I WAS INVOLVED IN CRAFTING LANGUAGE FOR MEASURE P. HELPING PASS MEASURE P AND NOW W, HOMELESS SERVICES. UNFORTUNATELY, THERE WAS AN ISSUE WE DID NOT ANTICIPATE WHEN THE ITEM WAS CRAFTED AROUND THE REQUIREMENT FOR NONPROFIT ENTITIES THAT DO 100% AFFORDABLE HOUSING. AND REHABILITATE EXISTING HOUSING. THAT THEY HAVE TO PAY THIS AS WELL, EVEN THOUGH THE INTENT IS TO MAXIMIZE AFFORDABLE HOUSING, SAFE, SUSTAINABLE, HABITABLE AFFORDABLE HOUSING THAT'S AVAILABLE. SO THIS ITEM IS HERE AS THE FIRST STEP TOWARDS A STUDY BY THE CITY MANAGER TO SEE IF WE CAN'T STREAMLINE THIS. BECAUSE THE TRANSFER TAX WAS NEVER INTENDED TO EMBROIL NONPROFIT AFFORDABLE HOUSING DEVELOPERS. AND THEN I WOULD, ON THE URGENCY ITEM. TODAY MARKS RAMADAN, THE HOLIEST. TWO YEARS AGO AS I WAS LEAVING IFTAR BREAKING THE FAST CEREMONY WHICH I WAS INVITED I LEARNED A SMALL BUSINESS IN MY DISTRICT WAS VANDALIZED WITH HATEFUL WORDS SCROLLED ON ITS WINDOW. THE FOLLOWING MORNING I JOINED COUNCILMEMBERS LUNAPARRA AND TAPLIN IN WRITING THE RESOLUTION THAT WE ARE PRESENTING TODAY. MANY IN OUR COMMUNITY HAVE SADLY EXPERIENCED AN ALARMING BIAS IN HATE-FUELED ATTACKS AND CRIMES. AN INSULT TO ONE IS AN INJURY TO ALL. TODAY IT IS IMPORTANT TO CALL THIS PARTICULAR ANTI MUSLIM HATE CRIME AND ALL ACTS OF ISLAMOPHOBIA OUT FOR WHAT THEY ARE. UNACCEPTABLE HATEFUL

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ACTS AND CONDEMN THEM IN NO UNCERTAIN TERMS. HATE AND DIVISION ARE NOT BERKELEY VALUES, PERIOD. TO ALL OF MY NEIGHBORS WHO HAVE EXPERIENCED ISLAMOPHOBIA, PLEASE KNOW THAT IT DOES NOT SPEAK FOR OUR COMMUNITY, AND THAT WE ARE ENVELOPING YOU IN LIGHT, LOVE AND FRIENDSHIP TODAY AND EVERY DAY. TO ALL THOSE WHO OBSERVE, I WISH YOU A RAMADAN MUBARIC. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU, I MOVE ADOPTION OF THE CONSENT CALENDAR.

>> R. KESARWANI: SECOND.

>> T. TAPLIN: THANK YOU.

>> MAYOR ISHII: WE HAVE OTHER COMMENTS. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I WANTED TO TALK A LITTLE BIT ABOUT THE HATE CRIME THAT OCCURRED THE OTHER DAY. BECAUSE YOU KNOW, PRIMARILY I WAS SADDENED AND ANGERED ON BEHALF OF THE VICTIM OF THE HATE CRIME AND THOSE IN THE COMMUNITY WHO ARE HARMED BUT I WAS ALSO ASHAMED BECAUSE I KNOW I SIT ON A BODY THAT HASN'T DONE ALL IT COULD DO TO PUSH BACK. FOR 17 MONTHS WE AS A BODY HAVE TAKEN ZERO ACTION SYMBOLICALLY OR OTHERWISE. FOR A LONG TIME, THE REASON GIVEN NOT PASSING A RESOLUTION CONDEMNING THIS IS BECAUSE IT WOULD DIVIDE OUR COMMUNITY. BUT HERE WE ARE NOT HAVING DONE ANYTHING WITH A DIVIDED COMMUNITY AND SPIKE IN HATE CRIMES. THIS BUSINESS HAS BEEN VANDALIZED THREE TIMES

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PREVIOUSLY. DESECRATION OF A DRAWING OF A PALESTINIAN BABY CALLING FOR A CEASE-FIRE. I BELIEVE THAT OUR FAILURE TO CONDEMN THE MURDER OF THOUSANDS OF PALESTINIAN CHILDREN EMBOLDENED THEM TO DEFACING A DRAWING OF ONE. I BELIEVE PASSING A RESOLUTION WOULD HELP HEAL OUR COMMUNITY, STEM THE RISING TIDE OF HATE IN OUR COMMUNITY. I KNOW THE PEACE AND JUSTICE COMMISSION HAS PASSED THAT WILL COME TO AGENDA AND RULES SOON. I AGREE WITH EVERY WORD AND I ALSO KNOW THESE WORDS ALONE ARE INSUFFICIENT. WE NEED ACTION AND GAZA RESOLUTION WILL TRULY BRING OUR COMMUNITY TOGETHER AND HELP END THIS ANTI-MUSLIM, HATE. -- THANK YOU.

>> MAYOR ISHII: SORRY, DID YOU HAVE OTHER COMMENTS?

>> C. LUNAPARRA: THOSE WERE ALL MY COMMENTS.

>> MAYOR ISHII: THANKS. COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANK YOU. THANK YOU TO MY COLLEAGUE, COUNCILMEMBER LUNAPARRA. AND THANK YOU TO COUNCILMEMBER TREGUB FOR AUTHORING THE ANTI-MUSLIM HATE RESOLUTION, PROUD TO SUPPORT IT. I AGREE AS A BODY, AS A COMMUNITY, HATE HAS NO ROOM IN BERKELEY. ISLAMOPHOBIA HAS NO PLACE IN BERKELEY AND WE SHOULD CONDEMN IT IN ALL FORMS ANY TIME ANYWHERE WE SEE IT. I ALSO CONDEMN HATE AGAINST OUR LGBTQ+ MEMBERS. I CONDEMN HATE IN RACIST TONES. I CONDEMN HATE IN ANTI-SEMITIC HATE SPEECH IN BERKELEY. I THINK AS A COMMUNITY WE NEED TO FIND WAYS TO COME

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TOGETHER BECAUSE HATE HAS NO PLACE HERE AND WE SHOULD LOOK TO FIND WAYS TO SOLVE OUR PROBLEMS TOGETHER BY COME TOGETHER. BUT I THANK YOU FOR THE RESOLUTION TODAY. A COUPLE OTHER ITEMS, I WILL BE BRIEF, ON THE CONSENT CALENDAR. THANK YOU TO COUNCILMEMBER HUMBERT FOR MAKING HIS APPOINTEE TO THE POLICE ACCOUNTABILITY BOARD. I JUST URGE MY COLLEAGUES, IF WE DO HAVE VACANCIES TO MAKE APPOINTMENTS TO BRING THE BODY BACK TO FULL MEMBERSHIP. I WILL ALSO NOTE WE HAVE A KIND OF QUIRK IN THE CHARTER, AS A COUNCIL WE CAN ALSO MAKE AN ALTERNATE APPOINTMENT TO THE BODY, WHICH I DON'T THINK WE HAVE MADE IN THE PAST. I WOULD ALSO ENDEAVOR TO BRING A NOMINATION BACK AS AN ALTERNATE WHICH WILL ALSO HELP BRIDGE SOME OF THE GAPS EVEN WHILE THEY AREN'T PERMANENT MEMBERS ON THE BODY. LASTLY, ON ITEM 16, AGAIN, APPRECIATE THAT WE ARE WITHDRAWING THAT, OR NOT MOVING FORWARD AT THIS POINT, AS SOMEONE WHO CARES A LOT ABOUT HOW DO WE KEEP BERKELEY'S ECONOMY MOVING FORWARD, HOW DO WE SUPPORT AN INNOVATION ECONOMY, HOW DO WE CONTINUE TO ATTRACT AND KEEP BUSINESSES HERE, TAKING ACTION ON THE EMPTY STOREFRONTS AND REVITALIZING IS A PRIORITY OF MINE AND OF THIS COUNCIL'S. I LOOK FORWARD TO WHATEVER MEASURE COMES BACK TO US DOWN THE ROAD. WITH THAT I SUPPORT THE CONSENT CALENDAR.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER BARTLETT?

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>> B. BARTLETT: THANK YOU, MADAM MAYOR.

>> MAYOR ISHII: APOLOGIES, VICE MAYOR.

>> B. BARTLETT: I FORGOT THAT TOO, SINCE NO ONE EVER SAYS IT. [CHUCKLES] TONIGHT IS A GREAT NIGHT, I'M EXCITED ABOUT NUMBER 9 THIS IS THE HOME KEY APPLICATION WE WILL SUBMIT TO ACQUIRE A BUILDING IN BERKELEY THAT WILL HOUSE HOMELESS VETERANS IN SUPPORTIVE HOUSING. THIS IS A WONDERFUL OPPORTUNITY TO ADVANCE A CARE PROVISION IN THE HOUSE SECTOR FOR OUR PEOPLE. I'M HAPPY THE LAND USE COMMITTEE WHICH WE SERVE ON WAS ABLE TO POSITIVELY RECOMMEND SOME GOOD ITEMS. WE VETTED THEM. THE FILLING STOREFRONTS ACT, GIVES A BREAK TO STOREFRONTS SO THEY COULD GET IT GOING. OUR FEES ARE SOMETIMES VERY HIGH. WE KNOW THAT THE DEMAND, THE RETAIL DEMAND IS SO SOFT THAT WE ARE LOSING STORES EVERY MONTH, IT SEEMS. THIS IS A GREAT OPPORTUNITY TO ADVANCE OUR ECONOMIC DEVELOPMENT OF THE SIT YI. SECOND, AS MY COLLEAGUE MENTIONED THE TRANSFER TAX EXEMPTION, VERY IMPORTANT. AFFORDABLE HOUSING IS HANGING ON BY A THREAD. THE FEDERAL GOVERNMENT IS THREATENING THE LOW-INCOME HOUSING TAX CREDITS AND OTHER FINANCING MECHANISMS. SO GIVING THEM A BREAK ON ACQUIRING THE LAND TO BUILD THE HOUSING FOR PEOPLE I THINK IS VERY IMPORTANT. SO THANK YOU FOR BRINGING IT FORWARD COUNCILMEMBER TREGUB. ALSO, MY COLLEAGUE, I WANT TO THANK YOU FOR WADING IN THE FRAY, IT SEEMS THE PERSON WHOSE STORY IT WAS MAY NOT BE ON YOUR SIDE ALL

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THE TIME POLITICALLY. BUT TO STEP INTO IT AND SUPPORT HER AND OTHER PEOPLE WHO IN THE COMMUNITY FEEL THREATENED AND UNSAFE, IT'S IMPORTANT WE TAKE A STAND AND MEASURES LIKE THIS. I CONGRATULATE YOU. I WANT ALL THE PEOPLE TO FEEL SAFE IN THE COMMUNITY AND KNOW WE HAVE YOUR BACK NO MATTER WHO YOU ARE AND WHAT YOU ARE. THANK YOU.

>> MAYOR ISHII: THANK YOU, VICE MAYOR. ARE THERE ANY OTHER COMMENTS? OKAY, SO I JUST WANT TO MAKE SURE THAT -- ACTUALLY THERE'S ONE THING I WOULD LIKE, ACTUALLY, OUR CITY MANAGER, IF YOU COULD ADDRESS SOME OF THE QUESTIONS THAT WE ARE HAVING AROUND BUSD'S HOUSING. BECAUSE I UNDERSTAND THERE'S SOME FOLKS THAT ARE CONFUSED. AND I DON'T WANT TO MOVE IT TO ACTION. BUT I WOULD LIKE YOU TO CLARIFY WHAT IT MEANS AS WE ARE COMBINING OUR POLICIES.

>> CITY MANAGER BUDDENHAGEN: SURE, THANK YOU FOR THE OPPORTUNITY TO DO THAT, MAYOR. I HAVE SPOKEN WITH BUSD A COUPLE TIMES INCLUDING TODAY. ESSENTIALLY THE WAY IT WOULD WORK, THE BUSD HOUSING PREFERENCE POLICIES WOULD BELAY ERRED ON FIRST. SO THEY HAVE FOUR PRIORITIES FOR HOUSING BUSD PERSONNEL. ONCE THAT IS ESTABLISHED THE CITY OF BERKELEY PREFERENCES WOULD BE LAYERED ON TOP OF THAT. WITHIN THE BUSD PRIORITIES, THE CITY'S PRIORITIES WOULD BE LAYERED IN. ESSENTIALLY IF YOU HAD SOMEBODY, THIS IS JUST AN EXAMPLE, TWO PEOPLE WHO WERE WITHIN THE BUSD PRIORITIES,

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AND ONE WAS A TEACHER WHO HAD JUST MOVED HERE FROM KENTUCKY AND ANOTHER WAS A TEACHER WHO HAD BEEN RED LINED OUT OF SOUTH BERKELEY AND HAD BEEN LIVING OUTSIDE OF BERKELEY FOR YEARS, THAT PERSON WOULD HAVE PRIORITY OVER THE PERSON WHO JUST MOVED HERE. IT'S KIND OF MAKING THEM WORK TOGETHER. BUT THE BUSD ONES WOULD APPLY FIRST AND THEN THE CITY'S WOULD APPLY. IF NOT ALL THE UNITS ARE FILLED AFTER THE BUSD PRIORITIES ARE LAYERED IN AND THERE'S ANY REMAINING UNITS, THEN THE CITY'S PREFERENCE WOULD BE USED TO FILL THOSE REMAINING UNITS. THAT'S PRETTY MUCH IT.

>> MAYOR ISHII: THANK YOU VERY MUCH. I FELT I WASN'T GOING TO BE ABLE TO EXPLAIN THAT AS WELL AS YOU DID, THANK YOU. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES, I JUST WANTED TO ASK FOR CLARIFICATION, MR. CITY MANAGER. THE INTENTION CONTINUES TO BE FOR BUSD WORKFORCE HOUSING, CORRECT? THAT IS NOT CHANGING AS A RESULT OF THESE POLICY PREFERENCES FOR WHO IS SELECTED. IT'S STILL WORKFORCE HOUSING IN

>> CITY MANAGER BUDDENHAGEN: THAT'S CORRECT. THAT'S THE FIRST PRIORITY.

>> R. KESARWANI: THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. AND THE OTHER THING I WANT TO MAKE SURE WE ARE CLARIFYING, I THINK THERE'S IS CONFUSION, FOR THE FIRST YEAR FREE FILL EMPTY STOREFRONTS THAT WAS GIVEN A NEGATIVE

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RECOMMENDATION TO TAKE NO ACTION. THAT'S WHAT WE WOULD BE AGREEING TO TODAY ON THE CONSENT CALENDAR, THOUGH I KNOW THIS IS AN ISSUE WE CARE A LOT AND WE ARE CONCERNED ABOUT OUR SMALL LOCAL BUSINESSES, THAT'S SO IMPORTANT TO HELP BERKELEY, JUST THE CULTURE OF OUR CITY. SO THANK YOU ALL SO MUCH TO MY COLLEAGUES. I KNOW WE HAVE GOT A MOTION ON THE FLOOR. I THINK WE ARE READY TO TAKE THE ROLL.

>> CITY CLERK: OKAY. TO APPROVE THE CONSENT CALENDAR, INCLUDING THE POLICY COMMITTEE RECOMMENDATIONS ON ITEM 14 AND 16, COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

>> BARTLETT?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

>> YES.

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>> HUMBERT?

>> YES.

>> AND MAYOR ISHII?

>> YES.

>> CITY CLERK: MOTION CARRIES.

>> MAYOR ISHII: THANK YOU, AT THIS TIME I WOULD LIKE US TO TAKE JUST LIKE A TEN-MINUTE BREAK. I THINK WE HAVE BEEN SITTING FOR A LONG TIME, WE WANT TO SUPPORT PEOPLE TAKING SELF-CARE, USING THE RESTROOM, EATING, STRETCHING, WE WILL BE BACK IN TEN MINUTES. IT'S 8:22. SO 8:32. THANKS, EVERYONE. [BREAK] [RECORDING IN PROGRESS]

>> MAYOR ISHII: TESTING, TESTING. HI FOLKS, WE ARE COMING OUT OF BREAK. WE ARE TWO MINUTES LATE. SO LET'S GET BACK. OKAY. ALL RIGHT, AUDIENCE. FOLKS IN THE AUDIENCE, CAN I HAVE YOU PLEASE SIT DOWN? THANK YOU. OKAY I THINK WE ARE READY. LET'S GET BACK INTO IT. WE STILL HAVE THE ACTION CALENDAR, SO LET'S GET MOVING. WHERE ARE WE AT? DO WE NEED TO TAKE PUBLIC COMMENT? WE DO NEED TO -- MMM. SO OUR FIRST THING ON OUR ACTION CALENDAR IS A PUBLIC HEARING. SO OUR ITEM IS #17, APPEAL OF SPECIAL ASSESSMENT TAX OF 1601 WALNUT STREET, WE HAVE STAFF HERE TO PRESENT. THANK YOU.

>> THANK YOU, I'M JORDAN KLEIN, DIRECTOR OF PLANNING AND DEVELOPMENT. JOINED AT THE STAFF TABLE BY ANGEL SINDAYEN IN THE

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SUPERVISING HOUSING INSPECTOR AND JENNY MCNULTY RESILIENT BUILDINGS PROGRAM MANAGER WHO IS GOING TO PRESENT FOR STAFF.

>> THANK YOU, I MANAGE THE RESIDENTIAL SAFETY PROGRAM IN THE BUILDING SAFETY DIVISION. I WILL YOU SOME BACKGROUND.

>> MAYOR ISHII: COULD YOU MOVE THE MIC CLOSER? JUST PULL THE WHOLE THING.

>> I WILL GIVE YOU BACKGROUND ABOUT THE LIEN APPEAL WE RECEIVED FOR 1806 WALNUT STREET AND GO OVER THE STAFF RECOMMENDATION. SO BERKELEY'S RENTAL HOUSING SAFETY PROGRAM WAS ESTABLISHED BY THE CITY COUNCIL IN 2001. AND OUR FUNCTION IS TO INCREASE TENANT SAFETY BY REQUIRING PROPERTY OWNERS TO MEET MINIMUM HOUSING AND PROPERTY MAINTENANCE STANDARDS. THOSE STANDARDS ARE ESTABLISHED IN THE BERKELEY MUNICIPAL CODE IN CHAPTER 19.40, WHICH IS THE BERKELEY HOUSING CODE. NOW IN ADDITION TO RESPONDING TO TENANT COMPLAINTS AND CONDUCTING HOUSING INSPECTION IN RESPONSE TO THOSE COMPLAINTS WE ALSO DO PROACTIVE HOUSING INSPECTIONS. NOW 1806 WALNUT STREET IS A PROPERTY THAT WAS SELECTED FOR PROACTIVE INSPECTIONS IN 2012. THIS IS A BUILDING WITH 13 RENTAL UNITS AND OF THOSE FIVE UNITS WERE SELECTED FOR INSPECTIONS. THE PROPERTY IS OWNED BY PETER AND PHILIP WRIGHT AND MANAGED BY A PROPERTY MANAGER COMPANY, THE KNS COMPANY. NOW COUNCIL DIRECTED THE RENTAL HOUSING SAFETY PROGRAM TO EXPAND PROACTIVE INSPECTIONS. AS YOU CAN SEE ON THIS SLIDE, IN 2024, WE OPENED UP 3,272 NEW

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CASES. SO THIS PROPERTY WAS SELECTED AS PART OF THIS EFFORT TO EXPAND OUR PROACTIVE INSPECTIONS. I WOULD LIKE TO GO OVER WITH YOU THE FEE SCHEDULE ESTABLISHED BY THE CITY COUNCIL, OUR INSPECTION SERVICE FEES WERE ESTABLISHED IN 2019. SO WHEN A HOUSING INSPECTOR GOES OUT TO DO THE INITIAL INSPECTION AT A PROPERTY, WHETHER OR NOT WE FIND VIOLATIONS OF THE HOUSING CODE, THERE'S NO FEE FOR THAT INITIAL INSPECTION. WE THEN SEND OUT A NOTICE OF VIOLATION, IF WE HAVE IDENTIFIED VIOLATIONS. AND WE PROVIDE A MINIMUM OF 30 DAYS BEFORE COMING BACK FOR A REINSPECTION. AND THERE'S A GRACE PERIOD. SO IF THAT OWNER CORRECTS ALL THE VIOLATIONS, THERE'S NO CHARGE FOR THAT REINSPECTION. BUT IF WE COME OUT AND THEY HAVEN'T CORRECTED THE VIOLATIONS, WE CHARGE $400. THEN, IF WE NEED TO COME OUT AGAIN, THE FEE WHETHER OR NOT VIOLATIONS HAVE BEEN CORRECTED IS $600. AND FOR SUBSEQUENT INSPECTIONS IS $800. AS YOU CAN SEE WE CHARGE AN INCREASING FEE AMOUNT TO TRY TO INCENTIVIZE EARLY COMPLIANCE SO TENANTS AREN'T LEFT WITH SUBSTANDARD CONDITIONS IN THEIR UNIT. WE ALSO WORK WITH PROPERTY OWNERS SO IF THERE ARE QUALIFYING REASONS WE CAN GRANT TIME EXTENSIONS. WE ALSO CHARGE PENALTY FEES ADOPTED IN 2019. THESE PENALTY FEES ARE CHARGED BECAUSE SOMEONE IS DELINQUENT IN MAKING A PAYMENT. IT'S NOT RELATED TO WHETHER OR NOT THEY HAVE CORRECTED THE VIOLATIONS AT THE PROPERTY. WE CHARGE 10% OF THE DELINQUENT AMOUNT IF THEY ARE

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PAST A MONTH LATE AND 40% AND THEN WE PLACE A LIEN ON THE PROPERTY, IF THEY DON'T PAY THEIR FEES AND THERE'S ALSO A $250 ADMINISTRATIVE LIEN FEE. SO WHEN THE HOUSING INSPECTOR WENT TO THIS PROPERTY FOR THEIR INITIAL INSPECTION, THEY DID FIND VIOLATIONS. IN UNITS A, UNIT 1 AND UNIT 10. THEY WERE MISSING SMOKE AND CARBON MONOXIDE ALARMS. THEY WERE ALSO NON-GROUNDED AND DAMAGED ELECTRICAL OUTLETS AND IN THE REQUIRED LOCATIONS IN THE KITCHEN THERE WAS A LACK OF A GFCI, WHICH IS GROUND FAULT CIRCUIT INTERRUPTER PROTECTION. AND WHY DOES THIS MATTER? WELL, SMOKE ALARMS ARE ONE OF THE MOST FUNDAMENTAL SAFETY FEATURES. THEY ALLOW TENANTS TO GET OUT OF THEIR UNITS, POTENTIALLY PUT OUT THE FIRE, BE NOTIFIED THERE'S A FIRE, CONTACT THE FIRE DEPARTMENT. AND IF THERE ARE DAMAGED OUTLETS, MISSING GFCI'S OR OTHER ELECTRICAL HAZARDS THERE'S A HEIGHTENED RISK OF ELECTRIC SHOCK. IN YOUR PACKET WE SHARED WITH YOU ALL THE NOTICES OF VIOLATION THAT WERE SENT TO THE OWNER. SO THE OWNER AND THE PROPERTY MANAGER WAS CC'D ON THESE NOTICES. WAS GIVEN 30-DAYS NOTICE WHEN EACH REINSPECTION WAS GOING TO TAKE PLACE. AND THAT THEY SHOULD BE PRESENT AND IF THE OWNER IS NOT PRESENT, WE LEAVE A DOOR TAG HANGING ON THE DOOR AND THEY CAN CALL THE INSPECTOR. AND IF THEIR SCHEDULE ALLOWS, THE INSPECTOR WILL ALSO COME BACK. IF THEY MISSED THAT TIME WINDOW. SO I JUST WANT TO GO OVER WHAT THE CLAIMS WERE OF THE APPELLANT IN THIS APPEAL. THEY CLAIMED

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THAT DUE TO STAFF CHANGES AT THE CITY THERE WERE MISCOMMUNICATIONS WITH THE PROPERTY MANAGER AND THAT RESULTED IN EXCESSIVE AND UNNECESSARY FINES. THE INITIAL HOUSING INSPECTOR DID LEAVE THE CITY. AND A DIFFERENT HOUSING INSPECTOR WAS ASSIGNED TO THIS CASE, BUT THIS IS NOT UNUSUAL. AND THEY WERE SENT ALL THE PROPER NOTICES IN A TIMELY MANNER. AND THE INSPECTIONS FOLLOWED ALL OF OUR ESTABLISHED PROCEDURES. IN ADDITION THERE WERE MULTIPLE STAFF WHO HAVE REVIEWED THE FEES ASSESSED AND CONFIRMED THEY WERE ASSESSED ACCURATELY. THE PROPERTY MANAGER ALSO ARGUED THAT PENALTY FEES CONTINUED TO ACCRUE UNFAIRLY AFTER THE CITY DETERMINED UNITS WERE IN COMPLIANCE AND WHILE AN APPEAL WAS IN PROGRESS. AS I EXPLAINED EARLIER, PENALTY FEES ACCRUE BECAUSE OWNERS ARE DELINQUENT IN MAKING THEIR PAYMENTS, WHETHER OR NOT VIOLATIONS HAVE BEEN CORRECTED. AND THE OWNER WAS DELINQUENT. THEY FILED THEIR APPEAL ON MAY 26, 2023. WE ASSESSED PENALTY FEES IN MID MARCH, MID-APRIL AND MID-MAY. BECAUSE THEY HAD UNPAID FEES. I DO JUST WANT TO DRAW YOUR ATTENTION TO THE SUPPLEMENTAL COMMUNICATION SUBMITTED LAST WEEK. AND WE HAD, IN FACT, ASSESSED PENALTY FEES TWO WEEKS AFTER THEY SUBMITTED THEIR APPEAL FOR $220. WE HAVE ACTUALLY GONE AHEAD AND ADJUSTED THEM. AND ADJUSTED OUT THOSE $220 AND SO IN THE SUPPLEMENTAL COMMUNICATION, THE LIEN AMOUNT IN THE RESOLUTION HAS BEEN ADJUSTED TO TAKE OUT THOSE FEES THAT

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WERE ASSESSED BY OUR SYSTEM, AFTER THE APPEAL WAS RECEIVED. SO JUST TO SUM UP, OUR STAFF RECOMMENDATION TO COUNCIL IS THAT YOU ADOPT A RESOLUTION DENYING THE PROPERTY OWNER'S APPEAL AND AUTHORIZING THE CITY MANAGER TO RECORD THE SPECIAL ASSESSMENT LIEN FOR 1806 WALNUT STREET FOR $6,230. I WANT TO ALSO JUST STATE WE ARE VERY CONSISTENT IN THE WAY WE CHARGE FEES. THESE ARE THE SAME FEES THAT ARE CHARGED OF ALL PROPERTY OWNERS WHO HAVE PROACTIVE INSPECTIONS. SO JORDAN KLEIN IS JUST GOING TO SAY A FEW WORDS TO CONCLUDE.

>> THANKS, JENNY. SO THANK YOU, COUNCILMEMBERS. I JUST WANT TO EMPHASIZE, OBVIOUSLY OUR RENTAL HOUSING SAFETY PROGRAM IS VERY IMPORTANT TO KEEPING TENANTS SAFE IN BERKELEY. AND IN CASE IT WASN'T CLEAR, OUR FEE STRUCTURE PAYS THE SALARIES OF THE HOUSING INSPECTORS, SO THEY GO OUT AND CONDUCT THE INSPECTIONS. SO THESE FEES ARE REALLY IMPORTANT TO OUR PROGRAM. KNS, WHICH IS THE COMPANY WHO MANAGES THE PROPERTY, SUBJECT TO THIS APPEAL, MANAGES MANY PROPERTIES ACROSS BERKELEY. AND WE WANT TO AVOID A SITUATION WHERE WE ARE SETTING PRECEDENT, OR SENDING THE MESSAGE THAT PEOPLE CAN CHOOSE NOT TO PAY THEIR FEES ASSOCIATED WITH THIS PROGRAM. AND THE STAFF RECOMMENDATION. THAT COMPLETES OUR PRESENTATION AND WE WILL BE AVAILABLE FOR QUESTIONS. THANKS.

>> MAYOR ISHII: THANK YOU SO MUCH. JUST SO FOLKS UNDERSTAND THE PROCESS, WE ARE SUPPOSED TO GIVE TIME FOR THE APPELLANT TO SPEAK

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AS WELL. IS THE APPELLANT HERE TO SPEAK?

>> CITY CLERK: YES, THE APPELLANT JONATHAN HICKS IS ON ZOOM, I WILL PROMOTE HIM TO BE A PANELIST. HE HAS SEVEN MINUTES TO ADDRESS THE COUNCIL. MR. HICKS, WHEN YOU'RE READY TO PROCEED, PLEASE DO.

>> MAYOR ISHII: CAN YOU HEAR US?

>> THERE WE GO. CAN YOU GUYS HEAR ME?

>> MAYOR ISHII: YES, WE CAN HEAR YOU NOW.

>> PERFECT. ALL RIGHT, THANK YOU. JUST GIVE ME ONE MOMENT HERE, I'M HAVING A LITTLE BIT OF ISSUE WITH MY WI-FI. I WAS UNABLE TO SIT AT THE OFFICE TODAY, SO I'M DOING IT FROM MY HOUSE. JUST GIVE ME ONE MOMENT. PERFECT, ALL RIGHT, AWESOME. THANK YOU SO MUCH, I APPRECIATE YOUR PATIENCE. SO I'M HERE REPRESENTING PETER WRIGHT. HE IS THE OWNER OF 1806 WALNUT STREET. AND I'M NOT ARGUING THE FACT THAT THE VIOLATIONS WERE EXISTING AND THAT THE FEES WERE PROPERLY ASSESSED. WE'RE JUST HERE ASKING THAT THERE MAY BE SOME SORT OF REDUCTION IN THE FEES. AS YOU KNOW, THE PROPERTY TAXES, COST FOR INSURANCE, THE YEARLY RHSP FEES FOR THE CITY OF BERKELEY, EVERYTHING IS INCREASING, AS WELL AS PREVENTIVE MAINTENANCE. AND 1806 WALNUT STREET DOES HAVE A LOT OF LONG-TERM TENANTS WHICH WE ARE LIMITED BECAUSE OF THE A.G.A. HOW MUCH WE CAN INCREASE EVERY SINGLE YEAR. AND WE WOULD LIKE TO CONTINUE TO BE ABLE TO PROVIDE PREVENTIVE MAINTENANCE, MAINTAIN

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THE BUILDING AND KEEP A NICE ENVIRONMENT FOR OUR TENANTS. AND WITH THE FEES THAT ARE ASSESSED WE ARE KIND OF CUTTING INTO THAT. AND SO THE OWNER IS REACHING OUT TO SEE IF THE COUNCIL WOULD TAKE INTO CONSIDERATION THE PREVIOUS THINGS THAT I MENTIONED AND IF THERE COULD, IF YOU COULD WORK WITH US WITH SOME SORT OF REDUCTION. AGAIN, WE DO UNDERSTAND THAT VIOLATIONS EXISTED IN THE UNITS. THERE WAS A MISUNDERSTANDING. THOSE VIOLATIONS WERE CORRECTED. AND WE'RE JUST, WE UNDERSTAND THERE WILL BE SOME SORT OF FEE ASSESSED. BUT WE'RE LOOKING FOR SOME SORT OF REDUCTION. THANK YOU.

>> MAYOR ISHII: OKAY. I'M GOING TO OPEN THE PUBLIC HEARING AND TAKE PUBLIC COMMENTS. AND THEN, OH WAIT. YES. AND THEN I WILL -- WAIT, I'M SORRY, I THINK MY ORDER IS WRONG HERE, I THINK WE ARE SUPPOSED TO BE TAKING QUESTIONS. COUNCIL QUESTIONS ONLY FIRST. APOLOGIES, MY NOTES ARE WRONG. ALL RIGHT. COUNCILMEMBER HUMBERT, I KNOW YOU HAD YOUR HAND UP EARLIER, WILL LET YOU GO FIRST, AND COUNCILMEMBER TREGUB, KEEPING IN MIND THE PARLIAMENTARIAN MACHINE ISN'T WORKING THAT WELL, FEEL FREE TO GIVE ME A WAVE.

>> M. HUMBERT: THANK YOU, MADAM MAYOR, I DON'T HAVE ANY QUESTIONS. I HAVE A MOTION THOUGH. I WOULD LIKE TO MOVE TO --

>> MAYOR ISHII: COUNCILMEMBER, I'M SORRY. WE WOULD HAVE TO CLOSE THE PUBLIC HEARING, SO THIS IS JUST TIME FOR COUNCIL QUESTIONS ONLY.

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>> M. HUMBERT: PERFECT, THANK YOU.

>> MAYOR ISHII: I WILL COME BACK TO YOU WHEN WE GET TO THAT PART. COUNCILMEMBER TREGUB, DO YOU HAVE QUESTIONS?

>> I. TREGUB: I DO, THANK YOU, MADAM MAYOR. I JUST WANT TO CONFIRM FROM STAFF. WHAT WAS THE DATE THAT THESE NON-COMPLIANCES WERE FIRST BROUGHT TO THE CITY'S ATTENTION?

>> SO THE ORIGINAL, THE FIRST INSPECTION WAS IN OCTOBER OF 2022. AND THEN THE INSPECTIONS CONTINUED IN THE EARLY PART OF 2023. SO AT THE DATE OF EACH REINSPECTION WAS WHEN WE ASSESSED, AS A RESULT OF EACH REINSPECTION WE ASSESSED FEES. I COULDN'T TELL YOU THE EXACT DATE WITHOUT LOOKING IT UP, BUT IT WAS IN THE EARLY PART OF 2023 THAT WE HAD THESE REINSPECTIONS.

>> I. TREGUB: WELL OVER TWO YEARS, YOU WOULD SAY, RIGHT?

>> YEAH.

>> I. TREGUB: YEAH. I HAVE A QUESTION FOR THE APPELLANT. DID, AT ANY POINT, IF THIS HAS BEEN KNOWN TO THE PROPERTY OR THE MANAGEMENT COMPANY FOR WELL OVER TWO YEARS, WERE THERE ANY EFFORTS TO SEEK RELIEF FROM THE CITY AT THAT TIME?

>> SO WE'VE BEEN REACHING OUT TO THE CITY OVER THE LAST TWO AND A HALF YEARS TRYING TO GET THIS RESOLVED. I HAD TO REACH OUT TO A COUNCILMEMBER, KATE, I BELIEVE HARRISON. AND SHE WAS THE ONE THAT WAS ABLE TO ACTUALLY ASSIST US TO GET WHERE WE ARE HERE TODAY, TWO AND A HALF YEARS LATER. AND WE DID TALK TO SEVERAL

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OTHER PEOPLE IN THE PROCESS. AND UNFORTUNATELY, IT'S TAKEN UNTIL NOW TO KIND OF GET SOME RESOLUTION TO IT.

>> I. TREGUB: THANK YOU.

>> MAYOR ISHII: ANY OTHER COUNCIL QUESTIONS? COUNCILMEMBER BLACKABY?

>> B. BLACKABY: QUICKLY, TO CONFIRM THE TIMELINE, AS I READ IT, IT'S MORE LIKE A SIX-MONTH PROCESS, THEY WERE FIRST NOTIFIED OCTOBER 2022, OWNER FILED AN APPEAL MAY 2023, IT WASN'T A TWO-YEAR PROCESS, IT'S BEEN A SIX-MONTH PROCESS. IT'S BEEN TWO YEARS TO DATE BUT SIX MONTHS AT THAT POINT. IF YOU LOOK AT THAT INITIAL LETTER THE FIRST INSPECTION WAS DECEMBER 2022. AND THEN PRESUMABLY SEVERAL REINSPECTIONS IN THE EARLY PARTS OF MAY. DO WE KNOW HOW MANY TOTAL INSPECTIONS? THREE, FOUR. I'M CURIOUS THE TOTAL NUMBER OF VISITS?

>> YEAH, THERE'S THE INITIAL INSPECTION AND THEN THREE REINSPECTIONS.

>> B. BLACKABY: SO FOUR TOTAL. OKAY, THANK YOU.

>> MAYOR ISHII: ANY OTHER QUESTIONS? OKAY, WE WILL TAKE PUBLIC COMMENT ON THIS MATTER ONLY. I SEE SOMEONE COMING UP.

>> JUST AS A MATTER OF BUSINESS, LANDLORDS BELIEVE THEIR BUSINESS IS SEPARATE FROM ANY OTHER TYPE OF BUSINESS AND IT MUST EXPONENTIALLY INCREASE ALL THE TIME. I HAVE TO PROVIDE SERVICES FOR MY EMPLOYEES AND WE CANNOT KEEP INCREASING OUR FEES AND WE

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HAVEN'T INCREASED FEES SINCE 2007. THE FEES HAVE STAYED THE SAME YET WE ARE RESPONSIBLE FOR PROVIDING, THAT'S WHY IT'S SO HARD TO BE A BUSINESS OWNER, EXCEPT IN THE EXEMPTION OF LANDLORDS WHERE THEY GET TO CONTINUOUSLY RAISE PRICES AND WITHOUT ANY CURVE, WITHOUT ANY LIMITATION. IT IS A BUSINESS. AND THEY HAVE TO PROVIDE THINGS. INCLUDING HABITABILITY. AND MAKING SURE THAT PEOPLE'S LIFE CONDITION IS NOT SUBSTANDARD. AND THANK YOU FOR THE WORK YOU DO.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> MADAM MAYOR, CITY COUNCIL MEMBERS, I WOULD LIKE TO ASK THIS QUESTION IF SOMEONE COULD ANSWER, I WONDER HOW LONG THE BUSINESS OWNERS HAVE OWNED THE BUILDING. I THINK THAT'S VERY INTERESTING. ALSO I FIND IT DISTURBING THAT THE REPRESENTATIVE IS BLAMING THE MONETARY PROBLEMS ON THE CUSTOMERS THAT THEY ARE PROVIDING A SERVICE TO. IN BERKELEY THERE ARE REGULATIONS OVER THE RENTAL HOUSING INDUSTRY. THOSE ARE RULES THEY HAVE TO ABIDE BY AND BUSINESS OWNERS HAVE TO MAKE DUE THIS IS THE BUSINESS THEY ARE DOING. SO TO BLAME THEIR CONSUMERS, THEIR PROBLEMS HOW THEY ARE RUNNING THEIR BUSINESS IS A PROBLEM, I THINK. YOU KNOW, WE SEE TWO WEEKS AGO WE WERE HERE, WE WERE TALKING ABOUT DEVELOPER AND DEVELOPERS WERE TALKING ABOUT THEIR PRODUCTS. THEIR PRODUCTS, WHICH ARE THE RENTAL HOUSING UNITS. HERE WE HAVE A BUSINESS OWNER CLAIMING TO NOT HAVE ANY ABILITY OR BLAMING THEIR

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CONSUMERS. I, FOR ONE, WOULD ASK THAT YOU FINE THEM THE WAY THEY SHOULD BE FINED. AND AS A MATTER OF WAY TO MAKE SURE WE ARE PAYING FOR THE INSPECTORS WHO PROVIDE SUCH A VALUABLE SERVICE. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> SO IF I UNDERSTAND CORRECTLY, THE LANDLORD IN THIS CASE HIRES AN ENTIRE OTHER COMPANY TO MANAGE THE PROPERTY. IS THAT CORRECT? SO, WHAT DOES THE LANDLORD ACTUALLY DO IN THIS ARRANGEMENT? THEY DON'T SEEM TO BE ACTUALLY, THE MANAGEMENT COMPANY IS THE ONE THAT ACTUALLY DOES ALL THE ASSOCIATED WORK WITH, YOU KNOW, OWNING A BUILDING. AND THEN LANDLORD IS APPARENTLY COMPLAINING THAT THEY CAN'T PAY THE FEES? IT'S TOO EXPENSIVE THEY SAY TO KEEP THE BUILDING HABITABLE? TO BE OWNING THIS ENTIRELY SEPARATE BUILDING FROM THE ONE THEY LIVE IN. THAT IT'S SOMEHOW TOO EXPENSIVE TO HAVE SOME STANDARDS IN THE WHOLE EXTRA BUILDING IN ADDITION TO THEIR OWN HOME THEY OWN? HAS THE LANDLORD CONSIDERED GETTING A REAL JOB?

>> MAYOR ISHII: ARE THERE OTHER COMMENTS ONLINE?

>> CITY CLERK: YES, THERE'S ONE COMMENTER. ONLINE. THAT IS MARIA SOL.

>> YES, THANK YOU, AGAIN. CONGRATULATIONS THAT WE ARE ALL STILL AWAKE AND AT WORK. I KNOW I'VE MENTIONED A FEW BAZILLION TIMES THAT I'VE BEEN IN THE CONSTRUCTION TRADES FOR OVER 50 YEARS’

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COAST-TO-COAST. AND THAT I REALLY CARE ABOUT PROPERTY MAINTENANCE AND ABOUT PREVENTING HARM. AND THAT I ALSO AM INVOLVED WITH COUNTLESS TENANTS AND HOMEOWNERS THAT ARE SUFFERING UNINHABITABLE AND DANGEROUS AND UNSAFE LIVING SITUATIONS. SO I REALLY APPRECIATE THE INSPECTIONS. I'VE MENTIONED TO A NUMBER OF PEOPLE IN THE DIFFERENT COMMISSIONS THAT THINGS THAT ARE INSPECTED ARE OFTEN, YOU KNOW, NOT REALLY, EXCEPT THAT I'M SURE WE ARE DOING A BETTER JOB NOW. I REALLY ALSO HAVE HAD A TREMENDOUS AMOUNT OF EXPERIENCE WITH PROPERTY MANAGERS WHO, AGAIN, PERHAPS, ARE ETHICAL, PERHAPS FUNCTION AND CARE FOR THE BUILDING AND THE TENANTS. BUT MY EXPERIENCE, ESPECIALLY WITH THESE HUGE PROPERTY MANAGEMENT COMPANIES, IS THAT IT'S ANOTHER WAY OF BLOATING THE FINANCIAL COSTS AND NOT DELIVERING ON WHAT IT IS THEY ARE SUPPOSED TO BE DOING. SO I HAVE BEEN INSPECTED AND I HAVE DONE INSPECTIONS. I HAVE VISITED HOMES THAT, AND BUILDINGS WHERE PEOPLE IN ALL SORTS OF DIFFERENT PROPERTY CONFIGURATIONS ABIDE. IT'S NOT SAFE, IT MUST BE SAFE, THERE MUST BE COMPLIANCE. I WAS HELD TO ACCOUNT. AND I REALLY WANT PEOPLE TO BE SAFE AND CARED FOR. THERE SHOULDN'T BE MOLD AND ELECTRICAL FIRES. ENDLESS THINGS. SO I BRING THIS LENGTHY DIRECT EXPERIENCE IN THE TRADES AND IN THE MISMANAGEMENT AND BLOATED EXPLOITIVE COSTS. AND YET I ALSO KNOW THAT SOME BUSINESS OWNERS ARE STRUGGLING. THANK YOU VERY MUCH.

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>> MAYOR ISHII: YOUR TIME IS UP. THANK YOU SO MUCH FOR YOUR COMMENT. IS THAT OUR FINAL COMMENT ONLINE?

>> CITY CLERK: YES.

>> MAYOR ISHII: OKAY, IS THERE A MOTION TO CLOSE THE PUBLIC HEARING?

>> I. TREGUB: SO MOVED.

>> MAYOR ISHII: A SECOND?

>> SECOND.

>> MAYOR ISHII: WE NEED TO TAKE THE ROLL, I BELIEVE.

>> CITY CLERK: OKAY, TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

>> BART RECEIPT? BARTLETT?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

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>> YES.

>> HUMBERT?

>> YES.

>> AND MAYOR ISHII.

>> MAYOR ISHII: YES. OKAY, NOW MOVING ONTO COUNCIL DELIBERATIONS. COUNCILMEMBER TREGUB, DID YOU HAVE A COMMENT OR --

>> I. TREGUB: A COMMENT AND A MOTION. SO THANK YOU SO MUCH TO STAFF FOR BRINGING THIS TO OUR, BRINGING THIS CASE TO US. IT'S RARE THAT RENTAL HOUSING SAFETY PROGRAM APPEALS COME THIS FAR. SO I APPRECIATE THIS. THIS IS A NEW EXPERIENCE FOR ME BOTH ON THE DAIS AND JUST TO OBSERVE THIS. WHAT I KNOW ABOUT THE RHSP PROGRAM IS IT WAS ACTUALLY SET UP IN RESPONSE TO A TRAGIC FIRE IN WHICH SEVERAL THEN U.C. BERKELEY STUDENTS TRAGICALLY PASSED AWAY. AND IT TOOK SOME TIME FOR THAT PROGRAM TO BE SET UP IN A WAY THAT IS ROBUST, IN TERMS OF THE ENFORCEMENT MECHANISM. I, GENERALLY, I'M THINKING ABOUT ALL THE TIMES WE HAVE HEARD APPEALS WHEN I WAS ON THE RENT BOARD. THERE ARE WAYS TO REDUCE THE AMOUNT IF IT IS IN THE INTEREST OF JUSTICE. MAYBE IT'S A SMALL PROPERTY OWNER. MAYBE THEY DON'T HAVE THE OPERATING CAPITAL, WHATEVER. THERE IS DISCRETION TO LOOK AT THAT. IN THIS CASE, STAFF, JUST TO CONFIRM WHAT YOU SAID, KNS IS ONE OF THE LARGEST OPERATING MANAGEMENT COMPANIES OPERATING IN BERKELEY. IN

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MY EXPERIENCE, THEY ARE A FAIRLY SOPHISTICATED PROPERTY MANAGEMENT THAT IS EITHER AWARE OR SHOULD BE AWARE OF ALL THE RULES FOR OPERATING A PROPERTY IN BERKELEY. BETWEEN THAT AND THE MULTIPLE ATTEMPTS TO REINSPECT AND THE PROPERTY MANAGER OR OWNER NOT BEING PRESENT, IT'S A LITTLE CHALLENGING FOR ME TO BE SYMPATHETIC RIGHT NOW. NOW THIS PROPERTY MAY BE IN THE DISTRICT THAT I SERVE, BUT IT COULD BE ANYWHERE IN BERKELEY. AND I WOULD FEEL THE SAME WAY IF THIS WAS THE EXACT SET OF CIRCUMSTANCES. YOU KNOW, IF GOD FORBID I FORGOT TO PAY MY CREDIT CARD ON TIME, PENALTIES WOULD STILL ACCRUE IN ADDITION TO THE AMOUNT THAT I WAS OWED. IF I FAIL TO PAY A CITATION ON TIME, WHICH I CONFESS I HAVE DONE ONCE BEFORE, I WOULD NOT BE ABLE TO GET A FREE PASS JUST FOR PAYING IT LATE.

>> MAYOR ISHII: COUNCILMEMBER, DID YOU HAVE A MOTION?

>> I. TREGUB: SO WITH ALL THAT IN MIND, I MOVE THE STAFF RECOMMENDATION AS DESCRIBED IN SUPPLEMENTAL PACKET 1.

>> T. TAPLIN: SECOND.

>> MAYOR ISHII: OKAY. CAN YOU TAKE THE ROLL PLEASE? UNLESS ANYONE ELSE HAS ANY OTHER COMMENTS.

>> CITY CLERK: OKAY, CALLING THE ROLL ON THE MOTION TO APPROVE THE STAFF RECOMMENDATION AS WRITTEN IN SUPPLEMENTAL COMMUNICATION PACKET #1. COUNCILMEMBER KESARWANI?

>> YES.

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>> TAPLIN?

>> YES.

>> BARTLETT?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES.

>> AND MAYOR ISHII.

>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION CARRIES.

>> MAYOR ISHII: THANK YOU. AND THANK YOU TO STAFF FOR ALL YOUR HARD WORK, I APPRECIATE YOU STAYING AT THIS LATE HOUR. THANK YOU. OKAY. WE ARE NOW MOVING ONTO THE NEXT ACTION ITEM. WHICH IS ADOPT AN ORDINANCE TO PROHIBIT THE SALE OR USE OF ALGORITHMIC DEVICES TO SET RENTS OR MANAGE OCCUPANCY LEVELS FOR RESIDENTIAL DWELLING UNITS. THIS CAME FROM THE HOUSING ADVISORY COMMISSION.

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LET'S START WITH PUBLIC COMMENT. DID YOU HAVE SOMETHING TO SAY FROM THE HOUSING? PLEASE DO. MY APOLOGIES. PLEASE START WHENEVER YOU ARE READY. MOVE THE MIC AS CLOSE TO YOU AS POSSIBLE BECAUSE SOMETIMES IT COULD BE HARD TO HEAR.

>> MAYOR ISHII: YOU WANT TO TURN OFF THE -- YEAH, VIDEO. ARE YOU JUST TRYING TO SHARE YOUR SCREEN? OKAY. CITY CLERK, DO THEY NEED TO SHARE FROM THE ZOOM, OR CAN THEY JUST PLUG -- IS THERE SOMEONE WHO CAN HELP THEM? DO YOU NEED HELP? OKAY, I THINK ROSE IS GOING TO COME. DEPUTY CLERK, THANK YOU. DOES IT MAKE SENSE TO MAYBE SEND THE PRESENTATION? OR IS THERE SOMETHING ELSE THAT WE CAN DO? OKAY.

>> MAYOR ISHII:, GREAT, THANK YOU SO MUCH, APPRECIATE YOUR HELP, ROSE. ALL RIGHT. CAN YOU JUST PRESS THE -- YEAH, THERE YOU GO.

>> THANK YOU, I WON'T PASS ON THE IRONY OF A TECH ITEM AND TRYING TO GET OUR POWERPOINT SET UP. BUT GOOD EVENING, I AM DEBBIE POTTER, THE IMMEDIATE PAST PRESIDENT, PAST CHAIR OF THE HOUSING ADVISORY COMMISSION. I'M HERE THIS EVENING WITH LEAH SIMON-WEISBERG, THE CURRENT CHAIR. WE ARE HERE BEFORE YOU THIS EVENING HONORABLE MAYOR, MEMBERS OF THE CITY COUNCIL THAT YOU PROHIBIT THE SALE OR USE OF ALGORITHMIC DEVICES TO SET RENTS OR MANAGE OCCUPANCY LEVELS. THIS OCCURS WHEN LANDLORDS DELEGATE THEIR RENTAL PRICING TO A COMMON DECISION MAKER, THAT DECISION MAKER IS A THIRD PARTY. IT COULD BE A TRADE ASSOCIATION. IT

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COULD BE A COMPANY THAT OFFERS MANAGEMENT SOFTWARE. LANDLORDS WHO SHOULD BE COMPETING WITH EACH OTHER AS TO PRICE SHARE DATA WITH THIS COMMON THIRD-PARTY DECISION MAKER AND THAT THEN DECISION MAKER PROVIDES DAILY PRICING AND ONGOING REVENUE OVERSIGHT. YOU ALL MIGHT BE FAMILIAR WITH THE CONCEPT OF DYNAMIC PRICING. THAT'S WHAT THIS IS, ESSENTIALLY WITH THE DAILY PRICING. SO RATHER THAN FUNCTIONING AS SEPARATE ECONOMIC ENTITIES, THESE PARTICIPATING LANDLORDS MAKE KEY COMPETITIVE DECISIONS REGARDING THEIR RENT AND THEIR INVENTORY OF UNITS COLLECTIVELY. SO RATHER THAN COMPETING, AND I WILL SAY THAT IT'S IMPORTANT TO KNOW THAT THE SHARING OF SENSITIVE DATA AND PRICING INFORMATION IS NOT IN A COMPETITOR'S SELF-INTEREST UNLESS THEY KNOW THEIR FELLOW COMPETITORS ARE ALSO SHARING THEIR PROPRIETARY AND SENSITIVE DATA AND TOGETHER THEY ARE MAKING COLLECTIVE DECISIONS. THE RESULT OF THIS ACTION IS YOU DRIVE UP RENTS AND IT AMOUNTS TO ILLEGAL PRICE FIXING. SO I'VE TALKED ABOUT WHAT AUTOMATIC RENT SETTING IS, AND NOW I WANT TO TOUCH ON WHAT IT IS NOT. AUTOMATIC RENT SETTING DOES NOT MEAN THAT INDIVIDUAL LANDLORDS WHO ARE INDEPENDENTLY RESEARCHING WEBSITES SUCH AS ZILLOW OR CRAIGSLIST TO SET RENTS ARE ENGAGED IN AUTOMATIC RENT SETTING. IT ALSO IS NOT LANDLORDS WHO DON'T COORDINATE WITH ONE ANOTHER TO SET RENTS AND NOT LANDLORDS WHO RENT UNITS AS VACANCIES ARISE AND WHO DON'T HOLD VACANT UNITS OFF THE MARKET.

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NOW THAT I TALKED ABOUT WHAT AUTOMATIC RENT SETTING IS AND WHAT IT ISN'T, WHAT IS REALPAGE? REALPAGE ACCORDING TO ITS OWN WEBSITE PROVIDES PROPERTY MANAGEMENT SOFTWARE, DATA ANALYTICS AND SERVICES TO EFFICIENTLY MANAGE RENTAL PROPERTIES AND REAL ESTATE. FOR SEVERAL YEARS REALPAGE AND ITS RENT-SETTING SOFTWARE YIELDSTAR HAS BEEN THE SUBJECT OF CONTROVERSY, THEY HAVE PRETTY MUCH BEEN THE SUBJECT OF CONTROVERSY SINCE THEY ENTERED THE RENTAL HOUSING MARKET WITH THEIR ALGORITHMIC SOFTWARE DEVICES. THIS PAST FALL, THE D.O.J. FILED A LAWSUIT AGAINST REALPAGE ACCUSING THEM OF BEING A MONOPOLY. THEY ARE THOUGHT TO CONTROL UP TO 80% OF THE PROPERTY MANAGEMENT SOFTWARE MARKET ACROSS THE COUNTRY. AND IF YOU WANT TO KNOW WHAT THE FOLKS WHO WORK WITH REALPAGE, THE PROPERTY MANAGEMENT COMPANIES AND LANDLORDS HOW THEY DEFINE WHAT REALPAGE IS, THIS IS A QUOTE "WE ARE ALL TECHNICALLY COMPETITORS BUT REALPAGE HELPS US TO WORK TOGETHER TO MAKE US ALL MORE SUCCESSFUL IN OUR PRICING. REALPAGE IS DESIGNED TO WORK WITH THE COMMUNITY IN PRICING STRATEGIES, NOT WORK SEPARATELY. WE RARELY MAKE ANY OVERRIDES TO THE PRICING RECOMMENDATIONS. SO THAT'S HOW CLIENTS DEFINE WHAT REALPAGE IS. WHAT THE ACCUSATION IS THIS KIND OF SHARING OF INFORMATION COLLECTIVELY, AND NOT COMPETITIVELY IS ILLEGAL PRICE FIXING. AND THE KIND OF ILLEGAL PRICE FIXING BEING DONE IS CALLED HUB AND SPOKE PRICE FIXING. THE WAY IT WORKS YOU HAVE A CENTRALIZED

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COMPANY, A TRADE ASSOCIATION, A DATA BROKER, SOFTWARE ALGORITHM THAT FACILITATES ILLEGAL AGREEMENTS AGAINST COMPETITORS, LANDLORDS IN THE MARKET. REALPAGE IS THE HUB AND THE LANDLORDS WHO DEPEND ON ITS RECOMMENDATION INCLUDING RENT LEVELS ARE THE SPOKES. AND BY AGREEING TO FOLLOW THE RENT RECOMMENDATIONS USING COMPETITIVELY SENSITIVE AND/OR PROPRIETARY DATA, LANDLORDS TACITLY AGREE TO FIX RENTS WITHOUT THE NEED TO COMPETE WITH EACH OTHER. THIS SYSTEM ALLOWS LANDLORDS TO CONSPIRE, LIMIT RENTAL SUPPLY AND DRIVE UP RENTS CREATING A CARTEL. SO THIS SLIDE IS A VISUAL THAT ILLUSTRATES WHAT A HUB AND SPOKE PRICE FIXING SCHEME LOOKS LIKE. AND YOU COULD SEE IN THIS DEPICTION REALPAGE IS A HUB. AND THEN THESE ARE SOME OF THE MAJOR PROPERTY MANAGEMENT FIRMS ACROSS THE COUNTRY. MANY OF THEM WHO ARE DEFENDANTS IN CLASS-ACTION LAWSUITS WHO ARE THE SPOKES IN THIS HUB AND SPOKE SYSTEM. THERE HAS BEEN, BECAUSE THERE'S AN ACCUSATION OF ILLEGAL PRICE FIXING THERE'S BEEN A FAIR AMOUNT OF LEGAL ACTION TO DATE. THERE HAVE BEEN OVER 30 CLASS-ACTION LAWSUITS THAT HAVE BEEN FILED AGAINST REALPAGE AND THE LANDLORDS WHO USE THE SOFTWARE. AS I MENTIONED THE D.O.J. SUED REALPAGE IN THE FALL OF 2024. BOTH FOR ITS MONOPOLY CONTROL OF THE SOFTWARE MARKET FOR RENTAL HOUSING AND BECAUSE IT FACILITATES THIS ILLEGAL PRICE FIXING SCHEME. AND ONCE D.O.J. FILED ITS LAWSUIT, EIGHT ATTORNEYS GENERAL, INCLUDING THE ATTORNEY GENERAL OF CALIFORNIA JOINED

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THIS D.O.J. LAWSUIT. THERE HAVE ALSO BEEN LEGISLATIVE ACTION THAT'S HAVE OCCURRED. SAN FRANCISCO AND PHILADELPHIA HAVE BANNED THE SALE AND USE OF THESE PRICING ALGORITHMS AND A NUMBER OF LOCAL JURISDICTIONS IN STATES ARE CONSIDERING SIMILAR BANS. RIGHT NOW THERE ARE FOUR BILLS TO BAN THE SALE AND USE OF PRICING ALGORITHMS THAT HAVE BEEN INTRODUCED IN THE CALIFORNIA LEGISLATURE. AS I MENTIONED AT THE OUTSET WE ARE HERE TO RECOMMEND THAT THE CITY COUNCIL ADOPT AN ORDINANCE THAT WOULD BAN THE SALE AND USE OF THESE ALGORITHMIC DEVICES IN THE CITY OF BERKELEY. WHAT'S OUR RATIONALE FOR THIS RECOMMENDATION? 57% OF BERKELEY'S POPULATION ARE RENTERS. PEOPLE OF COLOR ARE THREE TIMES MORE LIKELY TO BE RENTERS THAN HOMEOWNERS, 60% OF BERKELEY TENANTS ARE LOWER INCOME AND HALF OF ALL RENTERS IN THE CITY OF BERKELEY ARE RENT BURDENED. IN ADDITION, WE HAVE SEEN AN INCREASE IN CORPORATE CONCENTRATION IN THE HOUSING MARKET OVER THE LAST SEVERAL YEARS. THE CITY'S RENT STABILIZATION STAFF DID A PRELIMINARY HIGH-LEVEL LOOK TO SEE IF BERKELEY WAS BEING IMPACTED BY THIS CORPORATE OWNERSHIP AND CONSOLIDATION. AND JUST AT THE HIGH LEVEL THEY IDENTIFIED SIX PROPERTY MANAGEMENT FIRMS WHO HAVE BEEN NAMED AS DEFENDANTS IN OTHER CLASS-ACTION LAWSUITS CONTROLLING ABOUT 1300 UNITS IN THE CITY OF BERKELEY. SO THIS IS AN ISSUE THAT IS IMPORTANT FOR THE RENTERS IN THE CITY OF BERKELEY AND AN OPPORTUNITY TO ALLEVIATE RAPIDLY-INCREASING

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RENTS FOR BERKELEY RESIDENTS. AND JUST BY WAY OF A LITTLE MORE RATIONALE AND SOME BACKGROUND DATA POINTS, OVER THE LAST NINE YEARS RENTS HAVE INCREASED 19% THROUGHOUT THE EAST BAY. THE CITY'S HOUSING ELEMENT NOTES THAT RENTS FOR RENT CONTROL AND MARKET RATE INCREASED DRAMATICALLY OVER THE LAST DECADE. THE CITY'S BLACK POPULATION HAS DECLINED RAPIDLY THE LAST 20 YEARS DUE TO RAPID HOUSING COSTS IN THE CITY. THE USE NEGATIVELY IMPACTS THE RENTAL MARKET BY ARTIFICIALLY INFLATING RENTS AND CREATING HOUSING SCARCITY. SO WHY TAKE LOCAL ACTION? THERE'S BEEN NUMEROUS LAWSUITS, AS I MENTIONED THAT HAVE BEEN FILED THROUGHOUT THE COUNTRY. BUT THOSE LAWSUITS COULD TAKE YEARS TO LITIGATE. WHILE THESE LAWSUITS ARE GOING THROUGH THE LEGAL PROCESS, TENANTS ARE NOT REALIZING THE BENEFITS OF AN ORDINANCE THAT WOULD MAKE THE USE OF THESE ALGORITHMIC DEVICES ILLEGAL IN THEIR JURISDICTION. ACTING LOCALLY WILL BAN THESE PRACTICES TO PROTECT TENANTS NOW WITHOUT WAITING. THEREFORE WE THE HAC IS RECOMMENDING THE COUNCIL ADOPT AN ORDINANCE BANNING THE SALE AND USE OF ALGORITHMIC DEVICES TO SET RENTS AND MANAGE OCCUPANCY RATES. I BELIEVE THAT YOU ALL HAVE RECEIVED A LETTER OF SUPPORT FROM TECH EQUITY. AND THAT LETTER OF SUPPORT HAS A COUPLE OF AMENDMENTS THEY BELIEVE AND SAY WILL STRENGTHEN THE PROPOSED ORDINANCE BY UPDATING THE DEFINITION OF ALGORITHMIC DEVICES INCLUDING ALGORITHMS THAT USE ALL DATA, NOT JUST NON-PUBLIC

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DATA. SO COUNCIL MAY WANT TO CONSIDER THOSE RECOMMENDATIONS. WITH THAT, WE ARE CONCLUDING OUR PRESENTATION, AND BOTH COMMISSIONER SIMON-WEISBERG AND MYSELF ARE AVAILABLE TO ANSWER ANY QUESTIONS.

>> MAYOR ISHII: THANK YOU BOTH VERY MUCH FOR YOUR PRESENTATION AND FOR THE DATA. I THINK THAT'S VERY HELPFUL. ARE THERE ANY CLARIFYING QUESTIONS? BEFORE WE MOVE ONTO PUBLIC COMMENT. OKAY. LET'S MOVE ONTO PUBLIC COMMENT.

>> HELLO.

>> MAYOR ISHII: I JUST WANT TO CHECK WITH OUR CITY CLERK, MAKE SURE OUR TIME IS OKAY ON THE CLOCK. OKAY.

>> GOOD EVENING, MAYOR, AND COUNCILMEMBERS. AND I WOULD ALSO LIKE TO THANK THE PRESENTERS FOR THEIR WONDERFUL PRESENTATION. MY NAME IS AVERY ARBAUGH I'M A BOARD MEMBER FOR THE DEMOCRATIC WELL PHONE RENEWAL AND BERKELEY TENANT UNION AND HEAD OF THE BERKELEY TENANT ORGANIZING TASK FORCE. I'M A STUDENT AND TENANT IN BERKELEY AND I HAVE HAD FRIENDS WHO HAVE BEEN PUSHED OUT OF THIS CITY BECAUSE OF RENT BURDEN. I'M HERE TO STAND IN SUPPORT OF ITEM 18, BECAUSE WE MUST STOP THE CARTELIZATION OF OUR RENT PRICES. WE MUST BE CLEAR THAT JUST BECAUSE THIS NEW ERA OF PRICE FIXING IS DONE USING APPS AND ALGORITHMS RATHER THAN EXPLICIT CONVERSATION BETWEEN LANDLORDS, THE EFFECTS OF PRICE FIXING REMAIN THE SAME. IT HARMS TENANTS AND IT LINES THE PROFITS OF

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LARGE CORPORATE LANDLORDS AT THE EXPENSE OF EVERY DAY BERKELEYANS. THANK YOU VERY MUCH FOR YOUR TIME.

>> MAYOR ISHII: THANK YOU.

>> I'M IN SUPPORT OF THIS ITEM BUT I HOPE AT SOME POINT THAT SOMEONE DEVELOPS THIS ITEM BY REVIEWING HOW ALGORITHMIC DEVICES ARE USED TO HAVE A DISCRIMINATORY IMPACT ON SCREENING OF TENANTS. THERE HAVE BEEN STUDIES THAT THIS IS DONE. THAT MARGINALIZED PERSONS ARE OFTEN EXCLUDED FROM HOUSING BASED ON THE USE OF THESE TYPES OF DEVICES. SO I AM HOPING THAT SOMEONE BRINGS FORWARD THAT TYPE OF ITEM. THE CITY IS DOING REALLY GOOD THINGS WITH HOMELESS, HOUSING AND ALSO WITH THE EXPANDING OF THE IN-LIEU UNITS, THE INCLUSIONARY UNITS FOR ADDITIONAL SECTION 8 AND SHELTER PLUS, BUT THE REALITY IS THAT PEOPLE STILL HAVE DIFFICULTY IN BERKELEY WITH VOUCHERS AND WITH SUBSIDIES DESPITE IN 2017 -- THANK YOU.

>> THANK YOU FOR YOUR PRESENTATION, MY NAME IS NAGEEN, I'VE SPOKEN TONIGHT, CHAIR OF THE BERKELEY TENANT UNION AND IN MY CAPACITY AS SUCH AND PERSONALLY I WANT TO SUPPORT ITEM 18, HOUSING IS THE BIGGEST FINANCIALIZED GLOBAL COMMODITY IN THE HISTORY OF MANKIND. AND THIS TYPE OF A.I. PRICE FIXING ONLY MAKES IT WORSE. DID YOU KNOW BERKELEY LANDLORDS OWN 36,000 UNITS? HOW MANY? OKAY, 1600. YOU SAID SOMETHING ABOUT SIX LANDLORDS? IT'S UNBELIEVABLE HOW ONE PERSON COULD HAVE CONTROL

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OVER SO MANY PEOPLE'S LIVES. AND THE POSSIBILITY OF THEM STAYING IN BERKELEY ARE NOT. AND THEN COLLUDING WITH OTHER PEOPLE AND CREATING THIS TYPE OF MONOPOLY ONLY MAKES IT MUCH HARDER. I'M GLAD YOU ARE TAKING THIS UP AND I HOPE IT PASSES, THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HELLO, THANK YOU VERY MUCH, H.A.C. MEMBERS AND MADAM MAYOR AND CITY COUNCIL MEMBERS I'M ALSO SPEAKING IN FAVOR AND I HOPE YOU WOULD ADOPT AN ORDINANCE THAT WOULD LOOK AT PREVENTING A.I. FOR SETTING PRICES. THIS IS ANOTHER EXAMPLE OF HOUSING BEING LOOKED AT AS A PRODUCT. TWO WEEKS AGO WE WERE HERE, WE WERE TALKING ABOUT THE IN-LIEU FEES AND THEY REFERRED TO THEM AS PRODUCTS. HERE LANDLORDS, BUSINESS OWNERS ARE LOOKING AT THEIR PRODUCTS. BUT THE PRODUCT THEY ARE SELLING IS A SERVICE. THEY ARE PROVIDING A SERVICE. SO CONSUMERS SHOULD BE PROTECTED. THIS IS A PERFECT OPPORTUNITY TO PROTECT THE CONSUMERS IN THIS RENTAL HOUSING INDUSTRY. I ASK YOU PLEASE CONSIDER PROTECTING THE CONSUMERS AND PASSING AN ORDINANCE THAT WOULD BENEFIT THE CONSUMERS HERE, THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HI, I'M SHANE, I'M SPEAKING IN MY PERSONAL CAPACITY IN SUPPORT OF 18. AS AN R.A. I'M HELPING NAVIGATE TENANTS. THEY NAVIGATE WITH FEAR AND UNCERTAINTY WITH LESS METRICS TO DETERMINE WHAT SAY FAIR PRICE OR LEASE. THIS PROGRAM IS

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PREDATORY. I'M UNSURE HOW IT USES A.I. IN ITS OPERATION BUT A.I. IN AND OF ITSELF IS NOT A RELIABLE SOURCE FOR SOCIAL USES. GENERATIVE A.I. IS CONSISTENTLY FALSE. SECONDLY A.I. IS TRAINED ON THE INTERNET THERE BY CUMULATIVE ACCUMULATION OF BIAS. SHOWN TIME AND TIME AGAIN TO BE BIAS AND FALSE. IT'S RIDICULOUS AND PREDATORY. I URGE YOU TO APPROVE ITEM 18 AND COUNCILMEMBER LUNAPARRA'S SUPPLEMENTAL.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING MAYORS AND MEMBERS OF THE CITY COUNCIL I HAVE ONE MINUTE CEDED TO ME BY A MEMBER IN THE BACK. I'M SOLI ALPERT, CHAIR OF THE RENT BOARD, AS HAS BEEN MODIFIED BY COUNCILMEMBER LUNAPARRA. AS SOMEONE CONCERNED WITH TENANT PROTECTIONS IT'S VITALLY IMPORTANT. BUT AS ANOTHER COMMENTER MENTIONED AS A BASIC CONSUMER STANDPOINT, IT'S REALLY SAD WE HAVE TO BE HERE PUTTING THIS FORWARD, IF THE LAWS, OUR FEDERAL LAWS AROUND ANTI COMPETITIVE BEHAVIOR WERE BETTER ENFORCED. THIS WOULD HAVE BEEN TOTALLY ILLEGAL AND SHUT DOWN LONG BEFORE. BUT WE KNOW UNFORTUNATELY BIG BUSINESS HAS CONTROLLED A LOT OF OUR FEDERAL REGULATORY APPARATUSES. LUCKILY, WE HAVE RESOURCES AT THE CITY LEVEL TO COMBAT THIS KIND OF BEHAVIOR, AND THIS IS ONE COMMON SENSE WAY TO DO THAT. UNFORTUNATELY, WE LIVE IN A WORLD WHERE THE MARKET SETS THE PRICE OF HOUSING. IF WE LIVE IN THAT WORLD THE MARKET SHOULD BE REGULATED AND THEY SHOULD BE IN

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COMPETITION. IF THEY ARE ENGAGING IN THIS ANTI COMPETITIVE BEHAVIOR, COLLUSION, CARTEL, THAT'S NOT HAPPENING. RENTS ARE BEING BASED ON A SKEWED MARKET THAT HURTS BERKELEY'S COMMUNITY. I ASK YOU TO PASS THE STRONGEST VERSION OF THIS LEGISLATION AS DESCRIBED IN YOUR SUPPLEMENTAL THIS EVENING. THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU.

>> I ALSO STRONGLY SUPPORT THIS MEASURE TO ITEM 18 THAT IS TO PREVENT THE HOUSING IN BERKELEY FROM BEING FURTHER CARTELIZED AND PRICE FIXED. I SAY FURTHER BECAUSE THIS ALREADY GOES ON. WHILE THIS WOULD RAPIDLY AND EXPONENTIALLY ACCELERATE THE CARTELIZATION OF RENTAL HOUSING, THE CARTELS ALREADY EXIST. ONE SUCH IS THE BERKELEY PROPERTY OWNERS' ASSOCIATION, WHICH MASQUERADES AS A TRADE GROUP. BUT THEY HAVE THEIR MEETINGS. WHAT DO YOU SUPPOSE ALL THESE PROPERTY OWNERS WHO CALL THEMSELVES RENTAL HOUSING PROVIDERS TALK ABOUT IN THEIR MEETINGS WITH EACH OTHER? IT DOESN'T TAKE A WHOLE LOT OF IMAGINATION TO FIGURE OUT, THEY AREN'T REALLY IN COMPETITION.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> HELLO, MY NAME IS ALAN, I'M A RENTER IN ELMWOOD. I SUPPORT THE GENERAL KIND OF IDEA OF THIS. BUT I JUST WANT TO SEPARATE THE TWO ISSUES AND NOT CONFOUND THEM. ONE ISSUE IS THE USE OF NON-PUBLIC DATA. THE OTHER IS USE OF ALGORITHMIC DEVICE, I WANT TO MAKE SURE THE COUNCIL UNDERSTANDS, I THINK THE CORE ISSUE IS

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THE NON-PUBLIC DATA, THAT'S THE PRICE FIXING THAT IS BEING SUED UNDER REALPAGE, IF WE BAN THE USE OF ALGORITHMIC DEVICES I THINK YOU ARE CREATING ISSUES FOR ANY LANDLORDS WHO USE ANY SOFTWARE TO BE ABLE TO CONTROL RENTS. A LOT OF TIME RENT IS INEFFICIENTLY SET, IT MAY BE TOO HIGH AND IT WILL RECOMMEND THEY LOWER RENT TO REDUCE VACANCY AND TIME SPENT IDLING THEIR PROPERTY. AND THAT INCENTIVIZES BOTH LANDLORDS AND TENANTS. SO THE ISSUE IN A HOUSING SCARCE MARKET IS GOING TO LOOK LIKE THE PRICING IS TOO HIGH, BUT IF WE GET MORE HOUSING IT WILL PUSH PRICING DOWN AND THE ALGORITHM WILL DETECT THAT. THANK YOU.

>> MAYOR ISHII: THANK YOU. ANY OTHER PUBLIC COMMENTS ONLINE?

>> CITY CLERK: THERE'S, HELLO? OH, SORRY. YES, THERE'S FOUR PUBLIC COMMENTERS. FIRST IS DAVID SHERE.

>> HI, DAVID SHERE, HOUSING ADVISORY COMMISSION SPEAKING ONLY FOR MYSELF. I'M SPEAKING IN FAVOR OF THIS ITEM TONIGHT, IN PARTICULAR THE TEXT AS RECOMMENDED BY HAC AND NOT IN THE SUPPLEMENTAL. I WANT TO MAKE SURE WE ARE CLEAR WHAT THIS IS ABOUT AND WHAT IT'S NOT ABOUT. THIS IS ABOUT ANTI-COMPETITIVE COLLUSION AND MARKET MANIPULATION. FOLKS ARE TALKING ABOUT ALGORITHMS AND AI. THE PROBLEM ISN'T THAT THE PRICE CAME FROM COMPUTER, THE PROBLEM IS COLLUSION, WHAT THE TECHNOLOGY IS DOING IS MAKING IT MORE SCALABLE AND EFFICIENT BUT IT'S NOT ALGORITHMS IT'S CARTELS COLLUDING. WE NEED TO BUILD A LOT OF NEW HOUSING AT

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ALL INCOME LEVELS BUT CARTELS LIKE REALPAGE COULD HAVE A MEANINGFUL IMPACT ON THE HOUSING MARKET AND HOUSING PRICES. IT'S TOTALLY UNNECESSARY AND I HOPE YOU WILL APPROVE THIS ITEM AS RECOMMENDED BY HAC. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS A CALLER WITH PHONE NUMBER ENDING IN 538. SHOULD BE ABLE TO UNMUTE. PRESS *6. CALLER WITH A PHONE NUMBER ENDING IN 538. PLEASE UNMUTE. ALL RIGHT, WE WILL GO TO SOMEBODY ELSE. KELLY HAMMARGREN?

>> THANK YOU. I'M PLEASED TO SEE THIS ON THE AGENDA. AND IT WAS SEVERAL MONTHS AGO WHEN I STARTED READING ABOUT REALPAGE, WHICH WAS MAXIMIZING RENTS OVER FILLING UNITS. AND SO, MAXIMIZING RENT TO LEAVE VACANT UNITS SEEMS TO ME TO BE VERY CONCERNING. SO THAT'S ALL I WILL SAY ABOUT IT. I HOPE YOU PASS IT. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: ALL RIGHT, I WILL GO BACK TO THE CALLER WITH THE NUMBER ENDING IN 538.

>> THE FIRST [INDISCERNIBLE] 1968 WAS 28,000, THE SECOND ONE EUCLID WAS 101,000. WHAT HAPPENED TO HOUSING PRICES IS UNREAL, IT'S TOTALLY UNREAL. THE FACT IS A LOT OF MONEY COMING FROM FOREIGN MONEY BY WHAT'S CALLED PRIVATE EQUITY FIRMS. AND IT'S DESTROYING WHOLE HOUSING IN THE WHOLE COUNTRY. THE OTHER POINT I

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WOULD LIKE TO MAKE, WE LIVE IN A -- COUNTRY, WHAT TRUMP DID -- BIG, BIG TROUBLE. NOAA IS VERY IMPORTANT TO EARTHQUAKES, WEATHER, EVERYTHING. THIS MAN REALLY SHOULD BE IMPEACHED AS SOON AS POSSIBLE. [INDISCERNIBLE] MY APOLOGY TO MAYOR ARREGUIN AND CITY COUNCIL. I JUST GET EXCITED TO LOOK BACK AT THE LAST FOUR YEARS AND NOT VERY HAPPY ABOUT THAT. BUT THANK YOU, ALWAYS A GOOD CITY, ALWAYS LOVE THE CITY. HAVE A GOOD NIGHT.

>> CITY CLERK: ALL RIGHT, NEXT IS MARIA SOL.

>> YES, THANK YOU AGAIN. I'M SO GLAD WE ARE STILL HERE. I SUPPORT THIS, AS I DID THE OTHER ONE. BECAUSE THIS IS BASICALLY A CALL BACK TO THE BERKELEY VALUES WE HAVE BEEN SPEAKING ABOUT ALL NIGHT. WHETHER IT'S THE OTHERING AND THE HATE OR THE DIVISION AND THE VIOLENCE AND THE LACK OF SAFETY, YOU KNOW. IT'S ALL THE SAME THING. IT'S EITHER ALL OF US, OR NONE OF US. WE'VE GOT A FEW GLOBALLY THAT ARE EXPLOITING AND PILLAGING AND PLUNDERING AT THE EXPENSE OF THE REST OF US. AND IT'S NOT GOING TO WORK. SO HERE'S TO BERKELEY COMING TOGETHER AND NOT LETTING A FEW PROPERTY OWNERS OR REALTORS HEDGE FUNDS ET CETERA, TAKE POSSESSION OF OUR HEARTS AND SOULS. BECAUSE HOUSING IS NECESSARY FOR EVERYBODY. THANK YOU.

>> MAYOR ISHII: THANK YOU. IS THERE ONE MORE PERSON?

>> CITY CLERK: TWO MORE.

>> MAYOR ISHII: TWO MORE PEOPLE.

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>> CITY CLERK: NEXT IS KRISTA.

>> THANK YOU, THANK YOU MAYOR AND COUNCIL. KRISTA GULBRANSEN. I'M TRYING TO SUSS OUT AND UNDERSTAND THE DIFFERENCE IN THIS PROPOSAL WHICH IS DIFFERENT FROM SAN FRANCISCO'S IN THAT IT WANTS TO PROHIBIT ALGORITHMIC DEVICES THAT USE BOTH PRIVATE AND PUBLIC DATA. ZILLOW USES ALGORITHMS TO SET RENTS TO ANYBODY VIEWING. AS FAR AS I READ THIS PROPOSAL AND ORDINANCE IT WOULD PROHIBIT USE OF ANYBODY LOOKING AT ANY PUBLIC DATA. THAT COULD BE INCLUSIVE OF THE RENT REGISTRY EVEN IF SOMEBODY TAKES THAT PUBLIC DATA AND INPUTS IT INTO AN ALGORITHMIC DEVICE. I'M HAVING A HARD TIME UNDERSTANDING THAT. I'M ALSO HAVING A VERY DIFFICULT TIME UNDERSTANDING HOW THE 1300 IDENTIFIED UNITS THAT ARE PART OF THE REALPAGE LAWSUIT IN BERKELEY, HOW THOSE 1300 UNITS ARE USING AN ALGORITHMIC DEVICE TO SET ALL RENTS IN BERKELEY.

>> MAYOR ISHII: SORRY, TIME IS UP.

>> OH, SORRY, I DIDN'T SEE THAT. THANK YOU SO MUCH.

>> MAYOR ISHII: IT COULD BE HARD TO SEE ONLINE. ONE MORE, DID YOU SAY?

>> CITY CLERK: THAT'S IT. ACTUALLY. THE OTHER PERSON DROPPED OFF.

>> MAYOR ISHII: OKAY. COUNCILMEMBER HUMBERT, I THINK YOU HAD YOUR HAND UP FIRST.

>> M. HUMBERT: THANK YOU, MADAM MAYOR, IT'S EASY FOR ME TO DO

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THAT ONLINE. WE'VE READ THROUGH THESE TWO ITEMS, THE ORIGINAL ONE AND THE SUPPLEMENTAL CAREFULLY. AND I CAN'T SUPPORT EITHER VERSION OF THIS ITEM TONIGHT. MY PRIMARY REASON IS THAT THE DEFINITIONS IN BOTH VERSIONS. BUT ESPECIALLY THE DEFINITION IN THE SUPPLEMENTAL ARE OVER BROAD AND LIKELY UNENFORCEABLE. THE WAY THE ORIGINAL VERSION DEFINES ALGORITHMIC DEVICE AND COMPETITOR DATA COULD PREVENT A LANDLORD FROM USING THEIR OWN NON-PUBLIC RECORDS TO INFORM THEIR DECISIONS ABOUT RENT LEVELS AND VACANCIES. ADDITIONALLY, I WOULD LIKE TO SEE ALGORITHMIC DEVICE CHANGE TO ALGORITHMIC SOFTWARE IF IT WERE TO PASS. OR SOMETHING SIMILAR, BUT I THINK THIS ISN'T READY, THIS ISN'T READY TO PASS. IT WOULD NEED A SUBSTANTIAL AMOUNT OF WORK BEFORE IT MADE A WHOLE LOT OF SENSE AND WAS PRECISE AND TARGETED ENOUGH FOR US TO ADOPT. EVEN SO, THE PRICING ALGORITHM DEFINITION IN THE SUPPLEMENTAL IS ANY ANALYTICAL -- FOR CONSUMER GOODS OR SERVICES. THIS DEFINITION IS REALLY, REALLY OVER BROAD, UNENFORCEABLE AND LIKELY UNCONSTITUTIONAL. ALTHOUGH THE ORDINANCE PROVIDES ADDITIONAL EXAMPLES OF THE MORE SPECIFIC PRICING ALGORITHMS IN MIND IT DOESN'T ADOPT A MORE LIMITED DEFINITION THAT COULD WITHSTAND SCRUTINY. I THINK UNDER THIS BROAD DEFINITION, A COUPLE TRYING TO RENT OUT THEIR A.D.U. AND PLUGGING RENTAL INFORMATION FROM CRAIGSLIST TO FIND AN AVERAGE RENT IN THEIR AREA WOULD FALL UNDER THE PROHIBITION. EITHER

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ORDINANCE, ZILLOW WOULD BE ILLEGAL TO USE IN BERKELEY. I THINK THE ORDINANCE, BOTH VERSIONS AS WRITTEN ARE IMPRECISE IN A NUMBER OF WAYS. FOR EXAMPLE, THEY CURRENTLY ALLOW TENANTS A PRIVATE RIGHT OF ACTION, PRIMARILY THE PEOPLE AFFECTED WOULD BE PROSPECTIVE TENANTS. AS WRITTEN THESE ORDINANCE DON'T PROVIDE A LEGAL AVENUE FOR THEIR PRIMARY INTENDED BENEFICIARIES AND IF WE OPEN THE DOOR TO PROSPECTIVE THIS NEEDS TO BE CAREFULLY PRESCRIBED TO PREVENT ABUSE. I THINK ANOTHER ISSUE WITH THE PROPOSALS OVERALL IS THE DIFFICULTY, REALLY. THIS IS PROBABLY THE CRUX OF THE BISCUIT IS DIFFICULTY APPROVING SUCH TOOLS HAVE BEEN USED. AS A CITY, WE DON'T HAVE THE RESOURCES TO CONDUCT THE LEVEL OF INVESTIGATION NECESSARY TO ESTABLISH WHETHER A LANDLORD USED ILLEGAL ALGORITHMS, ESPECIALLY IF THEY TRIED TO DO SO COVERTLY. THERE'S NOTHING BUT A PARTICULAR ASKING RENT LEVEL OR VACANCY THAT WOULD IN AND OF ITSELF QUALIFY AS EVIDENCE THAT SUCH AN ALGORITHM WAS USED. ESTABLISHING THAT SUCH AN ALGORITHM WAS USED WOULD ESSENTIALLY REQUIRE SEIZING COMPUTERS AND SUBPOENAING RECORDS FROM LANDLORDS. THE EVIDENCE OF WRONGDOING WOULD BE MUCH PLAINER IN PHYSICAL FORM, IN COMMUNICATIONS WITH TENANTS OR LANDLORD'S DISCRIMINATORY ACTIONS TOWARD PROSPECTIVE TENANTS. IN SAYING ALL THIS I WANT TO EMPHASIZE ANTI COMPETITIVE BEHAVIOR AND PRICE FIXING BY LARGE MARKET ACTORS IS BAD AND SOMETHING WE SHOULD CRACKDOWN ON AT A HIGHER LEVEL. BUT I DON'T

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THINK THIS MAKES SENSE FOR US TO DO HERE, BECAUSE WE DON'T HAVE THE RESOURCES OF SOMETHING LIKE AN ATTORNEY GENERAL'S OFFICE OR THE DEPARTMENT OF JUSTICE, BECAUSE I THINK THE NUANCE AND ENFORCEMENT ARE DIFFICULT TO GET RIGHT. I THINK WE SEE FROM THE DATA, THE SINGLE MOST IMPORTANT THING WE CAN DO TO LOWER THE PRICE OF HOUSING IS TO BUILD MORE OF IT. THE SORT OF PRICE FIXING SCHEMES THIS ORDINANCE AIMS TO PREVENT ONLY WORK WHEN THERE'S SCARCITY AND OLIGOPOLY IN THE MARKET AND PRETEND THESE DEVICES ARE SOMEHOW LEADING TO HIGH RENTS IS REALLY A GROSS OVER SIMPLIFICATION. I WANT THE CITY TO STAY FOCUSED ON THE AREA WHERE'S WE CAN MAKE THE BIGGEST DIFFERENCE WITH THE RESOURCES AT OUR DISPOSAL. AND THOSE RESOURCES ARE BECOMING MORE AND MORE STRAINED AS WE MOVE FORWARD INTO THIS NEW ERA. I WOULD LIKE TO MAKE A MOTION TO REJECT BOTH PROPOSALS.

>> R. KESARWANI: I'LL SECOND FOR THE PURPOSES OF DISCUSSION.

>> MAYOR ISHII: OKAY. THE NEXT PERSON TO SPEAK IS COUNCILMEMBER LUNAPARRA. I'M GOING TO RESERVE MYSELF A SPOT AFTER COUNCILMEMBER BLACKABY AND BARTLETT AS WELL.

>> C. LUNAPARRA: THANK YOU. I WANT TO, BASED ON FEEDBACK FROM ADVOCACY ORGANIZATIONS, TECH EQUITY MEMBERS, HOUSING ADVISORY COMMISSION, I WANT TO CLARIFY SOME DEFINITIONS AND CLOSE LOOPHOLES AND COUNCILMEMBER TREGUB HAS CO-SPONSORED THE ITEM, SO I APPRECIATE THAT. THESE CHANGES INCLUDE CHANGING THE TERM

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ALGORITHMIC DEVICES TO PRICING ALGORITHMS AS A CLARIFICATION AND MAKING SURE COMPANIES LIKE REALPAGE COULDN'T USE ANY DATA PUBLIC OR PRIVATE TO FIX PRICES OR LEAVE UNITS VACANT. THIS IS THE KIND OF LEGISLATION THAT'S BEST TAKEN UP AT THE REGIONAL LEVEL SO I HOPE THIS IS ONE STEP TOWARD BROADER LEGISLATION TO STOP THE COOPERATION TO MANIPULATE THE HOUSING MARKET. I HAVE INCORPORATED FURTHER FEEDBACK FROM COUNCILMEMBER BLACKABY, I'M GRATEFUL FOR HIS COLLABORATION AS WELL. THE CITY ATTORNEY'S OFFICE REVIEWED THESE TECHNICAL CHANGES THIS AFTERNOON AND I WOULD LIKE TO THANK THEM. I WILL SHARE MY SCREEN IN A SECOND TO SHOW THESE TECHNICAL CHANGES TO MY SUPPLEMENTAL. I NEED TO -- GIVE ME ONE SECOND. I NEED TO BE ABLE TO JOIN THE MEETING. I'M SO SORRY. I WILL JUST SAY THE CHANGES.

>> MAYOR ISHII: YEAH.

>> C. LUNAPARRA: THERE'S TWO MAIN CHANGES, ONE LARGE, ONE SMALL. ONE CLARIFYING THE DEFINITION TO MAKE SURE DIRECT OR INDIRECT COORDINATION WITH COMPETITORS INCLUDING THROUGH THIRD-PARTY VENDORS IS ILLEGAL UNDER THIS ORDINANCE AND ONCE MORE CHANGE TO REMOVE EXPLICIT NAMING OF THE BERKELEY PROPERTY OWNERS' ASSOCIATION IN FINDING SECTION F. GIVE ME A SECOND WHILE I PULL THAT UP, I'M SO SORRY.

>> MAYOR ISHII: SURE, THANK YOU. WE WILL NOW GO ONTO COUNCILMEMBER BLACKABY.

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>> B. BLACKABY: THANK YOU, MAYOR. AND THANK YOU TO OUR PRESENTERS INCLUDING D-6 COMMISSIONER TO THE HOUSING ADVISORY COMMISSION. AND THANK YOU TO COUNCILMEMBER LUNAPARRA WHO HAS BEEN SO WILLING TO TAKE FEEDBACK AND THINK THROUGH THESE ISSUES. I SHARE A LOT OF FEEDBACK FROM FOLKS AT THIS MEETING. ALGORITHMS IN AND OF THEMSELVES AREN'T GOOD OR BAD. BY THE WAY, I'M NOT THE ONLY RESIDENT EXPERT, I WILL POINT TO COUNCILMEMBER O'KEEFE WHO IS A COMPUTER SCIENCE TEACHER, I'M JUST A MARKETER.

>> S. O'KEEFE: I HAVE NO PRACTICAL KNOWLEDGE WHATSOEVER.

>> B. BLACKABY: ANYWAY, ALGORITHMS IN AND OF THEMSELVES AREN'T GOOD OR BAD. YOU COULD CERTAINLY ENVISION AN ALGORITHM TO HELP RENTERS TO GATHER WIDE SWATHS OF DATA TO HELP THEM MAKE A DECISION WHAT THEY SHOULD PAY. THAT WOULD BE A GREAT ALGORITHM TO GIVE THEM ACCESS TO DATA TO HELP MAKE INFORMED DECISIONS. SIMILARLY YOU COULD ENVISION NEUTRAL ALGORITHMS TO HELP LANDLORDS SURVEY THE MARKET TO DETERMINE A FAIR PRICE TO RENT OUT A UNIT. THAT ALSO COULD BE A GREAT AND FAIR USE OF AN ALGORITHM. TO ME, THE PROBLEM ISN'T THE TECH PER SE, STRICTLY SPEAKING, IT'S THE COLLUSION, AS SOME COMMENTERS SAID. IT'S THE COORDINATION AMONG COMPETITORS IN AN ANTI-COMPETITIVE KIND OF WAY. BEHIND THE SCENES OUTSIDE OF THE FREE AND FAIR MARKET THAT WE ARE CONCERNED ABOUT. SO ANY TECHNOLOGY THAT FACILITATES THAT TYPE OF COORDINATION AND JOINT PRICE SETTING, NO MATTER WHAT THE

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SOURCE OF THER DATA IS, IT'S THE COORDINATION AND COLLUSION AMONGST THE MARKET PLAYERS, I THINK, IS THE PROBLEM. WHEN COUNCILMEMBER LUNAPARRA SHOWS YOU, WE WORKED A LOT ON THE DEFINITION OF PRICING ALGORITHM TO TRY TO INTRODUCE WE ADDED THE HIGHLIGHTED PARTS IN YELLOW. IT'S NOT JUST THE ANALYTICAL OR COMPUTATION PROCESS THAT USES DATA TO RECOMMEND THE PRICE, IT'S INDIRECT OR DIRECT COORDINATION WITH ONE OR MORE COMPETITORS INCLUDING THROUGH A THIRD-PARTY VENDOR. I'M LESS CONCERNED ABOUT ONE LANDLORD USING A PIECE OF TECHNOLOGY AND SETTING A PRICE IN ISOLATION. BUT JOINTLY IF THEY ARE MAKING DECISIONS TOGETHER ABOUT VACANCY OR ABOUT PRICING, AGAIN THAT, TO ME, IS MORE PROBLEMATIC. SO ONE OTHER BROADER POINT AND THEN I WILL CEDE MY TIME. AS A CITY WE SHOULD SUPPORT INNOVATION. WE SHOULD SUPPORT TECHNOLOGY. WE HAVE A WORLD CLASS CAMPUS RIGHT DOWN THE STREET. SO I WANT TO MAKE IT CLEAR AS A CITY WE SUPPORT SMART THINKERS, WE SUPPORT DEVELOPMENT OF A.I., AND DEVELOPMENT OF TECHNOLOGY THAT MAKES THESE BETTER. WE SUPPORT TECHNOLOGY THAT MAKES THINGS TRANSPARENT AND MARKETS MORE TRANSPARENT AND ACCESSING DATA TO MAKE MORE INFORMED DECISIONS IS A GOOD THING. BUT WE DON'T SUPPORT COLLUSION, WE DON'T ALLOW COLLUSION IS ILLEGAL IN OUR RENTAL MARKETPLACE. THAT'S THE BALANCE I THINK WE WERE TRYING TO STRIKE HERE. LAST THING I THINK I WILL MENTION. WE MAY NOT FIX THIS TONIGHT AND WE HAVE BEEN TALKING TO THE CITY ATTORNEY. WHAT

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WE ACTUALLY CALL IT. WE ARE CALLING IT HERE PRICING ALGORITHM. I THINK WE COULD PROBABLY EVEN BE MORE ACCURATE TO SAY IT'S SOMETHING ABOUT, THIS ISN'T EXACTLY RIGHT BUT MARKET SETTING ALGORITHM OR PRICE FIXING OR PRICE CONTROL. THERE'S SOMETHING ABOUT IT, IN AND OF ITSELF I DON'T HAVE A PROBLEM WITH PRICING ALGORITHMS I HAVE A PROBLEM WITH ALGORITHMS THAT FACILITATE COLLUSION, WHICH IS WHAT WE ARE TRYING TO REGULATE. THANK YOU TO COUNCILMEMBER LUNAPARRA FOR INDULGING ME AND HOPEFULLY WE CAN GET THIS BALANCE RIGHT.

>> MAYOR ISHII: THANK YOU, YES. MOVING ONTO COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU. AND THANK YOU FOR BRINGING THIS FORWARD. WE HAD A GREAT TALK ABOUT THIS AT THE COMMITTEE. WE DISCUSSED THE PRACTICES OF COLLUSION INHERENTNESS, THE EROSION OF TENANT PROTECTIONS THAT COME AS A RESULT. THERE'S FURTHER GDPR, CALIFORNIA PRIVACY, PROTECTION DATA CONCERNS. TRENDS TOWARDS HOUSING DISCRIMINATION AND SYSTEMATIZING IT. AND THIS TECH MONOPOLIZATION, THIS ALGORITHMIC A.I. CAPTURE OF THE AMERICAN CONSUMER. AND WE SEE IT IN PRICING FOR AIRPLANE TICKETS. WE SEE IT IN EVERYTHING. ANYTHING YOU SHOP ON, DEPENDING WHAT TIME OF DAY YOU GET A DIFFERENT PRICE OR IT KNOWS YOUR BANKING INFORMATION SO IT KNOWS HOW MUCH MONEY YOU MAKE YOU GET A DIFFERENT PRICE, IT'S TURNING INTO A REAL PRISON FOR

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PEOPLE. AS MY COLLEAGUE WAS SAYING, MR. BLACKABY, THIS TECHNOLOGY, I THINK THIS IS REALLY THE FIRST TIME, THE FIRST OF MANY TIMES WE ARE GOING TO HAVE TO COME OUT WITH SOME GUIDANCE HOW TO USE THIS NEW FORCE THAT'S COMING INTO OUR WORLD. AND IT IS NEUTRAL BUT WE NEED TO GET A HOLD OF IT AND MAKE IT POSITIVE. THAT MEANS MAKE IT WORK FOR PEOPLE AND NOT AGAINST PEOPLE. SO YOU KNOW, I THINK WE REALLY NEED TO PASS THIS. I LIKE THE CHANGES MADE IN THE SUPPLEMENTAL BY MY COLLEAGUES. IT ADDRESSES, I THINK, SOME OF THE CONCERNS RAISED BY COUNCILMEMBER -- HE'S NOT HERE. HUMBERT. THERE WE GO, THERE WE ARE. COUNCILMEMBER HUMBERT. AND REALLY DESCRIBES THE HUB AND SPOKE NATURE OF IT IN THIS ANTI-COMPETITIVE MODEL. AND IN THE ABSENCE OF ANY REAL FEDERAL ENFORCEMENT AND LESS SO AS WE SEE DAY BY DAY, I THINK WE HAVE TO STICK UP FOR OUR RESIDENTS HERE. THANK YOU.

>> MAYOR ISHII: THANK YOU, VICE MAYOR. MOVING ONTO COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU. I JUST HAD ONE QUESTION. YOU MENTIONED THERE WAS PENDING STATE LEGISLATION. ARE YOU ABLE TO SHARE WHAT THOSE BILLS ARE, OR?

>>[OFF MIC]

>> MAYOR ISHII: I THINK YOUR MIC IS NOT ON. YEAH. AND PULL IT CLOSE TO YOU. THERE WE GO.

>> IT'S SO FUNNY AFTER SO MANY YEARS TO BE UP THERE AND BE ON

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THIS SIDE AND HAVE TO LEARN HOW TO USE THESE MICS AGAIN. I COULD PULL UP IN A MINUTE. I HAD THEM UP, I DON'T HAVE THEM BUT I WILL GET THEM, THERE ARE FOUR. THE TECH EQUITY HAS BEEN WORKING CLOSELY WITH ONE OF THE BILLS. AND THIS THE DEFINITIONS THAT WERE RECOMMENDED THAT WERE THE BASE OF THE LUNAPARRA AND TREGUB'S SUGGESTIONS ARE REFLECTED IN THAT. I THINK IT'S UNCLEAR, WE HAVE BEEN DOING, THERE HAVE BEEN STATE BILLS ACROSS THE COUNTRY. THIS IS MORE MODELED OFF SAN FRANCISCO'S. AND I THINK THAT REGIONAL IMPACT IS GOING TO BE VERY, VERY IMPORTANT. I MEAN, I HOPE THE STATE PASSES IT, BECAUSE THAT WILL MAKE A HUGE DIFFERENCE. GRAY STAR NOT ONLY IS ONE OF THE BIGGER PLAYERS IN BERKELEY AND IN THE BAY AREA. BUT PARTICULARLY OF OUR STUDENT HOUSING. AND I THINK THAT ONE THING I REALLY JUST WANT TO EMPHASIZE IS ALL OF THE EMPTY UNITS. I TEACH AT THE LAW SCHOOL PREVIOUSLY KNOWN AS HASTINGS. I TAUGHT THIS LEGISLATION. I DO ANTI-TRUST IS ONE OF THE TOPICS. I'VE NEVER HAD TO MANY STUDENTS TALK BECAUSE THEY ALL LIVE IN THE STUDENT HOUSING OVER SEEN BY GRAYSTAR AND THEY TALK ABOUT HOW THREE OF THE FLOORS ARE EMPTY. AND THEY USE, THEY ARE USING THE ALGORITHM FOR THAT STUDENT HOUSING. AND THEY ARE USING THAT ALGORITHM ON OUR STUDENT HOUSING HERE. AND SO I THINK IT WILL MAKE A HUGE DIFFERENCE IF JUST GRAYSTAR WOULD STOP USING IT. AND OUR STUDENTS WOULDN'T HAVE TO SPEND ON MUCH AS HOUSING AS THEY ARE ON THEIR TUITION.

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SO I THINK WE REALLY NEED TO DO IT RIGHT AWAY. IN FEBRUARY IS WHEN OUR RENTS ARE HIGHEST IN BERKELEY BECAUSE ALL THE STUDENTS ARE LOOKING FOR HOUSING BECAUSE OF THAT ALGORITHM. SO I HOPE AT THE STATE LEVEL THESE BILLS PASS. WE HAVE HAD ONE ON THE FEDERAL LEVEL FOR THREE YEARS INTRODUCED AS SOON AS THE PRO-PUBLICA ARTICLE CAME OUT. BUT I CAN PROVIDE THE FLOOR BILL NUMBERS. AND I BELIEVE THAT AT LEAST TWO OF THEM HAVE ALREADY COME TOGETHER.

>> MAYOR ISHII: THANK YOU. DID YOU HAVE OTHER QUESTIONS OR COMMENTS, COUNCILMEMBER?

>> T. TAPLIN: THAT'S ALL, THANK YOU.

>> MAYOR ISHII: THANK YOU. MOVING ONTO, ACTUALLY I THINK IT'S SUPPOSED TO BE COUNCILMEMBER O'KEEFE, FOR SOME REASON YOURS WAS FLASHING.

>> S. O'KEEFE: I'M NUMBER 31, APPARENTLY. IT'S CONFUSED. THANK YOU. THANK YOU SO MUCH FOR THESE CHANGES. THEY HAVE SCRATCHED AN ITCH THAT I HAD. IT'S REALLY, REALLY GOOD. AS COUNCILMEMBER BLACKABY SAID, I TEACH COMPUTER SCIENCE. THESE WORDS MEAN SOMETHING TO ME. THEY HAVE BEEN USED, I'M TALKING ABOUT THE ORIGINAL LANGUAGE. AND I'M SORRY FOR WHOEVER WROTE IT. I DON'T MEAN TO BE TOO MEAN TO YOU. I JUST WANT TO POINT OUT, ALGORITHM WE THINK IT MEANS SOFTWARE, COMPUTER, ALGORITHM, IT'S A SERIES OF INSTRUCTIONS THAT ACCOMPLISHES SOMETHING. A DEVICE IS LIKE A THING. AND DATA IS INFORMATION. SO I'M LIKE USING AN ALGORITHM

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ON A DEVICE WHEN I'M COOKING FROM A RECIPE AND I HAVE A DIGITAL THERMOMETER. IT WAS TOO LOOSE AND THAT THIS COULD CAPTURE NORMAL BEHAVIOR ANY LANDLORD WOULD ENGAGE IN WAS A LEGITIMATE CONCERN BEFORE. BUT I REALLY LIKE THESE EDITS, THE RED ONES AND THE YELLOW ONES EVEN MORE. AS COUNCILMEMBER BLACKABY SAID VERY WELL, THIS REALLY FOCUSES ON THE THING THAT WE ACTUALLY DON'T LIKE, WHICH IS THE COLLUSION. SO I THINK, I DEFINITELY, YOU KNOW, AGREE WITH THE GOALS. THESE SCENARIOS THAT WERE DESCRIBED BY OUR WONDERFUL PRESENTERS, THIS IS BAD WE WANT TO STOP THIS ABSOLUTELY. WITH THESE EDITS THIS IS ACTUALLY WELL TAILORED NOW TO DO THAT. SO I WILL BE SUPPORTING IT. AND THANKS, EVERYONE, FOR YOUR WORK.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER TREGUB?

>> I. TREGUB: I JUST WANTED TO SEE IF COUNCILMEMBER LUNAPARRA, IF IT WAS YOUR INTENT TO INTRODUCE A SUBSTITUTE MOTION?

>> C. LUNAPARRA: YES, THANK YOU SO MUCH. YES.

>> MAYOR ISHII: LET HER MAKE THE MOTION, GO AHEAD.

>> C. LUNAPARRA: I WILL MAKE A SUBSTITUTE MOTION TO ADOPT SUPPLEMENTAL 2 WITH THESE CHANGES HIGHLIGHTED HERE AND THIS CHANGE THAT IS HIGHLIGHTED HERE. WHICH IS REMOVING THE NAMING OF THE PROPERTY OWNERS' ASSOCIATION AND EAST BAY RENTAL HOUSING ASSOCIATION. AND I WILL SEND THAT TO THE CLERK'S OFFICE AS WELL.

>> MAYOR ISHII: AND THEN YOU WOULD LIKE TO SECOND IT,

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COUNCILMEMBER TREGUB?

>> I. TREGUB: YES.

>> MAYOR ISHII: THANK YOU. I JUST WANTED TO MAKE ONE COMMENT -- SORRY, I DIDN'T SEE. I JUST WANTED TO MAKE ONE COMMENT JUST TO SAY ABOUT ADDRESSING SOME CONCERNS ABOUT THIS POTENTIALLY BEING ILLEGAL OR UNCONSTITUTIONAL. TO COMMENT ON THE FACT THIS HAS HAPPENED IN OTHER STATES, COUNTIES ET CETERA. AND WE HAD OUR CITY ATTORNEY'S OFFICE GO OVER IT. SO YOU KNOW THAT GIVES ME A LOT OF CONFIDENCE THAT'S NOT THE CASE. SO I JUST WANT TO MAKE THAT COMMENT BECAUSE I THINK THAT'S IMPORTANT. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES, THANK YOU VERY MUCH, MADAM MAYOR. THANK YOU, COUNCILMEMBER LUNAPARRA FOR THIS SUPPLEMENTAL. AND THANK YOU, COUNCILMEMBER BLACKABY FOR THE AMENDMENT. I THINK I FEEL MORE COMFORTABLE SUPPORTING THIS NOW WITH THIS CHANGE THAT WE ARE DEFINING THIS AS INDIRECT OR INDIRECT COORDINATION WITH ONE OR MORE COMPETITORS. I SHARE THE CONCERN THAT COUNCILMEMBER HUMBERT RAISED ABOUT ENFORCEMENT. BUT I THINK THAT, ALL IN ALL, ON BALANCE, PASSING THIS AND SAYING THAT WE DON'T SUPPORT THIS TYPE OF PRICE COLLUSION IS A REASONABLE THING TO DO. I WILL JUST RESPECTFULLY WITHDRAW MY SECOND OF COUNCILMEMBER HUMBERT'S MOTION AND I'M PREPARED TO SUPPORT THIS WITH THE AMENDMENTS PROPOSED. THANK YOU.

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>> MAYOR ISHII: OKAY. THEN I WOULD ASK THE CLERK TO TAKE ROLL, UNLESS THERE ARE ANY OTHER COMMENTS. OKAY. THANK YOU.

>> CITY CLERK: ON THE MOTION BY COUNCILMEMBER LUNAPARRA TO ADOPT THE ORDINANCE AND SUPPLEMENTAL #2 WITH THE ADDITIONAL CHANGES MADE ON THE DAIS, COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

>> BARTLETT?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> NO.

>> AND MAYOR ISHII.

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, MOTION CARRIES.

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>> MAYOR ISHII: THANK YOU ALL SO MUCH. I APPRECIATE SEEING YOU ALL AT WORK HERE AND TRYING TO FIGURE OUT THE BOUNDARIES. SO THANK YOU. I REALLY APPRECIATE IT, IT REMINDS ME OF GAME NIGHT. SO, THERE WAS ADJOURNMENT IN MEMORY OF POLLY ARMSTRONG, THE FORMER DISTRICT 8 CITY COUNCIL MEMBER. AGAIN THERE WAS A VERY TOUCHING TRIBUTE FROM COUNCILMEMBER HUMBERT THAT WAS SAID EARLIER. SO I'M WONDERING IF THERE'S A MOTION TO ADJOURN. AM I MISSING SOMETHING, I'M SORRY? OH YES, SORRY. I'M SO SORRY. IS THERE ANY ADDITIONAL PUBLIC COMMENT FOR ITEMS NOT LISTED ON THE AGENDA?

>> CITY CLERK: FROM INDIVIDUALS WHO DID NOT SPEAK AT THE BEGINNING OF THE MEETING.

>> MAYOR ISHII: THANK YOU FOR CLARIFYING. FOR FOLKS WHO DID NOT SPEAK EARLIER ON THE SAME AREA.

>> CITY CLERK: THERE'S NO ZOOM HANDS, SO WE CAN ADJOURN THE MEETING IF THERE'S A MOTION.

>> MAYOR ISHII: YES, THANK YOU.

>> CITY CLERK: MOTION BY COUNCILMEMBER TAPLIN.

>> MAYOR ISHII: IS THERE A SECOND?

>> CITY CLERK: COUNCILMEMBER LUNAPARRA. OKAY TO ADJOURN THE MEETING COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

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>> YES.

>> BARTLETT?

>> TREGUB.

>> TREGUB? AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY? YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES. AND MAYOR ISHII?

>> MAYOR ISHII: YES. ALL RIGHT. THANK YOU ALL SO MUCH, THANK YOU TO STAFF AND THANK YOU SO MUCH TO MY COUNCILMEMBERS. [ADJOURNED 9:57 P.M.]

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